

HARMONIZATION OF NATIONAL LAWS WITH THE CONVENTION ON THE RIGHTS OF PERSONS WITH DISABILITIES

**NATIONAL CASE STUDY
REPUBLIC OF INDIA**

HARMONIZATION OF NATIONAL LAWS WITH THE CONVENTION ON THE RIGHTS OF PERSONS WITH DISABILITIES



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NATIONAL CASE STUDY REPUBLIC OF INDIA

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Cover design: Blended watercolour shapes are given form by concentric circles, symbolizing the coming together of diverse principles, values and approaches into a balanced, equitably supportive and harmonious structure.

FOREWORD

The Convention on the Rights of Persons with Disabilities, a landmark human rights instrument, was adopted in 2006 by the United Nations General Assembly. Negotiations on the draft Convention were completed within the shortest duration for any human rights treaty. It entered into force in 2008.

The Convention process united persons with disabilities around the world, including across the United Nations Economic and Social Commission for Asia and the Pacific (ESCAP) region.

The China Disabled Persons' Federation hosted the World NGO Summit on Disability in Beijing in 2000 (10-12 March). Participants included leaders of Disabled Peoples' International, Inclusion International, Rehabilitation International, the World Blind Union and the World Federation of the Deaf, as well as national civil society organizations of and for persons with disabilities from ESCAP members and associate members. The theme of the Summit was "The Strategy of the World Disability Movement Towards the New Century." Deng Pufang, Chairperson of the China Disabled Persons' Federation, highlighted the need to adopt a binding international convention on the rights of people with disabilities. In doing so, he urged all socially responsible persons and entities to immediately initiate the process for such an international convention. The Summit adopted the Beijing Declaration on the Rights of People with Disabilities in the New Century.

Following that initiative, ESCAP organized the Regional Workshop Towards a Comprehensive and Integral International Convention on Protection and Promotion of the Rights and Dignity of Persons with Disabilities in Bangkok in 2003 (14-17 October). The outcome document of the substantive and participatory workshop contained essential elements for a comprehensive and integral international convention on the protection and promotion of the rights and dignity of persons with disabilities, originally drafted by Professor Andrew Byrnes and subsequently referred to as the Bangkok Draft. The Bangkok Draft was highly regarded by the Ad Hoc Committee on a Comprehensive and Integral International Convention on the Protection and Promotion of the Rights and Dignity of Persons with Disabilities that convened annually between 2002 and 2006 at United Nations headquarters in New York.

The idea of a convention first emerged in the ESCAP region. ESCAP attached utmost importance to its germination – throughout the drafting process to its ratification and its implementation. ESCAP played a strong technical assistance role in the drafting of the Beijing Declaration, contributed the Bangkok Draft, which served as the foundation for drafting the Convention on the Rights of Persons with Disabilities, and attended annual sessions of the Ad Hoc Committee.

The Convention represents a departure from the entrenched medical model of disability that views "the disabled" in terms of their medical condition. Instead, the Convention focuses on social parameters and the dignity of the person. It is the first international human rights salvo fired against ableism, the root of discrimination. It seeks to liberate persons with diverse disabilities from the stigma of being disabled. It unites all persons with disabilities regardless of type of disability, background and location. It represents the historic convergence of the hopes, determination and persistent efforts of all peoples committed to the human rights of persons with disabilities. Negotiations in the Ad Hoc Committee were invariably charged with passion and a sense of urgency.

Significantly, the Convention highlights, for the first time, that the absence of action constitutes discrimination and introduces the concept of reasonable accommodation as an important means of tackling disability-related inequitable conditions. This is bold. It is cutting-edge for social transformation.

The real work starts after a State party ratifies the Convention. It begins with the harmonization of domestic legislation with the Convention. An important obligation regarding State party engagement is the timely preparation and submission of reports to the Committee on the Rights of Persons with Disabilities, with provision for parallel reports by non-state actors.

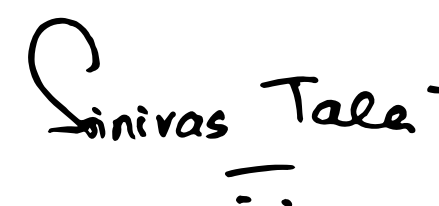
Goal 9 of the Incheon Strategy to "Make the Right Real" for Persons with Disabilities in Asia and the Pacific, which is the guiding document for the Asian and Pacific Decade of Persons with Disabilities, 2013-2022, promotes the speedy ratification of the Convention and effective harmonization of domestic legislation with the Convention.

The ESCAP region faces three "lacks": lack of action to harmonize domestic legislation with the Convention; lack of understanding of the Convention and its concepts; and lack of indigenous knowledge products based on home-grown research on Convention-related matters, particularly on the harmonization of domestic legislation with the Convention.

Against this background, in 2021, ESCAP initiated a research project that has yielded six volumes of analysis. The preparation of the publications involved persons with disabilities and allies from the disability community as researchers, peer reviewers, technical support team members and interns. ESCAP is grateful to the Government of China for its funding contribution to the preparation of this important knowledge product.

The research outcomes offer governments and civil society communities across the region a substantive Asian and Pacific foundation for moving forward on realizing the rights of persons with disabilities. The series is a treasure trove of rich lessons that provide insights into the scope for building, reinforcing and expanding Asian and Pacific harmonization expertise and experiences in the coming years.

It is my hope that actors in all sectors of society – particularly policymakers, organizations of persons with disabilities, other civil society entities, the private sector and the United Nations family active in Asia and the Pacific – will find these six volumes useful and motivating for accelerating endeavours to "Make the Right Real" for persons with diverse disabilities in Asia and the Pacific.



Srinivas Tata

Director, Social Development Division
United Nations Economic and Social Commission
for Asia and the Pacific

MESSAGE FROM GERARD QUINN, UNITED NATIONS SPECIAL RAPPORTEUR ON THE RIGHTS OF PERSONS WITH DISABILITIES

I am delighted for the opportunity to provide words of introduction to the series of six publications resulting from the project *Harmonization of National Laws with the Convention on the Rights of Persons with Disabilities*. The project was initiated by ESCAP as part of its assessing progress in the implementation of the Incheon Strategy to “Make the Right Real” for Persons with Disabilities in Asia and the Pacific.

These publications show that the Convention on the Rights of Persons with Disabilities has stimulated significant changes around the world, including in the States of the ESCAP region, to bring national laws, policies and practices into better alignment with its provisions and thus to bring us closer to the realization of the rights that the treaty guarantees for all persons with disabilities.

I am especially delighted to acknowledge and honour regional actions to advance the Convention. ESCAP has long been to the fore in assisting its member States in implementing the Convention. Its work on disability is a model and an inspiration for other regional groupings around the world.

Treaties are never self-executing. To be effective, they must be owned and internalized. The national case studies and the overview of major developments that emanate from this project demonstrate how the Convention is now central to national disability law and policy in the region.

It is certainly fair to say that ratification of the Convention has had a catalytic effect in most Asian and Pacific States. The national case studies reflect the critical role of a strong civil society, especially organizations of persons with disabilities, and the importance of ensuring that they participate actively and meaningfully in the development of policies of all types, including those of particular relevance to the advancement and participation of persons with disabilities in mainstream society. This strongly validates the vision in the Convention of the co-production of policy between governments and civil society. Indeed, the checking role envisioned by the Convention and played by national human rights institutions in many States in monitoring and providing remedies for violations of the rights of persons with disabilities should be recognized. Together, power, voice and ideas can make a real difference.

Despite the many advances in the Asian and Pacific region and around the world, we remain far from full implementation of the Convention’s guarantees. The full inclusion of persons with disabilities and recognition of their personhood and citizenship are still to be achieved in all our societies – the Convention provides a framework to do so and a call to action to us all to continue our efforts to reach the goals it has set.

Congratulations to ESCAP for bringing these publications to fruition: They provide a wealth of information on the effective steps that States have taken to give effect to the Convention. This information may provide ideas for other States while being frank about the shortfalls and challenges that remain to be overcome.



Gerard Quinn
United Nations Human Rights Council Special Rapporteur
on the rights of persons with disabilities

MESSAGE FROM ROSEMARY KAYESS, CHAIRPERSON OF THE COMMITTEE ON THE RIGHTS OF PERSONS WITH DISABILITIES

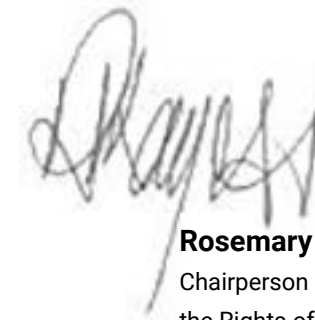
It gives me great pleasure to introduce this series of six publications on the implementation of the Convention on the Rights of Persons with Disabilities in the ESCAP region. The national case studies and the overview analysis provide an illuminating and encouraging review of the impact that the Convention has had in many Asian and Pacific States. At the same time, they identify some major challenges that remain.

The national case studies and overview provide insights into the way that the States parties in Asia and the Pacific have engaged with the Committee on the Rights of Persons with Disabilities, which is the independent expert body established by the Convention to monitor its implementation through a reporting procedure, and through the individual communication and inquiry procedure. The membership of the Committee has included several experts from Asian and Pacific countries.¹

The material included in these publications shows that ratification of the Convention and the reporting procedure, which involves the Committee providing detailed recommendations to States parties, have stimulated or added momentum to changes to legislation in many fields by which States have sought to bring their national laws into alignment with the Convention obligations. The national case studies highlight the way in which governments, courts and civil society organizations (in particular organizations of persons with disabilities) have engaged constructively with the Concluding observations, General comments and other work of the Committee to achieve the goals of the Convention.

The national case studies and the overview also identify areas where harmonization of national laws still has some way to go, both in terms of amending or reforming laws or in ensuring that legal guarantees bring practical results for persons with disabilities in their everyday lives. I encourage States, civil society organizations and national human rights institutions to continue to review existing laws in all areas to ensure that they are fully compatible with the Convention.

I congratulate ESCAP for initiating this project and commend everyone involved for carrying it through. These publications will provide an extremely useful resource for people in the countries discussed and in other countries who may be looking for innovative ways to ensure that persons with disabilities more fully enjoy their human rights and fundamental freedoms.



Rosemary Kayess

Chairperson of the United Nations Committee on
the Rights of Persons with Disabilities (2021-2023)

¹ Lists of current and former members of the Committee may be found at <https://www.ohchr.org/en/treaty-bodies/crpd/membership>

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Mr. Dhariyal was invited by the National Institute of Labour Economics Research (NILERD), National Institute for Transforming India (NITI Aayog), the premier policy think tank of the Government of India, to participate in evaluating all the schemes of the Government of India for persons with disabilities.

He has compiled a collection of Indian court judgments on disability issues and has contributed to bringing out publications on the human rights regime for persons with disabilities. He continues to be guest faculty in institutes of public administration in various States.

For preparing this case study on the harmonization of India’s domestic legislation and practice with the Convention on the Rights of Persons with Disabilities, the contributions of the following are acknowledged: functionaries of the Department of Empowerment of Persons with Disabilities, Government of India, who provided information; Mr. Subhash Vashishth, Director, CABE Foundation, who assisted in organizing a webinar (27 March 2021), as well as in facilitating research on accessibility and judgements on disability inclusion; participants of the 27 March 2021 webinar.

NOTE ON TERMINOLOGY

Language both reflects and contributes to the way in which disability and persons with disabilities are viewed in our societies. In most societies, the terms historically used to describe persons with disabilities have set them apart, devalued them as human beings and have insulted and degraded them, contributing to prejudice and stereotypes and fear of persons with disabilities and reinforcing their marginalization and exclusion from full participation in society as equal citizens and members of their communities. These terms reflect “ableist” perspectives that involve the “othering” of persons with disabilities, “ideas, practices, institutions and social relations that presume able-bodiedness, and by so doing, construct persons with disabilities as marginalised . . . and largely invisible ‘others’.”² “Ableism against persons with disabilities reflects a preference for species-typical normative abilities leading to the discrimination against them as ‘less able’ and/or as ‘impaired’ disabled people”; it is “supported by the medical, deficiency, impairment categorization of disabled people (medical model)” and “rejects the ‘variation of being’, biodiversity notion and categorization of disabled people (social model).”³

There is increasing awareness of the important impact of language. Thus, persons with disabilities and others have seen changes to the way in which we speak about disability as an essential part of the struggle to bring about equality. Changes in terminology often reflect changes in the underlying concepts that have been used to describe and explain impairment and disability, often in derogatory terms. A fundamental starting principle is that, when we choose how to speak about disability, we must all listen to those of us who live with disability and how we/they speak about ourselves/themselves and the terminology we/they prefer be used. Given that language is culturally embedded and the same term can have different connotations, even amongst different groups of those who speak the same language, there will not necessarily be one term that is preferred in all contexts.

The 2022 United Nations *Disability-Inclusive Communications Guidelines* provide guidance as to appropriate ways to speak and write about persons with disabilities and disability issues, as well as to ensure accessibility of communications in different media.⁴

Different terms are used in different countries and, even in the same country, to describe the same thing. For example, while “persons with disabilities” is used in the Convention and in the United Nations context, in some countries the term “disabled persons” or “disabled people” is preferred by persons with disabilities. Likewise, while the phrases “disabled peoples’ organizations” (“DPOs”) and “persons with disabilities and their representative organizations” (the latter taken from the Convention) have often been used and continue to be used in many countries, the phrase “organizations of persons with disabilities” (“OPDs”) has been embraced by many organizations of persons with disabilities and the United Nations. The term emphasizes that the relevant organizations to be consulted by government to take part in co-design of policy and in policymaking are organizations made up of and led by persons with disabilities.

In the publications that form part of this project, the authors use both the terminology favoured by the United Nations and that used by persons with disabilities and OPDs in those countries. At the same time, because national laws and policies still sometimes retain outmoded and derogatory language, that terminology is referred to when discussing the continued operation of those laws and their consistency with the Convention. In some cases and in some countries, descriptions such as “differently abled persons” which are intended to valorize the abilities of persons with disabilities are used.

² Vera Ann Chouinard, “Making space for disabling differences: Challenging ableist geographies”, *Environment and Planning D: Society and Space*, vol. 15 (1997), pp. 379–380.

³ Gregor Wolbring, “The politics of ableism”, *Development*, vol. 51 (2008), pp. 252–253; Fiona Campbell, “Inciting legal fictions: ‘Disability’s’ date with ontology and the ableist body of the law”, *Griffith Law Review*, vol. 10. No. 1 (2001), pp. 42, 44–45.

⁴ United Nations, “Disability-Inclusive Communications Guidelines”, guidelines (New York, 2022).

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INTRODUCTION

India is the world’s largest democracy and, by June 2023, its population is set to overtake China's by an estimated 3 million. India is a sovereign socialist, secular, democratic republic with a parliamentary form of government which is federal in structure, with unitary features. In addition to the Central (Union) Government, there are 28 States and eight federal (Union) territories. There is a Council of Ministers, headed by the Prime Minister, who advises the President, who is the constitutional head of the country. Similarly, in each State, there is a Council of Ministers headed by the Chief Minister who advises the Governor of each State.

The lawmaking powers have been divided between the Central or Union Government and the States. The Union has exclusive power to make laws on the subjects in the Union List in the Constitution of India,⁵ while the States have exclusive power to make laws on the subjects in the State List.⁶ The third list is the Concurrent List which contains subjects on which both the Union and the States can make laws.⁷ If the Union makes a law on a matter in the Concurrent List, it prevails over the State law.⁸ A State needs special dispensation to legislate on a subject in the Concurrent List, if it is at variance with the legislation made by the Union.⁹ The Union can also make laws on any matter in the national interest and in an emergency.¹⁰

The Parliament (Union) has the power, under Article 253 of the Constitution,¹¹ to make any law for implementing any treaty, agreement or convention with any other country or countries or any decision made at any international conference, association or other body. The Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995¹² (hereinafter referred to as the Persons

with Disabilities Act, 1995) and the Rights of Persons with Disabilities Act, 2016 were enacted by the Union under this provision of the Constitution. Although the subject of disability appears in the State List,¹³ the Government of India has taken the lead in disability matters.

India has the same set of courts to adjudicate upon both Central and State legislation. With the Supreme Court of India at the top of the hierarchy, each State or a group of States has a High Court. The District and Sessions and other subordinate courts function under the respective High Court.

All Central laws are first written in English and subsequently translated into Hindi and other official languages of the States of the Union of India. In case of any doubt, the English version remains the definitive version.

⁵ India, 2022, section 246(1) and Seventh Schedule, “List 1 – Union List”.

⁶ India, 2022, section 246(3) and Seventh Schedule, “List 11 – State List”.

⁷ India, 2022, section 246(2) and Seventh Schedule, “List 111 – Concurrent List”.

⁸ India, 2022, section 254(1).

⁹ India, 2022, section 254(2).

¹⁰ India, 2022, section 250.

¹¹ Notwithstanding anything in the foregoing provisions of this Chapter, Parliament has power to make any law for the whole or any part of the territory of India for implementing any treaty, agreement or convention with any other country or countries or any decision made at any international conference, association or other body.

¹² The long title of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 was “An Act to give effect to the Proclamation on the Full Participation and Equality of the People with Disabilities in the Asian and Pacific Region.”

¹³ India, 2022, Seventh Schedule, “List 11 – State List”, item 9 (“Relief of the disabled and unemployable”).

2 DISABILITY RIGHTS MOVEMENT IN INDIA

The revered place of men with disabilities in Indian culture is exemplified by a blind King, Dhritarashtra,¹⁴ believed to have ruled over 5,000 years ago; the Vedic sage, Ashtavakra, whose name reflects his eight congenital physical impairments; and a blind fifteenth century mystic poet, Sant Surdas. Historically, persons with hearing impairment were assigned to the copying of confidential documents. Barring such exceptions, in general, persons with disabilities have primarily been regarded as recipients of charity, objects of pity and a burden for the family and society.

Modern-day India has seen examples of the Indian Army recognizing the merit of its officers with disabilities. Major-General Ian Cardozo, who lost a leg in war (1971), was not only retained in the Army, but was also given the command of his battalion, promoted five times and retired as Major-General. In 2010, Brigadier SK Razdan, a wheelchair user, was promoted to the rank of Major-General. There are other instances of the authorities recognizing the merit and ability of individuals with disability, even when there was no disability legislation in India. These were, however, individual cases and the State did not have a common policy particularly directed towards a rights-based or empowering approach.

The question of disability was canvassed in all the censuses between 1872 and 1931. Due to doubts about the quality of data, the issue was not canvassed in the decennial censuses of 1941, 1951, 1961 and 1971. A question on disability was re-introduced in 1981. There was large-scale under-counting of persons with disabilities and the Population Census was deemed not to be the best means of collecting information on disability. Hence, the question of disability was not canvassed in the 1991 Census. The question was re-introduced in the 2001 Census because of factors such as the enactment of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 and requests made by Union Ministries, associated with heightened rights awareness of persons with disabilities and demands by disability rights groups.

From the 1970s, persons with disabilities increasingly realized that, unless they demanded their rights and entitlements, the denial of those rights would continue and the benefits would remain confined to a few people in positions of power and privilege. Opportunities for the education of persons with disabilities existed, but were inadequate and confined to special education schools. However, the number of persons with disabilities who could access education gradually increased. Those who had access to education played an important

role in advocating for the rights of persons with disabilities in India. Most of the individuals and the organizations during much of the 1970s and early 1980s were not sufficiently well organized. The Government initiated, on its own, various measures for the rehabilitation and employment of persons with disabilities. Among those was a reservation (quota) of 3 per cent of vacancies in Groups C and D posts (below Officer/non-managerial level) in the civil service.¹⁵

From the 1980s, disability groups started consolidating and joining hands, albeit in single-disability silos. The inability to break out of these silos was an important barrier that undermined the effectiveness of their advocacy. The 1980s saw the enactment of the Rehabilitation Council of India Act, 1982 (also referred to in India as the RCI Act, 1982) and the Mental Health Act, 1987 (also referred to in India as the MH Act, 1987).

With the formation of parents' associations, the issues faced by persons with intellectual disabilities captured the attention of the Government. Civil society organizations emerged¹⁶ that addressed the issues of persons with diverse disabilities. Those organizations, along with the initiation of integrated education and the support of the Ministry of Education, gave added impetus to disability organizations getting together in the 1990s. Many civil society leaders emerged during this period who took strong action, staged protests and engaged in agitation to demand rights.

Advocacy efforts that had started earlier saw the decade of the 1990s being most eventful and fruitful. Hundreds of persons with disabilities campaigned and held demonstrations in front of the premises of the then Ministry of Welfare (renamed in May 1998 as the Ministry of Social Justice and Empowerment). They demanded special recruitment for persons with disabilities and enactment of a disability rights law. Those efforts brought drastic changes to the disability sector and were the beginning of a strong and effective advocacy for recognizing the human rights of persons with disabilities. This singularly determined approach of civil society organizations and groups and the enlightened approach of Government, represented by its support for the Proclamation on the Full Participation and Equality of People with Disabilities in the Asian and Pacific Region,¹⁷ led to the Indian Parliament's enactment of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 (hereinafter referred to as the Persons with Disabilities Act, 1995) which came into force on 7 February 1996. However, the Persons with Disabilities Act, 1995 covered only seven disabilities. Subsequently, due to continuous efforts and strong advocacy by parents' associations, The National Trust for the Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act was enacted in 1999.

With the coming into force of the Persons with Disabilities Act, 1995, the disability sector became more active in demanding imple-

¹⁵ Reservation of one per cent vacancies each for blind persons, deaf persons and persons with orthopaedic disability, respectively, in Groups C and D posts/services (non-executive, lower-level posts in the Departmental hierarchy), in all Central Government Organizations, in accordance with rules laid down by the nodal Department for personnel matters in the Government: Government of India, Department of Personnel and Administrative Reforms, 1994. This Railway Board directive consolidates information and guidance scattered in several circulars/orders (issued between 1977 and 1994) on the reservation of jobs for, and recruitment of, physically handicapped persons in Groups C and D posts on railways. Group D posts are the lowest (basically unskilled or semi-skilled, e.g., attendants); Group C posts require skills (e.g., clerks, technicians and mechanics); Groups B & A are managerial posts in the government hierarchy.

¹⁶ Examples of civil society organizations that emerged in the 1980s include: 1981 - Amar Seva Sangam, Tamilnadu; Amarjyoti Charitable Trust, Delhi; and the Bethany Society, Meghalaya; 1987 - Akshay Pratisthan, Delhi; and Shishu Sarothi, Assam. There are examples of yet older organizations, for example: 1955 - All India Federation of the Deaf; 1970 - National Federation of the Blind.

¹⁷ The Proclamation was adopted by the Meeting to Launch the Asian and Pacific Decade of Disabled Persons, 1993-2002, convened by the Economic and Social Commission for Asia and Pacific, Beijing, 1-5 December 1992. The Government of India participated in that historic Meeting that launched, at the conclusion of the United Nations Decade of Disabled Persons, 1983-1992, the world's first regional decade of disabled persons.

¹⁴ King Dhritarashtra, believed to have ascended to the throne via primogeniture, features in the ancient Indian epic, the *Mahabharata*.

mentation of its provisions. In particular, the demands pertained to the reservations concerning admission to education programmes, in civil service vacancies and in poverty alleviation schemes and the provision of aids and appliances. There were also demands for inclusive education.

At the beginning of the twenty-first century, the disability rights movement became even more active. Civil society organizations federated at State and national levels, became stronger and engaged more effectively in policy formulation and implementation. Persons with disabilities and activists among them approached the State Commissioners for Persons with Disabilities, the Chief Commissioner for Persons with Disabilities, the Tribunals, High Courts and the Supreme Court petitioning them to uphold individual rights, as well as seeking policy change and effective implementation of the provisions of the Persons with Disabilities Act, 1995. Of critical importance was the role that persons with disabilities played in ensuring that the Rights of Persons with Disabilities Bill was introduced in Parliament and enacted. In this advocacy, they adopted diverse means, including demonstrations before the residences of Union Ministers and roadblocks.

India's ratification of the Convention on the Rights of Persons with Disabilities, followed by enactment of the Convention-harmonized Rights of Persons with Disabilities Act, 2016 and the Mental Healthcare Act, 2017, raised considerably the expectations of persons with disabilities. These developments reflected a paradigm shift in the approach of the Government. They yielded a more consultative approach involving civil society actors, with a more conciliatory Government response. There was greater realization on the part of Government officials as duty bearers regarding their obligations.

3 DISABILITY IN INDIA: TERMINOLOGY, DEFINITIONS AND DATA

1. Terminology

This case study generally uses the terminology of the Convention on the Rights of Persons with Disabilities. Hence, it refers to "persons with disabilities." However, when citing or referring to the specific language contained in various laws and policy documents, the original expressions as contained in those laws and documents have been retained. They include the following: "handicapped," "mentally retarded," "differently-abled" and "children with special needs." The deprecatory, ableist and discriminatory implications of some of these terms are acknowledged. Nevertheless, the use of those terms here is dictated by the fact that such terms exist in the original laws, policy documents and rules. In some cases, they reflect attitudes that prevailed at the time of their enactment or adoption, but which have since changed, including in the implementation of the statute in question. In other cases, those problematic terms and attitudes still form part of the legislation in question, including its application.

2. Statistical methodology

The Population Census 2011 collected information on eight types of disability, namely, those pertaining to sight, speech, movement, mental retardation, mental illness, as well as multiple disabilities and any other disabilities. The questions were designed to cover the disabilities included in the Persons with Disabilities Act, 1995 and the National Trust for the Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999. The questions and instructions on disability were finalized after a field trial of selected questions and extensive deliberations with civil society organizations, including organizations of persons with disabilities and nodal Ministries. All the questions were pre-tested. India did not use the Washington Group Questionnaire. The census data collectors (enumerators) were given extensive training. They were instructed to contact persons with disabilities in households which included "normal," "single," "institutional" and "homeless" households and to ask questions on disability about all persons in each household. Wide publicity was given through all available means.

Below: Photos of four means of awareness raising to mobilize community and household cooperation for disability data collection, Population Census 2011.

Two photos of a cycle rickshaw rally by persons with disabilities in Delhi.
Source of the photos on this page: author.

Photo 1A (left). Government officials, wheelchair user leaders of OPDs and a large crowd of allies flag off the cycle rickshaw rally.

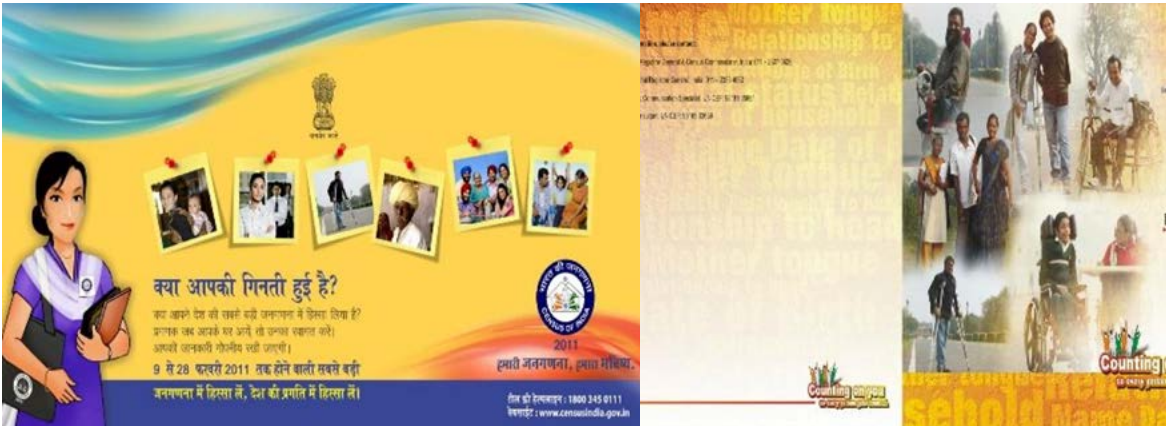
Photo1B (right). Men with mobility impairments ride cycle rickshaws that display banners: raising awareness for cooperation on disability data collection, Population Census 2011.



Two examples of promotional materials used to mobilize cooperation for disability data collection, Population Census 2011.

Photo 2A (left). Poster and banner.

Photo 2B (right). Leaflet for media kit.



3. “Disability” and disability-specific legislation

India’s four major disability-related Acts are listed below.

Administered by the Department of Empowerment of Persons with Disabilities

1. The Rights of Persons with Disabilities Act, 2016 (also referred to in India as the RPwD Act, 2016): This Act entered into force on 19 April 2017, to give effect to the Convention on the Rights of Persons with Disabilities. It replaced the Persons with Disabilities Act, 1995.

Under the Rights of Persons with Disabilities Act, 2016, disability is broadly classified into five categories, namely:

- (a) Blindness and low vision;
- (b) Deafness and hard-of-hearing;
- (c) Locomotor disability, including cerebral palsy, leprosy-cured, dwarfism, acid attack victims and muscular dystrophy;
- (d) Autism, intellectual disability, specific learning disability, and mental illness;
- (e) Multiple disabilities: more than one of the above specified disabilities (a) through (d), including deaf-blindness.

2. The National Trust for the Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999 (hereinafter referred to as the National Trust Act, 1999) enabled the setting up of the Trust:

- (a) to enable and empower persons with disability¹⁸ to live as independently and as fully as possible within and as close to the community to which they

- belong;
- (b) to strengthen facilities to provide support to them to live within their own families;
 - (c) to extend support to registered organisations to provide need based services during period of crisis in the family of persons with disability;
 - (d) to deal with problems of persons with disability who do not have family support;
 - (e) to promote measures for the care and protection of persons with disability in the event of death of their parents or guardians;
 - (f) to evolve procedures for the appointment of guardians and trustees for persons with disability requiring such protection;
 - (g) to facilitate the realisation of equal opportunities, protection of rights and full participation of persons with disability; and
 - (h) to do any other act which is incidental to the aforesaid objects.”¹⁹

The Act is under active review for harmonization with the Convention on the Rights of Persons with Disabilities.

3. The Rehabilitation Council of India Act, 1992 (also referred to in India as the RCI Act, 1992):

The Council regulates and monitors the training of rehabilitation professionals and personnel and promotes research in rehabilitation. It is tasked with the determination of minimum standards of rehabilitation education, recognition of rehabilitation qualifications and institutes and registration of professionals, as well as determination of the privileges and professional conduct of registered persons.

¹⁸ Persons with one or more of the four disabilities specified in the title of the National Trust Act, 1999.

¹⁹ India, 1999, Chapter III. Objects of the Trust, section 10 (a) through (h).

This Act is in the process of being harmonized with the Convention on the Rights of Persons with Disabilities.

Administered by the Ministry of Health and Family Welfare

The Mental Healthcare Act, 2017 (also referred to in India as the MHC Act, 2017): The Mental Healthcare Act, 2017 came into effect on 29 May 2018. It replaced the Mental Health Act of 1987 which did not recognize the rights of persons with mental illness and did not make it illegal to isolate mentally ill patients who posed a danger to others. The Mental Healthcare Act, 2017 was enacted to harmonize the Mental Health Act, 1987 with the Convention on the Rights of Persons with Disabilities. It provides for protection of the rights of persons with mental illness, ensures access to treatment and, by an advance directive, a person with mental illness can decide on the treatment to be given. The new Act decriminalizes attempted suicide by a person with mental illness.

4. Definitions of “disability”

The definitions of disability, as stipulated in the Persons with Disabilities Act, 1995 and the National Trust Act, 1999, were used for the Population Census 2011. The definition of each type of disability used for the conduct of Population Census 2011 is in Annex 1. The definition of each disability was based on medical conditions and their related impact on functioning.

Under the now repealed Persons with Disabilities Act, 1995, “disability” covered the following:

- 1. Blindness
- 2. Low vision

- 3. Leprosy-cured
- 4. Hearing impairment
- 5. Locomotor disability
- 6. Mental retardation, and
- 7. Mental illness.²⁰

The National Trust Act, 1999 defines a “person with disability” as a “person . . . suffering from any of the conditions relating to autism, cerebral palsy, mental retardation or a combination of any two or more of such conditions”²¹ and includes a person suffering from severe multiple disability.” “Multiple disabilities’ means a combination of two or more disabilities as defined in clause (i) of section 2 of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 (1 of 1996).”

The enactment of the Rights of Persons with Disabilities Act, 2016 introduced important changes in the definitions of “disability” and “person with disability.” The Rights of Persons with Disabilities Act, 2016 contains definitions of “person with disability,” “person with benchmark disability” and “person with high support needs.”

In the Rights of Persons with Disabilities Act, 2016:

- Section 2(s) defines a “person with disability” as a person with long-term physical, mental, intellectual or sensory impairment which, in interaction with barriers, hinders his full and effective participation in society equally with others.” This reflects a paradigm shift from a purely medical approach towards a social model and rights-based understanding of disability.
- Section 2 (r) states a “person with benchmark disability” “means a person with

not less than forty per cent of a specified disability where specified disability has not been defined in measurable terms and includes a person with disability where a specified disability has been defined in measurable terms, as certified by the certifying authority;”

- Section 2 (t) defines a “person with disability having high support needs” as meaning a person with benchmark disability certified under clause (a) of sub-section (2) of section 58 who needs high support;”

Persons with benchmark disabilities and high support needs are entitled to benefits such as quotas in admission to higher education courses, Government jobs and other benefits having financial implications under the Rights of Persons with Disabilities Act, 2016 and schemes of the Government.

The human rights-based definition of “person with disability” in the Rights of Persons with Disabilities Act, 2016 is not reflected in the procedure for assessment and certification of persons with diverse disabilities – which gives access to certain benefits – or in the methodology described above for obtaining statistics about persons with disabilities in the national censuses.²² The latter is based largely on the medical model. This was one of the concerns of the Committee on the Rights of Persons with Disabilities expressed in its 2019 Concluding observations on the initial report of India.²³ The Committee has urged the Government to reform the guidelines for assessing and certifying disability to bring them in line with the human rights model of disability.²⁴ However, this is not likely to be implemented anytime soon because of the limitation of

resources required to support the huge number of persons with disabilities. Hence, benchmarking in the way decided by the Government at present for various benefits seems unavoidable. For example, a rail travel concession is extended to persons with diverse disabilities based on the extent of disability and the need for human assistants to travel (certified by a doctor of a government hospital). While efforts are ongoing to remove all barriers from the environment, it would take time to do so in the case of a country the size of India with its diversity.

The Government of India has largely addressed the Committee’s recommendation in its Concluding observations (para 7(c)) about the elimination of derogatory terminology and concepts relating to persons with disabilities from legislation, policies, government regulations and websites and from public discourse. The terminology of the Convention on the Rights of Persons with Disabilities has been used in the harmonization of important pieces of legislation. The National Institutes have been renamed. All concerned, including civil society organizations, have been accordingly advised by the Department of Empowerment of Persons with Disabilities and the Chief Commissioner for Persons with Disabilities.

²⁰ India, 1995, section 2(i).

²¹ India, 1999, section 2(j).

²² The Ministry of Statistics and Programme Implementation conducted a survey of persons with disabilities in its 76th round (July-December 2018). It classified persons with disabilities according to the definitions used in the Rights of Persons with Disabilities Act, 2016. It found that the overall percentage of persons with disabilities in the population was 2.2 per cent: 2.3 per cent in rural areas and 2.0 per cent in the urban areas. Government of India, Ministry of Statistics and Programme Implementation, National Statistics Office, 2019, p. i.

²³ Committee on the Rights of Persons with Disabilities, 2019a.

²⁴ Committee on the Rights of Persons with Disabilities, 2019a, para 7 (b).

4

POPULATION OF PERSONS
WITH DISABILITIES IN INDIA:
STATISTICAL BREAKDOWN

1. Overview

According to the 2011 Census, the total population of India was 1.21 billion. Of this, 26.8 million persons (2.21 per cent of the total population) lived with disability.²⁵ The number of persons with disabilities in India, by the most conventional estimates, exceeds the total population of more than 177 other countries. Most Indians with disabilities (69 per cent or 18.6 million) reside in rural areas, with 31 per cent (8.2 million) in urban areas.

Table 1
Type of disability by gender

MEN AND WOMEN BY TYPE OF DISABILITY			
Type of Disability	Persons	Males	Females
Sight	5,032,463 (18.8 per cent)	2,638,516 (17.6 per cent)	2,393,947 (20.2 per cent)
Hearing	5,071,007 (18.9 per cent)	2,677,544 (17.9 per cent)	2,393,463 (20.2 per cent)
Speech	1,998,535 (7.5 per cent)	1,122,896 (7.5 per cent)	875,639 (7.4 per cent)
Movement	5,436,604 (20.3per cent)	3,370,374 (22.5 per cent)	2,066,230 (17.5 per cent)
Mental retardation	1,505,624 (5.6 per cent)	870,708 (5.8 per cent)	634,916 (5.4 per cent)
Mental illness	722,826 (2.7 per cent)	415,732 (2.8 per cent)	307,094 (2.6 per cent)
Any other (disabilities not listed in the question or informant was not sure about the type of disability)	4,927,011 (18.4 per cent)	2,727,828 (18.2per cent)	2,199,183 (18.6per cent)

²⁵ According to the *World Report on Disability 2011*, about 15 per cent of the world's population (over a billion people, including children) were estimated to be living with disability: World Health Organization and the World Bank, 2011, p. 23. At this prevalence rate, India's head count of persons with disabilities (out of 1.21 billion in 2011) ought to be around 190 million. The discrepancy presumably is due to differences in the definitions of disability for various purposes.

Table 1 Continued

MEN AND WOMEN BY TYPE OF DISABILITY			
Type of Disability	Persons	Males	Females
Multiple disabilities	2,116,487 (7.9 per cent)	1,162,604 (7.8 per cent)	953,883 (8.1 per cent)
Total	26,810,557 (100 per cent)	14,986,202 (100 per cent)	11,824,355 (100 per cent)

Source: C-Series, Table C-20, Population Census of India 2011

The percentage of males in the overall population of persons with disabilities is 55.9 per cent, as compared with 44.1 per cent in the case of females. Table 2 shows the number of persons with disabilities and percentage of overall population by gender and residence.

Table 2
Persons with disabilities by gender and residence (2011)

RESIDENCE	PERSONS	MALES	FEMALES
Rural	18,631,921 (2.24)	10,408,168 (2.43)	8,223,753 (2.03)
Urban	8,178,636 (2.17)	4,578,034 (2.34)	3,600,602 (1.98)
Total	26,810,557 (2.21per cent)	14,986,202 (2.41)	11,824,355 (2.01)

Source: C-Series, Table C-20, Population Census of India 2011

According to the Population Census 2011, there were nearly 104 million older persons (60 years of age and above) in India, 53 million females and 51 million males. As of the Population Census 1991, the number of older males aged over 80 exceeded the number of females aged over 80. In the past two decades, however, the trend has been reversed and females aged over 80 outnumbered males aged over 80.²⁶ This is also true for older persons with disabilities, as may be seen from Table 3.

Table 3
Number of persons with disabilities by gender and age cohort

PROPORTION OF DISABLED POPULATION IN THE RESPECTIVE AGE GROUPS			
Age Group	Persons	Males	Females
All Ages	2.21	2.41	2.01
0-4	1.14	1.18	1.11
5-10	1.54	1.63	1.44

²⁶ Government of India, Ministry of Statistics and Programme Implementation, Central Statistical Office, 2016. See also Government of India, Ministry of Statistics and Programme Implementation, National Statistical Office, 2021a.

Table 3 Continued

PROPORTION OF DISABLED POPULATION IN THE RESPECTIVE AGE GROUPS			
Age Group	Persons	Males	Females
10-19	1.82	1.96	1.67
20-29	1.97	2.22	1.70
30-39	2.09	2.41	1.77
40-49	2.31	2.66	1.94
50-59	2.83	3.16	2.47
60-69	4.15	4.41	3.89
70-79	6.22	6.26	6.19
80-89	8.41	8.33	8.48
90+	8.40	7.88	8.85
Age Not Stated	3.07	3.21	2.91

Source: C-Series, Table C-20, Population Census of India 2011

2. Children with disabilities: total number and percentage

There was a total of 6,572,999 children with disabilities in the age group of 5 to 19 years. Of that total, 56.17 per cent (3,692,554) were boys and 43.82 per cent (2,880,445) were girls. The National Sample Survey of Estimation (September 2014) of Out-of-School Children in the Age Group of 6-13 India²⁷ found, inter alia, that children with disabilities constituted 1.05 per cent (2,139,943). While the total percentage of out-of-school children for all children was 2.97 per cent, the percentage of children with disabilities who were not attending school was 28.07 per cent, almost 10 times that of out-of-school children without disabilities.

Table 4
Out-of-school children with disabilities: type of disability

TYPE OF DISABILITY	PREVALENCE (PER CENT)
Multiple disabilities	44.13
Mental ²⁸	35.97
Speech	34.82
Hearing	19.31
Locomotor	23.72
Vision	17.64

Source: National Sample Survey of Estimation (September 2014) of Out-of-School Children in the Age Group of 6-13 India

²⁷ Commissioned by Educational Consultants (India) Limited (EdCIL), a central public sector undertaking under the administrative control of the then Ministry of Human Resource Development (subsequently renamed the Ministry of Education) and conducted by the Social and Rural Research Institute – Indian Market Research Bureau (IMRB). Social & Rural Research Institute, 2014.

²⁸ "Mental" (disability) refers to children who had difficulty understanding routine instructions.

3. Persons with disabilities disaggregated by urban/ rural residence and socio-economic status

As per the Population Census 2011, 69 per cent (18.6 million) of persons with disabilities resided in rural areas and 31 per cent (8.2 million) in urban areas. The Census data also show that disability related to vision, hearing, speech, mental retardation (intellectual disability) and mental illness was more prevalent in urban areas, whereas disability related to mobility, as well as multiple disabilities, was more prevalent in rural areas.

In both rural and urban areas, women and girls with disability have lower levels of literacy than men with disability. There are higher levels of literacy and educational attainment among both men and women living in urban areas, as compared with their counterparts living in rural areas. However, there is a significant disparity in literacy between persons with disability (55 per cent) and the average across the whole population (74 per cent). Just 13 per cent of the population with disabilities had completed matriculation (final year of the 10th class) / secondary school education and 5 per cent had higher education (undergraduate and postgraduate) qualifications.

In rural India, only 49 per cent of persons with disabilities were literate, as against 67 per cent in urban areas.²⁹ The huge gap of 18 per cent in the literacy rate among persons with disabilities, as compared to others, leaves them far behind the latter in all walks of life, including accessing most of their rights and entitlements.

The Population Census 2011 revealed that, overall, 36 per cent of all persons with disabilities were "workers." Workers were classified as main workers and marginal workers. Main workers are those who worked for six months (183 days) or more, including salaried persons in Government or in the private sector. Those who worked for less than six months (less than 183 days) in a year are termed as marginal workers.³⁰ Overall, 23 per cent of females with disabilities were working, as against 47 per cent of their male peers. In rural areas, the situation of females with disabilities was slightly better: 25 per cent were working, as compared to only 16 per cent in urban areas.³¹

4. Most prevalent types of disability in India

As indicated in Table 5 below, the three most prevalent types of disability reported to 2011 census data enumerators were in the categories of "locomotor, hearing and vision." The lower rate for "intellectual" (disability) and "mental illness" may be associated with levels of next-of-kin readiness to seek intervention, fear of discrimination, compulsion to hide the disability of the family member, availability of experts to assess and certify, and other such parameters. The association with the above-mentioned parameters for these disabilities could be stronger than for the three categories of physical and sensory disability.

²⁹ Government of India, Ministry of Statistics and Programme Implementation, Social Statistics Division, 2017, p. 28. See also Government of India, Ministry of Statistics and Programme Implementation, National Statistical Office, Social Statistics Division, 2021b.

³⁰ Government of India, Ministry of Labour & Employment, Labour Bureau, 2014.

³¹ Government of India, Ministry of Statistics and Programme Implementation, Social Statistics Division, 2017, p. 30.

Table 5
Most prevalent types of disability in India as per the Population Census 2011

TYPES OF DISABILITY	PREVALENCE (%)
Locomotor	20.3
Hearing	18.9
Vision	18.8
Multiple disabilities	7.9
Speech	7.5
Intellectual	5.6
Mental illness	2.7

5

INTERNATIONAL OBLIGATIONS AND DOMESTIC LAW

1. Signature and ratification of the Convention on the Rights of Persons with Disabilities and other United Nations human rights treaties

India signed the Convention on the Rights of Persons with Disabilities on 30 March 2007, the day that it was opened for signature, and ratified it on 1 October 2007. India did not make any declarations or reservations when it ratified the Convention on the Rights of Persons with Disabilities. India has not become party to the Optional Protocol to the Convention on the Rights of Persons with Disabilities; the reason put forward for not doing so is that India has robust domestic mechanisms for the redress of grievances of persons with disabilities and for enforcement.

In addition to the Convention on the Rights of Persons with Disabilities, India has also signed and ratified other international human rights treaties: the International Covenant on Civil and Political Rights; International Covenant on Economic, Social and Cultural Rights; International Convention on the Elimination of All Forms of Racial Discrimination; Convention on the Elimination of All Forms of Discrimination against Women; and the Convention on the Rights of

the Child. In 2005, India ratified the two Optional Protocols to the Convention on the Rights of the Child. However, India has not accepted any of the individual or inquiry procedures under the United Nations human rights treaties to which it is party.

2. The status and use of international treaties under domestic law

Article 253 of the Indian Constitution stipulates that:

“Parliament has power to make any law for the whole or any part of the territory of India for implementing any treaty, agreement or convention with any other country or countries or any decision made at any international conference, association or other body.”

The Indian legal system starts from the traditional dualist position that treaties to which India becomes a party by ratification or accession do not automatically become part of

domestic law and are not as such enforceable before the domestic courts until they have been transformed into domestic law by the legislature.³² However, in practice, this position has been significantly modified and the Indian courts make more extensive use of unincorporated treaties than courts in many comparable common law jurisdictions.

In *Entertainment Network (India) Ltd v Super Cassette Industries*,³³ the Supreme Court identified six ways in which the courts may use international treaties:

- (i) as a means of interpretation;
- (ii) justification or fortification of a stance taken;
- (iii) to fulfil spirit of international obligations which India has entered into, when they are not in conflict with the existing domestic law;
- (iv) to reflect international changes and reflect the wider civilization;
- (v) to provide a remedy contained in a covenant, but not in a national law; and
- (vi) to fill gaps in municipal law.³⁴

These broadly correspond to the types of techniques accepted by other common law courts, although (iv) and (v) are interpreted more expansively by Indian courts than by some other common law courts.

The courts have moved beyond these more limited techniques to draw directly on unincorporated treaties to which India is party and have deployed them to fill gaps in domestic law or fill out the content of domestic provisions,

provided there is no conflicting national law. In this regard, an important influence is Article 51(c) of the Constitution, which provides that the State shall endeavour to “foster respect for international law and treaty obligations in the dealings of organised peoples with one another; and encourage settlement of international disputes by arbitration.” The courts have seen this as providing a mandate to take steps to ensure that Indian law is interpreted in accordance with international obligations as far as possible, unless there is domestic legislation that is directly inconsistent with the application of those standards. This includes but goes beyond the well-accepted doctrine that constitutional rights, guarantees and the provisions of statutes should be interpreted consistently with international law obligations where such interpretations are reasonably open on the wording of the provisions. In some cases, the courts have been prepared to fill gaps in existing legislative schemes, including developing rules or guidelines to give detailed content to constitutional or statutory provisions, so that they clearly give effect to the relevant international obligation and can be relied on in domestic law. The limit to this technique is that doing so must not conflict with existing domestic legislation.

A leading example of this approach is the well-known case of *Vishaka v State of Rajasthan* (1997)³⁵ before the Supreme Court of India. The case arose out of the rape of a social worker, an employee of a State Government, who had been attacked by a member of the concerned family as a reprisal for her work in stopping a child marriage. On various pretexts, the Police Department delayed its investigation and failed to file a criminal case against the alleged offenders. A constitutional class

action was brought by various civil society organizations, based on various articles of the Constitution, including Articles 14 (equality), 19 (right to work) and 21 (right to life), seeking to enforce these rights for women in the context of employment.

The Supreme Court held that the primary responsibility for ensuring the safety and dignity of women in employment lay with the Parliament and executive through legislative protection and a remedial framework. However, where there was a legislative vacuum, the Court had the power, under the Constitution, to provide a remedy by way of promulgating guidelines. The Court drew on the Convention on the Elimination of All Forms of Discrimination against Women and the General comment 19 on violence against women (1991) of the United Nations Committee on the Elimination of Discrimination against Women to fashion a regulatory regime, the *Vishaka Guidelines*, pending the enactment of legislation on the topic by Parliament (which eventuated only in 2013).³⁶ The Court wrote:³⁷

“In the absence of domestic law occupying the field, to formulate effective measures to check the evil of sexual harassment of working women at all work places, the contents of international Conventions and norms are significant for the purpose of interpretation of the guarantee of gender equality, right to work with human dignity in Arts. 14, 15, 19 (1) (g) and 21 of the Constitution and the safeguards against sexual harassment implicit therein. Any

International Convention not inconsistent with the fundamental rights and in harmony with its spirit must be read into these provisions to enlarge the meaning and content thereof, to promote the object of the constitutional guarantee.”

Shreya Atrey writes that “this approach—of directly implementing international obligations via constitutional interpretation of fundamental rights, in the absence of domestic law on the subject or any other conflicting law—has been widely accepted by Indian courts since *Vishaka*.”³⁸ A recent significant example is *Justice K S Puttaswamy (Retd) v Union of India*,³⁹ which dealt with the issue of whether the Constitution (in particular Article 21) guaranteed a right to privacy, where the Supreme Court wrote:

“In the view of this Court, international law has to be construed as a part of domestic law in the absence of legislation to the contrary and, perhaps more significantly, the meaning of constitutional guarantees must be illuminated by the content of international conventions to which India is a party.”

The courts have taken into account not only India’s international obligations under customary international law and ratified but unincorporated treaties, but have also drawn on treaty provisions not binding on India, as well as on non-binding instruments, to interpret constitu-

³² “International conventional law must go through the process of transformation into the municipal law before the international treaty can become an internal law.” Supreme Court of India, 1980 (Justice V R Krishnaier for the Court).

³³ Supreme Court of India, 2008.

³⁴ Ibid.; Atrey, 2018, pp. 188-189.

³⁵ Supreme Court of India, 1997.

³⁶ India, 2013.

³⁷ Supreme Court of India, 1997, para. [7].

³⁸ Atrey, 2018, p. 188.

³⁹ Supreme Court of India, 2017, paras. 91 and 129–133 (per Justice D Y Chandrachud). See Supreme Court of India, 2014, especially para. 51.

⁴⁰ Supreme Court of India, 2017, para. 91 (per Justice D Y Chandrachud J).

tional and statutory provisions. Furthermore, as a more general principle of interpretation, the courts interpret statutes in an expansive and liberal manner, so as to maximize the intended benefit to the person for whose protection and benefit the law has been enacted.⁴¹ When there is more than one possible way of interpreting a word or a provision, it is but reasonable to interpret it in a way that gives maximum protection and relief, particularly to a socially marginalized section of society or person. And, as noted, where a statute refers to an international treaty or is clearly intended to implement it, the courts will interpret its provisions in a manner consistent with the treaty to the extent that the language of the statute permits. The case law in relation to the rights of persons with disabilities and the use made of the Convention on the Rights of Persons with Disabilities in particular is discussed below.

3. Legislation and rules that give effect to the provisions of the Convention on the Rights of Persons with Disabilities

The Rights of Persons with Disabilities Act, 2016 replaced the Persons with Disabilities Act, 1995, while the Mental Healthcare Act, 2017 replaced the Mental Health Act of 1987. Both new laws were part of the process of harmonization of Indian law with the Convention on the Rights of Persons with Disabilities and explicitly refer to the treaty.

Thus, the Rights of Persons with Disabilities Act, 2016 explicitly mentions that it is:

“An Act to give effect to the United Nations Convention on the Rights of Persons with Disabilities and for matters connected therewith or incidental thereto.”

The Preamble of the Mental Healthcare Act, 2017 inter alia reads:

“AND WHEREAS it is necessary to align and harmonise the existing laws with the said Convention.”

4. Comprehensive study to assess compliance with the Convention on the Rights of Persons with Disabilities

The Ministry of Social Justice and Empowerment, Government of India, established a committee to study and assess gaps in disability-specific domestic laws vis-à-vis the Convention on the Rights of Persons with Disabilities. Organizations of and for persons with disabilities, as well as technical experts also studied the gaps. Based on such studies and the outcome of its own assessment, the Ministry reached the conclusion that mere amendment of the main Persons with Disabilities Act, 1995 and the Mental Health Act, 1987 would not fulfil the requirements of the Convention on the Rights of Persons with Disabilities. It thus decided to repeal both and replaced them with the Rights of Persons with Disabilities Act, 2016 and the Mental Healthcare Act, 2017.

However, no specific comprehensive study or audit was conducted to assess the extent, in practice, of overall compliance with the Convention on the Rights of Persons with Disabilities. The Government approach has been to make available to persons with disabilities the facilities that are available to others as a matter of right.

The status of implementation of the Rights of Persons with Disabilities Act, 2016 is reviewed by the Central Advisory Board on Disability (also referred to in India as CAB), headed by the Minister in-charge of the Department of Empowerment of Persons with Disabilities in the Central Government, and the State Advisory Boards on Disability (also referred to in India as SABs), headed by the Minister in-charge of the Department that deals with disability matters in the responsible State Government. The Act provides that these Boards are to meet once every six months. The minutes of meetings of the Central Advisory Board on Disability are posted online; thus far, the minutes of four meetings⁴² are available for access by the public.⁴³ The Chief Commissioner for Persons with Disabilities and the State Commissioners for Persons with Disabilities are also mandated under the Rights of Persons with Disabilities Act, 2016 to perform roles that include monitoring the implementation of the Act.

However, a concerted attempt does not appear to have been made yet to assess comprehensively the apparent gaps in the law, policy and practice on the ground.

5. Increasing awareness about the Convention on the Rights of Persons with Disabilities

After India signed and ratified the Convention on the Rights of Persons with Disabilities, stakeholders organized workshops, conferences and other awareness-raising programmes across the country. Stakeholders that were particularly active in this regard included the Department of Empowerment of Persons with Disabilities (nodal Department for the Convention), Government apex disability entities, such as the Office of the Chief Commissioner for Persons with Disabilities, the National Trust,⁴⁴ the Rehabilitation Council of India, the national institutes for persons with diverse disabilities, the State Commissioners for Persons with Disabilities, the National Human Rights Commission, as well as civil society organizations of and for persons with disabilities.

The National Trust envisioned “*Badhte Kadam*” (the “Soaring Steps”) as a pan-India campaign for awareness raising of the rights of persons with disabilities. Along with the mass media and civil society partners, the National Trust used social networking websites to spread the “*Badhte Kadam*” message.

National- and State-level Government and civil society organizations contributed significantly to awareness-raising about the Convention on the Rights of Persons with Disabilities and its implications for a rights-based narrative in the country, the promotion of the rights of persons with disabilities and the development of legislation aligned with the Convention.

⁴¹ Ranjan and others, 2016.

⁴² Those of 13 February 2018, 5 October 2018, 19 September 2019, 26 November 2020: Government of India, Ministry of Social Justice and Empowerment, Department of Empowerment of Person with Disabilities (Divyangjan), n.d.c.

⁴³ Government of India, Ministry of Social Justice and empowerment, Department of Empowerment of Person with Disabilities (Divyangjan), n.d.c.

⁴⁴ “National Trust” refers to the National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disability constituted under sub-section 3(1) of the National Trust for the Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999. India, 1999.

In order to assist the Government in fulfilling its obligation to harmonize domestic laws with the Convention, in 2010, a coalition of the Human Rights Law Network, the National Association of the Deaf and the Deaf Way Foundation initiated a series of consultations with persons with disabilities and their organizations on the changes required to Indian laws to fulfil the mandate of the Convention. The outcome of their efforts was a detailed report entitled “Harmonizing Laws with the UNCRPD.”⁴⁵ It contained suggestions for amendment or replacement of the existing disability-specific laws, such as the Persons with Disabilities Act, 1995. The report also examined 60 other laws that adversely affected disability rights by expressly excluding persons with disabilities or by failing to incorporate disability-inclusive principles. The report recommended repeal of those disability-specific provisions in general legislation that discriminated against persons with disabilities and the incorporation of disability-inclusive principles of accessibility, reasonable accommodation, and supported decision-making in general legislation. Many of those recommendations have found a place in the Rights of Persons with Disabilities Act, 2016 and the Mental Healthcare Act, 2017.

Many other civil society organizations and activists also contributed by organizing workshops. Ratification of the Convention spurred momentum and energy, generating much activity. Several organizations, in addition to the nodal Department, moved swiftly to prepare a comparative statement of the provisions of the Persons with Disabilities Act, 1995, other disability-specific legislation and mainstream legislation, including the Constitution. Those analyses ranged from enumerating the provisions to raise awareness to suggesting amendments to, and replacement of, provisions in existing legislation. This created a vibrant environment

in which more enlightened civil society stakeholders participated, along with Government functionaries. The enthusiasm and excitement were clearly palpable. Some civil society organizations also conducted demonstrations and “*Dharnas*” (sit-ins) to urge inclusion of rights and benefits in the new legislation. The Government proactively included a good number of persons with diverse disabilities, civil society organization representatives of the disability sector, along with Government representatives in a committee to draft the Rights of Persons with Disabilities Bill under the Chairpersonship of Dr. Sudha Kaul, the Founder-Trustee of the Indian Institute of Cerebral Palsy (also referred to in India as IICP), Kolkata. The media contributed by covering the activities relating to harmonization of laws with the Convention.⁴⁶ At the outset, the political leadership, other than those politicians directly concerned with disability matters, did not get involved. However, when the Rights of Persons with Disabilities Bill was introduced in Parliament, the political leadership of all parties exhibited a refreshingly supportive approach and facilitated the passage of the Bill without much political opposition.

Civil society organizations and disability activists played an active role in ensuring the inclusion, in the Bill, of more rights-based provisions. Many of them organized demonstrations in support of provisions ranging from increasing quotas in employment, admissions and housing, to legal capacity, supported guardianship, and the establishment of a Commission. Overall, the media focused on the situation of person(s) with disabilities that made for better sales. There was no serious discussion in the media specifically on the provisions of the Convention and their implications. The media did not make any attempt to influence decision-makers or to generate strong public

opinion on any issue concerning the rights of persons with disabilities.

6. National focal point and coordination mechanism

In 2012, to bring disability rights issues centre stage and address the growing needs of persons with disabilities, the Government of India created a separate Department named the Department of Empowerment of Persons with Disabilities (also referred to in India as DEPwD).

The Department of Empowerment of Persons with Disabilities acts as the:

1. National focal point for disability matters, including for implementation of the Convention on the Rights of Persons with Disabilities.
2. Nodal agency to look after all aspects of the development agenda of persons with disabilities.

The Department of Empowerment of Persons with Disabilities exists to facilitate the empowerment and inclusion of persons with disabilities. Its means of doing so include various Acts/ Institutions/Organizations and Schemes for rehabilitation. It also includes the creation of an enabling environment that would provide equal opportunities for and protection of the rights of persons with disabilities, as well as enabling the participation of persons with disabilities as independent and productive members of society. The empowerment process covers prevention and early detection of disabilities, intervention, education, health, vocational training, rehabilitation and social integration.

⁴⁵ Dhanda and Raturi, eds., 2010.

⁴⁶ See, for example, Press Trust of India, 2015; Zeenews, 2010; and The Economic Times, 2016.

6 REPORTING PROCEDURE UNDER THE CONVENTION

1. Submission of India's initial report to and its review by the Committee on the Rights of Persons with Disabilities

The initial report of India on its implementation of the Convention on the Rights of Persons with Disabilities was submitted in June 2015 and received by the United Nations on 3 August 2015.⁴⁷ The Committee on the Rights of Persons with Disabilities considered the initial report at its meetings held on 2 and 3 September 2019 and adopted its Concluding observations on 18 September 2019.⁴⁸ The Department of Empowerment of Persons with Disabilities held consultations with disability organizations before preparing the initial report. There have been no additional consultations following the issuance of the Concluding observations of the Committee on the Rights of Persons with Disabilities.

2. National Human Rights Commission engagement with the Committee on the Rights of Persons with Disabilities

The National Human Rights Commission of India also engaged with the reporting process and the Committee on the Rights of Persons with Disabilities. In March 2019, after the submission of the Government report but before the hearing in September 2019, it submitted a report⁴⁹ to the Committee to provide background information to assist the Committee in drawing up its list of questions (list of issues⁵⁰) on the initial report to send to the Government. It also submitted a further report to the Committee before the hearing in September 2019,⁵¹ and its representative participated in person at the hearing.

The Commission brought out major issues of inadequate implementation of the rights of persons with disabilities, the potential for misuse of section 3 (3) of the Rights of Persons with Disabilities Act, 2016 (discrimination against persons with disabilities may be justified, if

adopted with the purposes of achieving a legitimate aim), the need to mainstream the rights of women and girls with disabilities in legislation, and the need for training specialists and staff working with persons with disabilities. It stressed the need for scaling up community-based inclusive development. The Commission also highlighted the need for harmonizing other disability-specific laws and policies with the Convention on the Rights of Persons with Disabilities, for example, the National Policy for Persons with Disabilities, 2006.

3. Civil society organization shadow reports

Some 10 civil society organizations submitted "shadow" or alternate reports or briefing materials on specific issues to the Committee on the Rights of Persons with Disabilities. The issues addressed included inclusive education, the need to end corporal punishment of children with disabilities, protection of intersex persons, and specific issues concerning women and girls with disabilities.⁵²

4. Follow-up to the Concluding observations

After receiving the Committee's Concluding observations, the Department of Empowerment of Persons with Disabilities engaged in inter-Departmental consultations for follow-up action on the Committee's recommendations, and a consultation process was to be followed with all other stakeholders for preparation of the next report.⁵³ However, thus far⁵⁴ no infor-

mation was available in the public domain. As of late 2021, civil society organizations had not advocated for comprehensive action on the implementation of all the recommendations of the Committee on the Rights of Persons with Disabilities. However, some individuals had approached the authorities, including the courts, to raise specific issues during the reporting process, about which the Committee had expressed concern. One example relates to efforts by public authorities to move away from the use, for official purposes, of derogatory, demeaning or patronizing language in referring to persons with disabilities. This involved the renaming of official bodies such as the national institutes for persons with diverse disabilities and the government department primarily responsible for disability issues and the removal of offensive terms from some, though not all, legislation.

One of the issues was the adoption of the Hindi expressions "*Divyang*" and "*Divyangjan*" (persons with divine organs) for persons with disabilities in order to replace a clearly derogatory expression such as "*viklangjan*" (handicapped persons). However, some persons with disabilities took exception to this change on the ground that the use of these expressions was "misleading and patronizing," had not involved proper consultation with persons with disabilities and was opposed by disability organisations.⁵⁵ Supporters of the change, including the Government, pointed out that it had been adopted after a process of consultation with the States and Union Territories and claimed that it was intended "to create an environment of dignity and respect for" persons with disabilities.⁵⁶ The Committee on the Rights of Persons with Disabilities had raised concerns about the connotations of this terminology in its list of

⁴⁷ Committee on the Rights of Persons with Disabilities, 2017.

⁴⁸ Committee on the Rights of Persons with Disabilities, 2019a.

⁴⁹ National Human Rights Commission of India, 2019a.

⁵⁰ Committee on the Rights of Persons with Disabilities, 2019b. For the replies of the Government of India, see Committee on the Rights of Persons with Disabilities, 2019c.

⁵¹ National Human Rights Commission of India, 2019b.

⁵² For details and links to the reports see United Nations, n.d.

⁵³ Personal communication of the author with the responsible Government officials (February 2021).

⁵⁴ As of early May 2022.

⁵⁵ Sahu and Sahu, 2018, p. 1; Dhawan and Karpagam, 2021, pp. 234-236.

⁵⁶ Sahu and Sahu, 2018, p. 1.

issues on India's initial report (as well as the continuing use of other derogatory terminology such as "mental retardation" in legislation).⁵⁷ The Government had responded that the terminology was not derogatory and was supported by persons with disabilities.⁵⁸ In its Concluding observations, the Committee noted that the use of the terms was "still controversial"⁵⁹ and urged continuing review and amendment of legislation containing derogatory terms.⁶⁰ In 2020 Mayavan Karpagam, an advocate at the Madras High Court, and others brought a public interest litigation to challenge the use of the terms '*Divyang*' and *Divyangjan*'⁶¹ as inconsistent with the guarantees of dignity and equality of persons with disabilities. They sought an order that the respondents remove this terminology and the term "mental retardation" or any such derogatory terminology from use in all legislation and public documents. In relation to the use of "*Divyang*", the petitioners argued that the move to adopt this terminology was not supported by persons with disabilities. The Government and the Chief Commissioner for the Rights of Persons with Disabilities, in responding to the petition, made similar arguments to those they had presented to the Committee on the Rights of Persons with Disabilities.

When the issue was taken up with the Court, it dismissed the petition in a brief order, accepting the submissions of the Government that "*Divyangjan*" actually means persons with divine powers and that there had been a process of consultation with the States and Territories. The Court concluded that the word "*Divyangjan*" could not be viewed as derogatory to persons with disabilities and observed that

"while the effort of the petitioner is appreciated to ensure that otherwise abled persons or persons with disabilities are not demeaned or treated as pariah as a result of the manner of description of such persons, the greater emphasis should be on the effective measures by the State rather than following the fad of political correctness."⁶² The Court's dismissal of the petition has a number of problematic aspects.⁶³

5. Preparation of India's next report

India is due to submit its next report in 2025, after taking into account the observations of the Committee on the Rights of Persons with Disabilities. The Central Advisory Board on Disability and the State Advisory Boards on Disability are responsible, among other things, for facilitating the continuous evolution of a comprehensive policy for the empowerment of persons with disabilities and the full enjoyment of rights at the national and State levels, respectively. Ten members of each of these Boards, as far as practicable, are required to be persons with disabilities, to represent civil society organizations of and for persons with disabilities, provided that out of the 10 members nominated, at least five members should be women. Thus, civil society engagement is ensured, including in preparing the Government's reports. That engagement is via the involvement of and consultation with civil society represented by persons with disabilities and the functionaries of civil society organizations working for persons with disabilities. The membership list of the Central Advisory

Board on Disability is part of the Minutes of its Fourth Meeting, available on the website of the Department of Empowerment of Persons with Disabilities.⁶⁴

For progress reports on these matters to be incorporated in the report due in 2025, the following need to be prioritized:

1. Examination of the concerns of the Committee on the Rights of Persons with Disabilities and, where appropriate, by Government, in consultation with other stakeholders;
2. Implementation of the recommendations.

6. Dissemination of the Convention, General comments and Concluding observations of the Committee on the Rights of Persons with Disabilities, and Government Reports

The Convention on the Rights of Persons with Disabilities has been translated into the Hindi language⁶⁵ by *WeCapable*, an online information resource on various aspects of disabilities contributed by individuals. This version has not been uploaded on the website of the Ministry. The late Mr P.K. Pincha, a former Chief Commissioner for Persons with Disabilities, had uploaded on YouTube the key provisions of the Convention on the Rights of Persons with Disabilities and the Concluding observations of the Committee on the Rights of Persons

with Disabilities on the Initial Report of India.⁶⁶ Also uploaded on YouTube is a Hindi language version (duration: 6:52:24) of the Convention on the Rights of Persons with Disabilities.⁶⁷ There is still a need for Government to translate the Convention on the Rights of Persons with Disabilities and other disability-specific laws into the regional languages⁶⁸ of India and to make them widely available to the public in general and to persons with disabilities in particular. The Rights of Persons with Disabilities Act, 2016 has been translated into some regional languages and uploaded on to the website of the National Centre for Promotion of Employment for Disabled People (NCPEDP), a cross-disability non-profit organization.⁶⁹ The nodal Ministry and State-level Departments have not done much on this front and must make available to OPDs in easy-to-understand formats, Indian Sign Language and e-PUB formats.⁷⁰

⁶⁴ Government of India, Ministry of Social Justice and Empowerment, Department of Empowerment of Person with Disabilities (Divyangjan), n.d.c.

⁶⁵ Available at <https://wecapable.com/static/docs/uncrpd-hindi-wecapable.pdf> (in Hindi) (accessed on 8 May 2022).

⁶⁶ Pincha, 2019.

⁶⁷ Kumar, 2018.

⁶⁸ "... the encyclopaedic People of India series of the Anthropological Survey of India, identified 75 'major languages' out of a total of 325 languages used in Indian households. *Ethnologue*, too reports India as a home of 398 languages, including 387 living and 11 extinct languages. Most importantly, as early as the 1990s, India was reported to have had 32 languages with one million or more speakers." Government of India, Ministry of Education, n.d., section 2.

⁶⁹ National Centre for Promotion of Employment of Disabled People, n.d.

⁷⁰ Committee on the Rights of Persons with Disabilities, 2019a, para.19(c).

⁵⁷ Committee on the Rights of Persons with Disabilities, 2019b, para. 1

⁵⁸ Committee on the Rights of Persons with Disabilities, 2019c, para. 8.

⁵⁹ Committee on the Rights of Persons with Disabilities, 2019a, para. 6(b).

⁶⁰ Committee on the Rights of Persons with Disabilities, 2019a, para. 7(c).

⁶¹ High Court of Madras, 2020.

⁶² High Court of Madras, 2021, para. 5.

⁶³ See, admittedly from the petitioners' perspective, the discussion in Dhawan and Karpagam, 2021; and Karpagam and Dhawan, 2021.

7 CONSTITUTIONAL AND LEGISLATIVE PROTECTION

1. Constitutional guarantees of equality for persons with disabilities

Part III of the Constitution of India (Articles 14 to 35) provides for fundamental rights, which are justiciable and courts can be approached for their enforcement. Article 14 of the Constitution guarantees that the State shall not deny to any person equality before the law or the equal protection of the laws. Article 15 prohibits discrimination on grounds of religion, race, caste, sex or place of birth. Article 16 provides that there shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State and no citizen shall be ineligible for, or discriminated against in respect of, any employment or office under the State on the ground of religion, race, caste, sex, descent, place of birth, residence or any of them. Though these articles do not explicitly mention disability, Articles 14 and 16 guarantee equal protection and equality of opportunity to all citizens, and that includes persons with disabilities.

Part IV (Articles 36 to 51) of the Constitution sets out Directive Principles of State Policy which are fundamental in the governance of

the country. They include reference, among other matters, to various socio-economic rights such as the right to social security, to an adequate standard of living, to health and to other rights. Though these principles are not directly justiciable, it is the duty of the State to apply these principles in making laws. The Supreme Court of India has held that the “Directive Principles” must be read into the Fundamental Rights, as the two sets of rights are complementary to each other.⁷¹ The laws and schemes referred in this part provide equal opportunities and prohibit all discrimination against every citizen of India, including persons with disabilities. Article 41 explicitly mentions “disablement” and provides that the State shall, within the limits of its economic capacity and development, make effective provision for securing the right to work, to education and to public assistance. The Supreme Court of India has held that the State may not be compelled to provide adequate means of livelihood to its citizens, but any person who is deprived of his right to livelihood can challenge the deprivation as offending the right to life as a fundamental right.

In *Francis Coralie Mullin versus The Administrator* (1981), the Supreme Court ruled that the

right to life enshrined in Article 21 of the Constitution cannot be restricted to mere animal existence. It includes the right to live with human dignity and all that goes along with it such as adequate nutrition, clothing and shelter and facilities for reading, writing and expressing oneself in diverse forms, freely moving about and mixing and mingling with fellow human beings.⁷²

In a number of cases, Indian courts have made orders in favour of persons with disabilities by interpreting the constitutional provisions in relation to the Convention on the Rights of Persons with Disabilities and other human rights treaties to ensure that the rights of persons with disabilities are upheld. The most important cases are discussed in the following section.

The courts have interpreted the Constitution to address indirect discrimination, as well as direct discrimination,⁷³ including against persons with disabilities, although one Justice of the Supreme Court has recently commented that “the jurisprudence relating to indirect discrimination in India is still at a nascent stage.”⁷⁴

2. Constitutional or legislative obligation for public bodies to act in accordance with the obligations in the Convention

There is no explicit constitutional or legislative provision obligating public bodies to act in accordance with the obligations in the Convention on the Rights of Persons with Disabilities or other human rights treaties. However, they are obliged to comply with constitutional guarantees and, to the extent that these are interpreted by reference to or as supplemented

by Convention provisions, they are so bound. Furthermore, legislation on issues of disabilities that binds the Government, when it is interpreted by reference to or as supplemented by the Convention, has this effect as well.

In particular, the Rights of Persons with Disabilities Act, 2016, which was enacted to implement the Convention on the Rights of Persons with Disabilities, extends to the whole of India and all Government establishments and, in respect of certain provisions, private establishments as well. Thus, Government and private actors are indirectly bound to comply with the provisions of the Convention in certain circumstances. Some of the key provisions of the Rights of Persons with Disabilities Act, 2016 which bring the Convention on the Rights of Persons with Disabilities into domestic law, such as those relating to accessibility, non-discrimination and equal opportunity, are mandatory for private as well as Government organizations. Section 3 of the Rights of Persons with Disabilities Act, 2016 specifically mandates that the appropriate Government shall ensure that persons with disabilities enjoy the right to equality, to life with dignity and to respect for his or her integrity equally with others. It also prohibits discrimination on the ground of disability and deprivation of personal liberty only on the ground of disability.

3. Legislation in India directly addressing issues of concern to persons with disabilities

As described earlier in relation to the definition of “disability,” India has the following four disability-specific laws that directly address issues of concern to persons with disabilities:

⁷² Supreme Court of India, 1981.

⁷³ Supreme Court of India, 2021a, especially paras. 46-47 and 66-70.

⁷⁴ Supreme Court of India, 2021a, para. 46 (Justice D Y Chandrachud).

⁷¹ For a leading case, see Supreme Court of India, 1985.

1. The Rights of Persons with Disabilities Act, 2016 (also referred to in India as the RPwD Act, 2016).
2. The National Trust for the Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999 (also referred to in India as the NT Act, 1999).
3. The Rehabilitation Council of India Act, 1992 (also referred to in India as the RCI Act, 1992).
4. The Mental Healthcare Act, 2017 (also referred to in India as the MHA, 2017).

4. Rights-based approach to persons with disabilities

The Rights of Persons with Disabilities Act, 2016 is a progressive, forward-looking, rights-based and ambitious piece of legislation which seeks to explicitly institutionalize a robust rights regime for all persons with disabilities. A comparison between the Persons with Disabilities Act, 1995 and the Rights of Persons with Disabilities Act, 2016 appears in Annex 2, while a comparison between the Convention on the Rights of Persons with Disabilities and the Rights of Persons with Disabilities Act, 2016 appears in Annex 3.

The legislation views persons with disabilities as having legal capacity and requires the appropriate government to ensure that they are able to enjoy that capacity by providing the necessary support systems. As per the experience and ground realities of the primary stakeholders and parents, there could be persons with a high degree of intellectual disability who may need to be provided with the support of a guardian for a limited purpose. Hence, there is a provision in section 14 of the Rights of Persons with Disabilities Act, 2016 for support of limited guardianship. For this reason, in the

near future, it is unlikely that the recommendation of the Committee on the Rights of Persons with Disabilities to eliminate all types of guardianship from legislation and practices⁷⁵ will be accepted, including with regard to the Rights of Persons with Disabilities Act, 2016, and the Mental Health Care Act (section 4).

Limited guardianship has been defined as “a system of joint decision which operates on mutual understanding and trust between the guardian and the person with disability, which shall be limited to a specific period and for specific decision and situation and shall operate in accordance to the will of the person with disability.” Unlike supported decision making in which the individual alone has the right to make decisions, under the system of limited guardianship, the person allows the guardian to make a decision for a particular purpose and for a limited period.

5. Discrimination against persons with disabilities on the ground of disability as unlawful

The purpose of the Rights of Persons with Disabilities Act, 2016 is to ensure non-discrimination, which is the basic principle of the Convention on the Rights of Persons with Disabilities. Thus, the Act makes it unlawful to discriminate against persons with disabilities on the ground of disability in almost all areas. The guarantees are set out in an order that largely tracks the structure of the Convention itself.

“Discrimination” is defined in section 2(h) of the Rights of Persons with Disabilities Act, 2016 and follows the definition of “discrimination on the basis of disability” in Article 2 of the Convention. Thus, under the Act, discrimination means:

“any distinction, exclusion, restriction on the basis of disability which is the purpose or effect of impairing or nullifying the recognition, enjoyment or exercise on an equal basis with others of all human rights and fundamental freedoms in the political, economic, social, cultural, civil or any other field and includes all forms of discrimination and denial of reasonable accommodation.”

In the Rights of Persons with Disabilities Act, 2016:

- Section 3(1) requires the responsible Governments to “ensure that persons with disabilities enjoy the right to equality, life with dignity and respect for his or her integrity equally with others.”
- Section 3(3) provides that “no person with disability shall be discriminated on the ground of disability, unless it is shown that the impugned act or omission is a proportionate means of achieving a legitimate aim.” This language appears awkward because the international understanding of discrimination is that it involves unjustified differential treatment on a prohibited ground: presumably the definition is intended to reflect that and not allow a second layer of possible justification for limiting the right of persons with disabilities to equality.
- Section 12 (1) addresses access to justice and requires Government to “ensure that persons with disabilities are able to exercise the right to access any court, tribunal, authority, commission or any other body having judicial or quasi-judicial authority or

investigative powers without discrimination on the basis of disability.”

- Other provisions such as section 16(i) pertaining to the admission of children with disabilities to all educational institutions funded or recognized by the appropriate Government and local authorities, requires those institutions to “admit them without discrimination and provide education and opportunities for sports and recreation activities equally with others”
- Section 20 (1) provides protection against discrimination in any matter relating to employment. However, even where the specific guarantee does not explicitly refer to non-discrimination or equality, the right to equality in the enjoyment of that right is effectively guaranteed by the Act and the Convention.

It is mandatory for every Government organization to provide reasonable accommodation and appropriate barrier-free and conducive environments to employees with disability. Furthermore, no Government or private organization can compel a person with disability to partly or fully pay the costs of such accommodation. The head of an establishment is specifically responsible for ensuring that a person with disability is not discriminated against on the ground of disability under any circumstances.⁷⁶ As the denial of reasonable accommodation is a form of discrimination, reasonable accommodation will need to be accorded not just in the area of employment, but also in other areas where discrimination is prohibited. Those areas include education and access to health services, among others.

Nearly all the provisions of the Rights of Persons with Disabilities Act, 2016 are mandatory. The exceptions are those under section 24 relating to social security, section 27 regarding

⁷⁵ Committee on the Rights of Persons with Disabilities, 2019a, para. 27(a).

⁷⁶ Ministry of Social Justice and Empowerment, Department of Empowerment of Persons with Disabilities (*Divyangjan*), 2017a (English) and 2017b (Hindi), Rule 3.

rehabilitation, section 35 pertaining to employers in the private sector and section 55 regarding assistance to registered institutions. Non-compliance with or contravention of any mandatory (immediately justiciable) provision of the Rights of Persons with Disabilities Act, 2016 is punishable under section 89 of the said Act, which provides for a fine of Rs. 10,000/- (equivalent to USD129.25 at the 9 May 2022 exchange rate) for first contravention and for any subsequent contravention, not be less than Rs. 50,000/- which may extend to Rs. 500,000.

Although the Convention on the Rights of Persons with Disabilities does not contain an explicit right to a remedy, the right to have an allegation of a violation of one's rights, as enshrined in the Convention, is implied. That may take the form of an administrative procedure or a more traditional remedy through the courts and tribunals: the requirement is that the remedy be accessible, prompt and effective.

In addition to the role played by the courts in India (discussed above and in further detail below), an important role in the promotion and protection of the rights of persons with disabilities, including facilitating remedies, is played by the independent Chief Commissioner for Persons with Disabilities at the Central level and the State Commissioners at the State level. The functions of these offices, which were originally established under the Persons with Disabilities Act, 1995 are currently defined under Chapter XII of the Rights of Persons with Disabilities Act, 2016. The work of these mechanisms is discussed below.

6. Webinar with stakeholders

The author of this case study, with the support of the Centre for Accessibility in Built Environment Foundation (also known as the CAFE Foundation), organized a webinar to seek the views of primary and other stakeholders, name-

ly, persons with disabilities, organizations of persons with disabilities and other civil society organizations, as well as those who had been involved in the preparation of the legislation and were involved in its implementation. A summary of the discussions is in Annex 7.

7. Affirmative measures, including reservations, for persons with disabilities

The Rights of Persons with Disabilities Act, 2016 provides, inter alia, for free healthcare in the vicinity of persons with disabilities, priority in attendance and treatment to persons with disabilities.

The Act provides for reservations (quotas) in various areas as follows:

1. At least 25 per cent higher provision for persons with disabilities than in the similar schemes applicable to others. (section 24)
2. Reservation of not less than 5 per cent seats for persons with benchmark disabilities in admissions to higher education courses. (section 32)
3. Reservation of not less than 4 per cent vacancies in Government jobs for persons with benchmark disabilities:
 - (a) one per cent for persons with blindness and low vision;
 - (b) one per cent for deaf and hard of hearing persons;
 - (c) one per cent for persons with locomotor disability including persons with cerebral palsy, leprosy cured persons, persons with dwarfism, acid attack victims and persons with muscular dystrophy;
 - (d) one per cent for persons in each of these groups, namely, autism, intellectual disability, specific learning disability and mental illness; and
 - (e) persons with multiple disabilities from amongst persons under clauses (a) to

(d), including persons with deaf-blindness in the posts identified for each disability in the case of direct recruitment. (section 34)

4. Reservation of 5 per cent in allotment of agricultural land and housing in all relevant schemes and development programmes, with appropriate priority to women with benchmark disabilities. (section 37 (a))
5. Reservation of 5 per cent in all poverty alleviation and developmental schemes with priority to women with benchmark disabilities. (section 37 (b))
6. Reservation of 5 per cent for persons with benchmark disabilities in allotment of land on concessional rate, where such land is to be used for the purpose of promoting housing, shelter, setting up of occupation, business, enterprise, recreation centres and production centres. (section 37 (c))

Reservation in direct recruitment:

The Rights of Persons with Disabilities Act, 2016 provides for reservation in direct recruitment only. The nodal department, that is, the Department of Personnel and Training, has issued instructions on implementation of reservation of vacancies and has been continuously monitoring implementation of these provisions. Special recruitment drives are also being conducted.

Reservation in promotion:

As per the instructions of the Department of Personnel and Training issued earlier, reservation in promotion applied to Group C (skilled) and Group D (unskilled or semi-skilled) posts only. However, on 17 May 2022, in response to a decision of the Supreme Court of India in September 2021⁷⁷ and as mandated in section 34 of the Rights of Persons with Disabilities Act, 2016 that reservation in promotion shall be

in accordance with the instructions issued by the appropriate Government, the Department of Personnel and Training issued instructions for reservation in appointment by promotion for persons with disabilities from Group C to Group B and from Group B to the lowest rung (level) of Group A posts.⁷⁸

Irrespective of whether a post is reserved or not, various concessions are provided. The concessions include relaxation in upper age limit, exemption from payment of examination and application fees.

There has been a lot of support from the Chief Commissioner for Persons with Disabilities/ State Commissioners for Persons with Disabilities and the Courts for the effective implementation of the provisions.

8. Representation of persons with disabilities in services in Central Ministries/ Departments

Persons with disabilities have good representation in various services, including the most prestigious civil service posts, as well as in banking, scientific, teaching and almost all other sectors in the Government. According to the 2019-2020 Annual Report of the Department of Personnel and Training, Government of India,⁷⁹ in the 68 Central Ministries/Departments from which information had been received by 1 January 2018, the representation of persons with benchmark disabilities was as below.

⁷⁷ Supreme Court of India, 2021c.

⁷⁸ Government of India, Ministry of Personnel, Public Grievances and Pensions, Department of Personnel and Training, 2022.

⁷⁹ Government of India, Ministry of Personnel, Public Grievances and Pensions, Department of Personnel and Training, 2020.

Table 6
Persons with disabilities employed in 68 Central Government entities (as of 1 January 2018)

GROUP	BLINDNESS / LOW VISION	HEARING IMPAIRMENT	LOCOMOTOR DISABILITY / CEREBRAL PALSY	TOTAL
A	42	59	395	496
B	187	244	1,629	2,060
C	2,724	3,412	1,3719	19,855
Total	2,953	3,715	1,5743	22,411

Note: Reservation for the above three disability groups is stipulated in the Persons with Disabilities Act, 1995.

The appointment of persons with disabilities (who are in the categories of disability newly-included in the Rights of Persons with Disabilities Act, 2016) are being made to the posts identified for them by reservation.

8 COURTS AND TRIBUNALS

1. Barriers to access to justice by persons with disabilities in the courts

The Committee on the Rights of Persons with Disabilities has expressed its concern about the barriers affecting equal access to justice by persons with disabilities, including the lack of access to court buildings, accessible information and sign language interpretation, and the insufficient availability of quality legal aid.⁸⁰

Access to the built environment, transport, information and documents as barriers do exist in some places, especially in smaller towns. However, the Rights of Persons with Disabilities Act, 2016 has far-reaching and progressive provisions for the creation of barrier-free environment, which also includes attitudinal barriers. It has set very strict and rather ambitious timelines for making the built environment, facilities and services accessible. The timelines are within five years and two years, respectively, from the date of notification of the standards. The standards for the built environment, buses, websites and documents were notified in Rule 15 of the Rights of Persons with Disabilities Rules, 2017 on 15 June 2017.

The National Legal Services Authority was constituted under the Legal Services Authorities Act, 1987 to provide free legal services to groups in vulnerable situations and to organize *Lok Adalat*⁸¹ for amicable settlement of disputes.⁸² Any person with disability can get free legal services at various levels: State, District and *Taluk*.⁸³ The Supreme Court Legal Services Committee arranges legal aid for cases before the Supreme Court of India.

2. Types of cases before the courts on issues relating to persons with disabilities

Over the years, Indian courts have decided cases involving almost all major issues concerning the rights of persons with disabilities. Those issues included the following:⁸⁴

- Education in general;
- Integrated education and inclusive education;
- Admission to higher and technical education (such as engineering courses, medicine);
- Conduct of examinations;
- Suitability of persons with disabilities for

⁸⁰ Government of India, Ministry of Personnel, Public Grievances and Pensions, Department of Personnel and Training, 2020.

⁸¹ *Lok Adalat* means people's court; it could also mean people's court all over India.

⁸² Government of India, National Legal Services Authority, n.d.

⁸³ *Taluk* or *Tahsil* is an administrative division in India. A district is divided into many revenue subdivisions called *Taluk* or *Tahsil* headed by a *Talukdar* or *Tahsildar*.

⁸⁴ See the case law digest covering disability cases from 1930 to 2004 prepared by the Office of the Chief Commissioner for Disabilities in 2004: Dhariyal and others, eds., 2005.

- various jobs in different fields;
- Employment;
- Reservation;
- Service matters;
- Reasonable accommodation;
- Accessibility;
- Property transaction in respect of intellectual disability.

The judgments of the courts also deal with issues that arise out of the evolving international developments in the human rights regime and the progressive domestic legislation and are more inclined to a human rights approach. Some of the recent judgements of the Supreme Court, such as *Vikash Kumar v Union Public Service Commission & Others* (2021) discussed below, are path-breaking and worth appreciating. Apparent from such judgements is the real impact of the Convention on the Rights of Persons with Disabilities on the understanding of the stakeholders and the paradigm shift in the approach to human rights issues of persons with disabilities in India.

Furthermore, the Chief Commissioner for Persons with Disabilities and the State Commissioners for Persons with Disabilities take up and decide on most of the complaints filed by persons with disabilities. They also take up, on their own motion, cases pertaining to discrimination or any other issue, except criminal cases.

3. Approach of the courts

An earlier section of this case study examined the ways in which international law standards, including those in unincorporated treaties, were used by the Indian courts to inform the inter-

pretation of constitutional and legislative provisions. The approach of the courts in India has generally been very proactive and liberal in protecting the rights of persons with disabilities, an approach which is consistent with India's obligations under the Convention on the Rights of Persons with Disabilities. Courts have given expansive interpretation to the provisions in the disability-specific, socially beneficial Acts, as well as to constitutional guarantees. This section highlights a number of cases in which the courts have taken rights-sensitive approaches in relation to persons with disabilities, with a focus on those cases in which the courts have referred to or drawn on the Convention.

There are many cases, both before and after the adoption of the Convention, in which the courts have adopted progressive approaches to ensuring the rights of persons with disabilities, drawing on international standards, constitutional principles and domestic legislation.⁸⁵ The courts have noted and endorsed the shift at the international level and national levels from a medical model of disability to social and human rights-based models⁸⁶ and have applied this approach to their interpretation of the constitutional and statutory provisions.

The Indian courts have used the doctrines and techniques of constitutional and statutory interpretation outlined above when dealing with arguments based on the Convention.⁸⁷ In a study published in 2018, Shreya Atrey examined 28 cases in which the Convention on the Rights of Persons with Disabilities was referred to that were decided between 2009 and 2016 in the Supreme Court of India (three cases) and the High Courts (25 cases).⁸⁸ Atrey notes that, as with other treaties and international standards, references by courts can range from a

passing reference that plays no real role in the legal grounding or reasoning of a decision to a discussion which examines the meaning of a Convention provision and applies it to interpret a statute or constitutional provision.⁸⁹

The Supreme Court of India and various High Courts have referred to the Convention in many cases involving the rights of persons with disabilities, although the courts have not generally based their judgments primarily and explicitly on the specific provisions of the Convention.⁹⁰ In the field of disability, this openness to international standards was already present before the Convention started to become the main reference point for the courts in the years after its ratification by India. An example is the case of *Suchita Srivastava & Anr versus Chandigarh Administration*. This involved the right of a woman with intellectual disability to choose to continue her pregnancy to full term; the woman who was detained in a government-run institution had become pregnant as a result of allegedly being raped by a staff member of the institution. The High Court of Punjab and Haryana convened an expert panel of doctors and judges whose members noted that, although the woman did not understand the consequences for her own future and that of the child, she wished to carry the child to term and they recommended against authorizing a termination. However, despite this advice, the High Court held that the woman was incapable of carrying on with the pregnancy and would not be able to look after a child due to her disability. In the exercise of its *parens patriae* jurisdiction, it considered that it was in her best interests that her pregnancy be terminated.⁹¹

However, the Supreme Court reversed the decision of the High Court,⁹² basing its conclusion

primarily on the provisions of the Medical Termination of Pregnancy Act, 1971. Section 3(4) of the Medical Termination of Pregnancy Act, 1971 provided that a woman's pregnancy could only lawfully be terminated with the consent of the woman; the only exception to the requirement of consent was the case of a minor or a woman over 18 with "mental illness" (which did not include "mental retardation"), in which case the consent of a guardian was required. As the petitioner had not given her consent, it was not lawful to order the termination of the woman's pregnancy under the statute. The Supreme Court also directed that the best medical facilities be made available to the rape survivor, so as to ensure proper care and supervision during the period of pregnancy, as well as for post-natal care. It further stressed the need to look beyond social prejudices in deciding whether a person with mild mental retardation could perform parental responsibilities.

The Supreme Court also disagreed with the High Court on the proper exercise of the *parens patriae* (best interests) jurisdiction (the ultimate basis of the lower court's decision), holding that the "best interests" of the petitioner lay in not authorising medical termination of her pregnancy. In this context, the Supreme Court referred to the Declaration on the Rights of Mentally Retarded Persons,⁹³ citing its provisions in some detail – in particular Principle 7 which provides that:

“Whenever mentally retarded persons are unable, because of the severity of their handicap, to exercise all their rights in a meaningful way or it should become necessary to restrict or deny some or all of these rights,

⁸⁹ Atrey, 2018, pp. 192-193.

⁹⁰ See Atrey's analysis of cases up to 2016 in the Supreme Court and High Courts: Atrey, 2018.

⁹¹ High Court of Punjab and Haryana, 2009a and 2009b.

⁹² Supreme Court of India, 2009.

⁹³ United Nations, 1971.

⁸⁵ Centre for Internet and Society, 2014.

⁸⁶ See, for example, High Court of Delhi, 2012; and High Court of Madras, 2009.

⁸⁷ Atrey, 2018, p. 189.

⁸⁸ Atrey, 2018, Table 7.1, pp. 194-195.

*the procedure used for that restriction or denial of rights must contain proper legal safeguards against every form of abuse.*⁹⁴ 99

The Court noted that the Medical Termination of Pregnancy Act, 1971 was such a procedure that respected “the personal autonomy of mentally retarded persons with regard to the reproductive choice of continuing or terminating a pregnancy.” It also wrote that “we must also bear in mind that India has ratified the Convention on the Rights of Persons with Disabilities (CRPD) on October 1, 2007 and the contents of the same are binding on our legal system.”⁹⁵

Although the language of the Declaration is now, in some respects, considered problematic and has been superseded by the Convention on the Rights of Persons with Disabilities, the Court did not refer to or discuss relevant articles of the Convention, despite India having ratified the treaty more than 18 months earlier and the treaty having been in force for India for over a year, well before both the High Court and Supreme Court judgments. The judgment did not, for example, establish a connection between autonomy to continue the pregnancy by a woman with intellectual disability and Article 21 of the Constitution which prohibits deprivation of life or the right to life. Nonetheless, the result reached by the interpretation of the Medical Termination of Pregnancy Act, 1971 is consistent with the Convention obligations.

Furthermore, the Supreme Court judgment did not give detailed attention to the issue of legal capacity, as guaranteed by Article 12 of

the Convention.⁹⁶ This kind of appreciation of the provisions of the Convention is critical to protecting the rights of persons with disabilities on an equal basis with others. Indeed, in its rejection of the High Court’s alternative analysis based on its *parens patriae* jurisdiction that it was in the woman’s “best interests” for the pregnancy to be terminated, the Supreme Court itself also adopted a “best interests” approach, something that would be seen today as inconsistent with the interpretation of the Committee on the Rights of Persons with Disabilities regarding Article 12 of the Convention.⁹⁷

As the Convention has become better known and the practice of the Committee on the Rights of Persons with Disabilities has developed, it is the Convention that has increasingly become the primary international reference point. In relation to the Convention as in other areas, the courts have made extensive reference to the treaty to reach a conclusion on, or give meaning to, a provision or a word with the intent of protecting the human rights and dignity of a citizen or to ensure a legitimate benefit to the more vulnerable social groups.

Shortly after India ratified the Convention, the courts began to draw on it, including in order to supplement legislative gaps and fill out constitutional guarantees by reference to the Convention. For example, the Persons with Disabilities Act, 1995 did not include an explicit requirement that persons with disability were entitled to “reasonable accommodation” or define its denial as a form of disability discrimination, as required by the Convention; that came only with the Rights of Persons with Disabilities Act, 2016. However, in 2009 in *Ranjit Kumar*

Rajak v State Bank of India,⁹⁸ a person who had previously had a renal transplant applied for a job for which he was qualified and which he was medically fit to perform. The prospective employer (State Bank of India) rejected his application in order to avoid liability for covering medical expenses that he might incur, as a result of his ongoing medical needs, and because there might be issues in posting him to branches in localities that lacked adequate health services. The petitioner instituted proceedings against the Bank, claiming that its refusal to employ him because of his medical history and condition was a violation of Articles 14, 16(1) and 21 (right to livelihood as part of the right to life) of the Constitution. He argued that the accommodation required – to cover reasonable medical expenses – would not involve undue hardship and the Bank’s refusal to accord it to an otherwise fit and qualified job applicant was discriminatory.

The High Court of Bombay considered in detail Articles 1, 2 and 27 of the Convention on the Rights of Persons with Disabilities, as well as the drafting history relating to the concept of “reasonable accommodation.”⁹⁹ The Court concluded that “as long as the Convention is not in conflict with the Municipal Law and can be read into Article 21, it is enforceable. Therefore, in the absence of any conflict it is possible to read the test of reasonable accommodation in employment contracts.” The Court also drew on laws in other countries defining reasonable accommodation and to instances of reasonable accommodation in earlier Indian cases. It endorsed the Convention definition, in the absence of a statutory definition, and noted the importance of assessing whether a requested accommodation would impose undue hardship on an employer, in particular undue financial

hardship. The Court found in favour of the petitioner and ordered that he be employed, as the prospective employer had provided no material to show that the likely medical expenses would impose undue hardship on it.¹⁰⁰

In the 2021 case of *Vikash Kumar versus Union Public Service Commission*,¹⁰¹ the Supreme Court also undertook an analysis of the concept of “reasonable accommodation” in the context of a claim for access to the assistance of a scribe in order to sit the civil service examination made by a person who had dysgraphia, commonly known as Writer’s Cramp. While persons with disabilities were invited to apply to sit the exam, changes to the Civil Services Examination Rules in 2018 provided that only persons who were blind, had a locomotor disability or had cerebral palsy where the “dominant (writing) is affected to the extent of slowing the performance of function (minimum of 40 per cent impairment)” were entitled to the assistance of a scribe to write the examination, with additional “compensatory time” of 20 minutes per hour. The petitioner did not satisfy those requirements, but argued that his dysgraphia was a disability that entitled him to reasonable accommodation in the form of a scribe and that the refusal to consider his application for a scribe was a violation of Articles 14 and 16 of the Constitution and section 20 of the Persons with Disabilities Act, 2016 relating to education. The evidence ultimately before the Supreme Court was that the appellant’s condition did appreciably impair his ability to write, although this did not bring him within the specific categories for the provision of a scribe. He argued that he was a “person with disability” under the Rights of Persons with Disabilities Act, 2016 and entitled to the benefit of reasonable accommodation, even if he was

⁹⁴ United Nations, 1971, Principle 7.

⁹⁵ Supreme Court of India, 2009, para. 26.

⁹⁶ Atrey, 2018, pp. 206-207.

⁹⁷ To confuse matters further, the Court contrasted the domestic “best interests” approach – considered “substituted decision-making” under the Convention on the Rights of Persons with Disabilities – with the domestic “substituted judgment” approach – which appears similar to a “best interpretation of will and preferences” or supported decision-making approach under the Convention. It ended up applying the first, though the result is consistent with what the proper application of the Convention would have required.

⁹⁸ High Court of Bombay, 2009.

⁹⁹ High Court of Bombay, 2009, paras. 14-15.

¹⁰⁰ High Court of Bombay, 2009, para. 28.

¹⁰¹ Supreme Court of India, 2021d.

not a person with “benchmark disability” (i.e., 40 per cent disability, as assessed by a government hospital medical doctor designated as the certifying authority).

By the time this case came up, the concept of reasonable accommodation had been explicitly included in the Rights of Persons with Disabilities Act, 2016, which adopts the definition of the term as contained in the Convention. The Supreme Court held that the concept applied to the context of education and, drawing on General comment 6 on Equality and Non-discrimination (2018)¹⁰² of the Committee on the Rights of Persons with Disabilities, provided a detailed analysis and examples of how reasonable accommodation should be accorded in practice.¹⁰³ The Court also held that the guarantee was a general one and the duty to afford reasonable accommodation was not limited only to providing it to persons those who satisfied particular benchmarks but extended to everyone who would otherwise suffer inequality on the basis of disability.¹⁰⁴

The Court held that having a benchmark disability was not a precondition for the provision of a scribe. The statutory definition in section 2(s) of Rights of Persons with Disabilities Act, 2016 recognizes that it is the nature of the impairment, in its interaction with barriers, that hinders the full and effective participation of the person in society equally with others. The definition of person with disability in section 2(s) cannot be limited by the definitions of benchmark disability under other sections.

In compliance with the direction of the Supreme Court in this case, the Department of Empowerment of Persons with Disabilities formulated draft guidelines for conducting written examination for persons with less than 40 per cent disability or persons with a medical condition that may restrict their writing capacity for public consultation.¹⁰⁵

Another indication of the importance attached to the matter of scribes as reasonable accommodation is evidenced by a Department of Empowerment of Persons with Disabilities (*Divyangjan*) Memorandum dated 9 September 2020 that addressed COVID-19 pandemic concerns and conditions affecting examinees with disabilities. The Memorandum was issued to 15 Government entities, including the Secretaries responsible for Higher Education, School Education, and Personnel and Training, and copied to India's first Blind Senior Advocate-cum-veteran disability rights activist, Mr Santosh Kumar Rungta.¹⁰⁶

A further example in which the Convention was cited in support of the beneficial interpretation of a domestic statute is the Supreme Court decision in *Jeeja Ghosh & Anr versus Union of India & Others* (2016). The petitioner, Jeeja Ghosh, a person with cerebral palsy who had been forced to disembark from a SpiceJet flight on the basis of her disability, alleged violation of the Civil Aviation Regulations and Rules,¹⁰⁷ as well as a violation of Article 14 (right to equality) and Article 21 (right to life and liberty, including the right to live with

dignity) of the Constitution.¹⁰⁸ The Supreme Court found a violation of the Civil Aviation Regulations and the Persons with Disabilities Act, 1995 and also considered that the trauma, pain and suffering due to the insensitivity and negative attitude of the airline functionaries who de-boarded her on the ground of her disability resulted in violation of her human dignity and fundamental right and discrimination. In examining the meaning of those domestic provisions, the Supreme Court also took into account Articles 5 (non-discrimination) and 9 (accessibility) of the Convention to support its conclusion. The petitioner was awarded damages equivalent to USD 1,315 at the 4 May 2022 exchange rate.

In 2011, in the case of *The National Association of the Deaf versus Union of India & Others*¹⁰⁹ brought before the High Court of Delhi by way of public interest litigation relying on Article 21 of the Constitution, the petitioners sought orders against the Government requiring it to take steps to ensure that an adequate number of professional Indian Sign Language interpreters be trained and made available so that persons who used Indian Sign Language would be able to access the full range of government services. The High Court took note of the obligation under Article 9(2)(e)¹¹⁰ of the Convention to provide, inter alia, professional sign language interpreters.¹¹¹ The Court linked “the right of persons with disabilities to guides, readers and professional sign language interpreters and other facilities open to the public” to the composite part of life enshrined in Article 21 of the Constitution of India. The High Court issued directions to the State for creating

a pool of interpreters to be available at short notice, to create posts of Indian Sign Language interpreters and to fill those positions.

The State was also directed to develop a curriculum for universities to conduct courses for training Indian Sign Language interpreters. In compliance with the directions of the High Court, the Department of Empowerment of Persons with Disabilities started to conduct training on Indian Sign Language interpretation for Government functionaries and others. The Department of Empowerment of Persons with Disabilities also started Indian Sign Language interpretation courses at the Indian Sign Language Research and Training Centre, Delhi.¹¹²

In 2018, while passing judgment on the case of Ravinder, a 71 year-old person presumed to be a person with mental illness, the High Court of Delhi¹¹³ held as unacceptable, unlawful and constituting indiscriminate use of a non-existent judicial power the action of the police in taking Mr Ravinder into custody, subjecting him to medical examination without any order to that effect and the action of the Metropolitan Magistrate in making a reception order to send him to a mental health facility for observation without referring to any law or judicial authorization. Although these grounds sufficed for the High Court to make the order, the High Court specifically made multiple references to the Convention on the Rights of Persons with Disabilities in its judgment.¹¹⁴ In its order the Court, inter alia, expressed an apology to Mr Ravinder for the unlawful order made by the Metropolitan Magistrate and also awarded Mr Ravinder compensation of Rs. 200,000/-

¹⁰² Committee on the Rights of Persons with Disabilities, 2018, para. 11.

¹⁰³ Supreme Court of India, 2021d, paras. 43-61.

¹⁰⁴ “Conflating the rights and entitlements which inhere in persons with disabilities with the notion of benchmark disabilities does disservice to the salutary purpose underlying the enactment of the RPwD Act 2016. Worse still, to deny the rights and entitlements recognized for persons with disabilities on the ground that they do not fulfill a benchmark disability would be plainly ultra vires the RPwD Act 2016.” Supreme Court of India, 2021d, para. 31. “Except in the specific statutory context where the norm of benchmark disability has been applied, it would be plainly contrary to both the text and intent of the enactment to deny the rights and entitlements which are recognized as inhering in persons with disabilities on the ground that they do not meet the threshold for a benchmark disability.” Supreme Court of India, 2021d, para 41.

¹⁰⁵ Government of India, Ministry of Social Justice and Empowerment, Department of Empowerment of Person with Disabilities (*Divyangjan*), 2021b.

¹⁰⁶ Government of India, Ministry of Social Justice and Empowerment, 2020d.

¹⁰⁷ Government of India, Office of the Director General of Civil Aviation, 2014.

¹⁰⁸ Supreme Court of India, 2016.

¹⁰⁹ High Court of Delhi, 2011.

¹¹⁰ Convention on the Rights of Persons with Disabilities, Article 9(2)(e) requires States parties to “Provide forms of live assistance and intermediaries, including guides, readers and professional sign language interpreters, to facilitate accessibility to buildings and other facilities open to the public”.

¹¹¹ High Court of Delhi, 2011, para 7.

¹¹² See the section on barrier-free environment for more details.

¹¹³ High Court of Delhi, 2018.

¹¹⁴ High Court of Delhi, 2018, paras 91-92.

(equivalent to USD 2,583.39 at the 9 May 2022 exchange rate).

4. Remedies by courts and tribunals to persons with disabilities

The courts in India possess extensive remedial powers and have granted remedies to persons with disabilities that not only address the circumstances of the individual litigant but also order wide-ranging changes by Government, especially in constitutional matters: some examples are given above. Often, the courts have interpreted the law to the widest possible limits and in the most expansive way, be it admission to medical or engineering courses or in allotment of positions in the civil services (like the Indian Administrative Service, and the Indian Foreign Service) in favour of Blind persons and Deaf persons. This occurred even before the coming into force of the Rights of Persons with Disabilities Act, 2016.

5. Inclusion of material on the human rights of persons with disabilities in judicial training and continuing education

In accordance with section 47 (1) of the Rights of Persons with Disabilities Act, 2016,

“(1) Without prejudice to any function and power of Rehabilitation Council of India constituted under the Rehabilitation Council of India Act, 1992, the appropriate Government shall endeavour to

develop human resource for the purposes of this Act and to that end shall,—

- (a) mandate training on disability rights in all courses for the training of Panchayati Raj Members,¹¹⁵ legislators, administrators, police officials, judges and lawyers;
- (b) induct disability as a component for all education courses for schools, colleges and University teachers, doctors, nurses, para-medical personnel, social welfare officers, rural development officers, *asha* workers,¹¹⁶ *anganwadi* workers,¹¹⁷ engineers, architects, other professionals and community workers;”

Sessions on disability laws and the rights of persons with disabilities are being conducted in all induction training and other training for officials at all levels. The guidelines for training and sensitization of the judiciary recommend modules on disability rights. Legal Service Authorities at the State- and District-level organize capacity-building programmes for judicial officers.¹¹⁸

¹¹⁵ The Council of five officials is the system of local self-government of villages in rural India, as distinct from urban and suburban municipalities. It consists of the Panchayati Raj Institutions (PRIs) through which the self-government of villages is realized.

¹¹⁶ An *asha* worker is a trained woman community health activist or Accredited Social Health Activist (ASHA).

¹¹⁷ The *anganwadi* worker is a community-based frontline worker of the Integrated Child Development Services (ICDS) Programme, Ministry of Women and Child Development, Government of India. See Government of India, Ministry of Women and Child Development, n.d.

¹¹⁸ Roy, 2008, Chapter 5, pp. 365-440.

9 NATIONAL HUMAN RIGHTS INSTITUTIONS AND OTHER REDRESS MECHANISMS

1. National Human Rights Commission of India

The National Human Rights Commission (NHRC) of India was established on 12 October 1993 under the Protection of Human Rights Act, 1993 as amended by the Protection of Human Rights (Amendment) Act, 2006. The States also have State Human Rights Commissions.

The NHRC is mandated to protect the human rights of all the citizens of India, including persons with disabilities. It had a Special Rapporteur on Disabilities. Established in 2021, its 10-member Core Group on Persons with Disabilities includes prominent persons with disabilities and other similarly distinguished civil society activists on disability rights. The Chief Commissioner for Persons with Disabilities is an ex-officio member of the NHRC.¹¹⁹

2. Chief Commissioner for Persons with Disabilities and the State Commissioners for Persons with Disabilities

The Rights of Persons with Disabilities Act, 2016 provides for the establishment of the independent offices of the Chief Commissioner for Persons with Disabilities and State Commissioners for Persons with Disabilities to promote and protect the rights of persons with disabilities throughout the country.

Section 74 of the Rights of Persons with Disabilities Act, 2016 provides for the appointment of a Chief Commissioner for Persons with Disabilities and two Commissioners to assist the Chief Commissioner. One of the Commissioners is required to be a person with disability. The Chief Commissioner is mandated among other things to:

1. Identify, *suo motu* (on her/his own motion) or otherwise, the provisions of any law or policy, programme and procedures, which are inconsistent with the Rights of Persons with Disabilities Act, 2016 and recommend necessary corrective steps;
2. Inquire, *suo motu* or otherwise, into the deprivation of rights of persons with disabilities and safeguards available to

¹¹⁹ National Human Rights Commission of India, n.d.

- them in respect of matters for which the Central Government is the appropriate Government and take up the matter with the appropriate authorities for corrective action;
3. Review the safeguards provided by or under the Rights of Persons with Disabilities Act, 2016 or any other law for the time being in force for the protection of rights of persons with disabilities and recommend measures for their effective implementation.

Under section 79 of the Rights of Persons with Disabilities Act, 2016, each State is required to appoint a State Commissioner for Persons with Disabilities who has functions within the State that are similar to those of the Chief Commissioner for Persons with Disabilities at the central level. The Chief Commissioner for Persons with Disabilities and the State Commissioners for Persons with Disabilities are assisted by their respective Advisory Committees on Disability whose members are disability experts, including from civil society organizations. The Rights of Persons with Disabilities Act, 2016 confers on the Chief Commissioner for Persons with Disabilities and State Commissioners for Persons with Disabilities the powers of a civil court for the following purposes:

- (a) Summoning and enforcing the attendance of witnesses;
- (b) Requiring the discovery and production of any documents;
- (c) Requisitioning any public record or copy thereof from any court or office;
- (d) Receiving evidence on affidavits;
- (e) Issuing commissions for the examination of witnesses or documents.

Proceedings before the Chief Commissioner have the character of judicial proceedings. The

rules for the processing of complaints received by the Chief Commissioner for Persons with Disabilities and the State Commissioners for Persons with Disabilities are set out in the Rights of Persons with Disabilities Rules, 2017 and the corresponding State Rules.¹²⁰ Following their consideration of a complaint in light of the material provided by the complainant and the respondent, the Chief Commissioner for Persons with Disabilities and the State Commissioners for Persons with Disabilities may make recommendations to the responsible authorities who are mandated to implement the recommendations within three months. If they do not accept the recommendation, the reason for non-acceptance has to be given within three months. Therefore, a well-reasoned order, supported by the corresponding provisions of the Act, Rules and regulations, is unlikely to remain unimplemented as the higher courts (High Court) take non-compliance very seriously. The Rights of Persons with Disabilities Act, 2016 also provides for other grievance redressal mechanisms pertaining to various issues, including the prosecution of a range of criminal offences under the Act.

Issues are brought to the notice of the Chief Commissioner for Persons with Disabilities/ State Commissioners for Persons with Disabilities by way of complaints or are taken up by them *suo motu* (on their own motion), which they are empowered to do under the Rights of Persons with Disabilities Act, 2016. The issues are taken up with the concerned authorities through letters or show cause notices. Where necessary, parties are summoned and heard, before appropriate orders are passed with the recommendations to the concerned authorities responsible for implementing the relevant provision or for non-compliance.

Summarized below is information received

from the Chief Commissioner for Persons with Disabilities and some State Commissioners for Persons with Disabilities.¹²¹

3. Complaints received and dealt with by the Chief Commissioner for Persons with Disabilities and selected State Commissioners for Persons with Disabilities from 2014 to 2021

Table 7
Chief Commissioner for Persons with Disabilities

YEAR	NUMBER OF CASES REGISTERED AND CASES BROUGHT FORWARD	NUMBER OF CASES DISPOSED OF (INCLUDING BACKLOG)	NUMBER OF CASES PENDING (CARRIED FORWARD)
2014-2015	2196 + 1205 = 3401	1873	1528
2015-2016	2201 + 1528 = 3729	2371	1358
2016-2017	1747 + 1358 = 3105	1596	1509
2017-2018	1772 + 1509 = 3281	1548	1733
2018-2019	1530 + 1733 = 3263	1670	1593
2019-2020	832 + 1593 = 2425	1194	1231
2020-2021 (up to 31/01/2021)	696 + 1231 = 1927	1737	190

The number of complaints registered in the Office of the Chief Commissioner for Persons with Disabilities has been gradually decreasing after the coming into force, on 19 April 2017, of the Rights of Persons with Disabilities Act, 2016. Although a detailed examination of the reasons for this trend is beyond the scope of this case study, the absence of a full-time Chief Commissioner for Persons with Disabilities and the non-appointment of the two Commissioners in the Office of the Chief Commissioner for Persons with Disabilities are perceived to have delayed the disposition of complaints, and hence discouraged the affected persons from filing complaints. It also may have caused inadequate proactivity in taking up *suo moto* cognizance of non-implementation and contravention of the provisions of the legislation.

It is a matter of concern for persons with disabilities that the work of the Chief Commissioner for Persons with Disabilities and State Commissioners for Persons with Disabilities is often assigned to officers as a responsibility that is additional to their existing workload, while the substantive posts remain unfilled for lengthy periods without full-time and independent incumbents. Persons with disabilities lose trust in the mechanism. Some persons with disabilities who have the capability and

¹²⁰ Government of India, Ministry of Social Justice and Empowerment, Department of Empowerment of Persons with Disabilities (*Divyangjan*), 2017a, Rule 30 and the corresponding State Rules.

¹²¹ For information on number and subject matter of the complaints and issues of concern to the persons with disabilities, the Chief Commissioner for Persons with Disabilities, State Commissioners for Persons with Disabilities, Department of Empowerment of Persons with Disabilities, National Human Rights Commission, National Disaster Management Authority, training academies, Industry Chambers, National Crime Records Bureau (NCRB) and other entities were approached through emails. Due to the COVID-19 pandemic, responses were very limited.

wherewithal approach High Courts and Tribunals. Most become resigned to their fate and continue to suffer deprivation of their rights and entitlements. Much depends on the proactive approach and commitment of the incumbent Chief Commissioner for Persons with Disabilities and State Commissioner for Persons with Disabilities.

The Chief Commissioner and the State Commissioners for Persons with Disabilities should be appointed to serve on a full-time basis, in view of their important roles as duty bearers. Experience indicates the following profile as likely to excel in these positions:

- Competent;
- Experienced;
- Has staying power;
- Able to persevere in the face of repeated seemingly insurmountable difficulties;
- Has effective skills in facilitation, negotiation, coordination and team building;
- Sensitive to social justice issues;
- Understands ableism;
- Disability-inclusive in practice;
- Passionately committed to realizing the rights of persons with disabilities.

Table 8
State Commissioner for Persons with Disabilities, Government of National Capital Territory of Delhi

AS ON 31 DECEMBER 2020						
Serial No.	Year (1 April to 31 March)	Brought forward	Complaints registered during the year	Complaints (total number)	Cases disposed of	Cases pending
1	2014-2015	104	294	398	206	191
2	2015-2016	192	289	481	278	203
3	2016-2017	203	336	539	244	293
4	2017-2018	293	338	631	352	279
5	2018-2019	279	630	909	760	149
6	2019-2020	119	985**	1104	942	162*
TOTAL			2,872		2,782	
*As on 31 March 2020; **Total: 543 <i>suo motu</i> cases registered during the year 2019-2020						

The contrast may be seen in the case of the number of complaints in the Office of the State Commissioner for Persons with Disabilities, Delhi: this considerably increased after the coming into force of the Rights of Persons with Disabilities Act, 2016, which coincided with the appointment of a full-time State Commissioner for Persons with Disabilities in the Government of the National Capital Territory of Delhi, after a gap of more than a year.

The other reason for the increase in the number of cases was that a good number of *suo motu* cases were taken up by the State Commissioner for Persons with Disabilities. The redressal mechanism was taken closer to the doorstep of aggrieved persons with disabilities through the Mobile Court of the State Commissioner for Persons with Disabilities, which held hearings at a place convenient to the complainant or by phone when it was difficult for a complainant to reach the Office of the State Commissioner for Persons with Disabilities.

The Office also took firm action against officials responsible for delay in providing entitlements or depriving eligible persons with disabilities. The disposal of the complaints was fast tracked by the adoption of innovative and unconventional methods and by ensuring relief to persons with disabilities in most cases. The disposal rate of complaints increased from around 50 per cent in 2014 to more than 85 per cent in 2020.

The interventions of the Chief Commissioner for Persons with Disabilities and State Commissioner for Persons with Disabilities, Delhi (as an example of a State Commissioner for Persons with Disabilities) have produced many effective outcomes for complainants referred to in this report (information about other State Commissioners for Persons with Disabilities was not available to the author for this case study). Examples chosen from different subject areas have been cited as success stories in Annexes 4 and 5. Details of complaints by subject matter maintained in the Office of the State Commissioner for Persons with Disabilities, Delhi from 2017 to 2019 are in Annex 6.

Table 9
State Commissioner for Persons with Disabilities, Government of Assam

YEAR	NO. OF COMPLAINTS RECEIVED	NO. OF COMPLAINTS DISPOSED OFF
2014-2015	24	14
2015-2016	19	19
2016-2017	31	5
2017-2018	27	12
2018-2019	21	11
2019-2020	7	6

Table 10
State Commissioner for Persons with Disabilities, Government of Mizoram

Total number of complaints received	71
Total number of complaints disposed of	71

Table 11
State Commissioner for Persons with Disabilities, Government of Telangana

YEAR	NUMBER OF COMPLAINTS RECEIVED	NUMBER OF COMPLAINTS DISPOSED OF	NUMBER OF COMPLAINTS PENDING
2018-2019	10	Nil	10
2019-2020	39	23	26

Table 12
State Commissioner for Persons with Disabilities, Government of Chhattisgarh

YEAR (1 APRIL TO 31 MARCH)	NO. OF COMPLAINTS RECEIVED	NO. OF COMPLAINTS DISPOSED OF	NO. OF COMPLAINTS PENDING
2014-2015	46	38	8
2015-2016	37+8	33	12
2016-2017	42+12	45	9
2017-2018	44+9	46	7
2018-2019	115+7	109	13
2019-2020	61+13	68	6

4. Analysis of information from the Chief Commissioner for Persons with Disabilities and the State Commissioners for Persons with Disabilities

The number of complaints by most of the State Commissioners for Persons with Disabilities who provided information for this case study is rather small. It is not possible for the majority of the 70 per cent of the persons with disabilities who live in rural and remote areas to file complaints with the Chief Commissioner for Persons with Disabilities and State Commissioners for Persons with Disabilities who are far away from them. The reasons include inaccessibility, illiteracy, inadequate awareness about the redressal mechanism, and poverty. Unless the redressal mechanism is taken to the doorstep of persons with disabilities, it is difficult for them to seek redressal for their grievances and secure all their rights and entitlements guaranteed to them under the Rights of Persons with Disabilities Act, 2016 and other schemes and programmes.

As Deputy Chief Commissioner and State Commissioner for Persons with Disabilities for a long period covering the pre- and post-Convention/Rights of Persons with Disabilities Act, 2016 era, the author observed that the number of cases shot up exponentially, if the grievance redressal mechanism was taken closer to persons with disabilities. The complaints also increased when the disposal rate

was high, the process was fast and persons with disabilities received reasonable relief. At the district/local level, on a single day, the complaints in the Mobile Courts of the Chief Commissioner for Persons with Disabilities/State Commissioner for Persons with Disabilities used to number in the hundreds and sometimes in the thousands.

Often, the complainants received satisfaction just by being provided with the correct information, even if they were told that the relief that they sought was not available. A face-to-face interaction with senior officers or the highest adjudicating authority under the Rights of Persons with Disabilities Act, 2016 (that is, the Chief Commissioner for Persons with Disabilities/State Commissioner for Persons with Disabilities) gave them a feeling of being valued and cared for by the authorities. Further to becoming more aware of their rights and entitlements, persons with disabilities also mustered the courage and strength to demand their rights and entitlements and the motivation to file complaints with the Chief Commissioner for Persons with Disabilities/State Commissioner for Persons with Disabilities. This process, in turn, sensitized duty bearers present in the Mobile Courts: they became more inclined to accept that the complaints being made by persons with disabilities were under a duly-created arrangement made for that purpose to improve their access to justice, rather than being offended and viewing complaints as being targeted personally against them.

As regards the main subjects of the complaint before the State Commissioners for Persons with Disabilities, except in the case of the National Capital Territory of Delhi, the highest percentage of complaints related to employment and livelihood issues, ranging from around 30 per cent of the total complaints to around 80 per cent, followed by issues related to education (around 13 per cent), harassment (13 to 15 per cent), and civil service matters such as

transfer/posting (5 to 6 per cent).

Complaints from remoter places are fewer and mainly pertain to livelihood issues. A negligible number of complaints pertain to harassment, education and other nuanced concerns like procedural lapses in implementation, identification of posts for persons with disabilities, property disputes, atrocities, loans for self-employment, and legal capacity. Such issues are raised by complainants with disabilities living in the cities and by those who are better informed and are educated.

Over the years, due to better compliance, there has been a steady drop in the number of complaints relating to reservation in jobs, livelihood issues and admission in educational institutions, submitted to the Chief Commissioner for Persons with Disabilities and most State Commissioners for Persons with Disabilities.

For example, in the National Capital Territory of Delhi, the complaints pertaining to reservation in employment and education have decreased to less than 10 per cent of overall complaints from almost 50 to 60 per cent in the late nineties and the beginning of the twenty-first century.

At the same time, there has been an increase in the number of complaints relating to more nuanced issues. Those more nuanced issues include, for example, the following: quality of education; accessibility of the built environment, facilities, websites and products; banking and insurance services; cases of atrocities; preferential allotment of land; increased benefits under various schemes. In fact, Delhi has seen the highest percentage (nearly 50 per cent) of the complaints received in the National Capital Territory in recent years and most of the complaints were related to accessibility issues.

10 POLICYMAKING

1. National policy for persons with disabilities

India framed the National Policy for Persons with Disabilities in 2006. It has not been amended since then. However, the Department of Empowerment of Persons with Disabilities is in the process of drafting a new national policy in line with the Convention on the Rights of Persons with Disabilities. The States generally follow the National Policy as a model and will be framing their respective State policies accordingly. There seems to be no action at national or State level to draw up the action plans to implement the Convention, as envisaged and pointed out by the Committee on the Rights of Persons with Disabilities in its 2019 Concluding observations.¹²² Such measures are critical for ensuring proper and systematic implementation, monitoring and evaluation.

2. The resources for implementation, monitoring and evaluation of the Rights of Persons with Disabilities Act, 2016

The Government of India has created the National Fund for Persons with Disabilities, as mandated by section 86 of the Rights of Persons with Disabilities Act, 2016, and has issued

guidelines for providing financial assistance to support certain core areas relevant for the empowerment of persons with disabilities which are not covered under the budgetary support programme of the Government. The following activities are covered for funding under the Fund:

- Exhibitions/workshops to showcase artistic works, including paintings or handicrafts, produced by persons with disabilities.
- Support for persons with benchmark disabilities who have excelled in sports, fine arts, music, dance, film, theatre or literature at the State level, to participate in national and international events.
- Support for certain exclusive needs of persons with high support needs, as recommended by the Assessment Boards on specific recommendation by the States, on a case-by-case basis. Although details of the needs that could be funded, have not been given, these could be caregiver allowances, aids and appliances not covered under the existing scheme, any intensive support including physical and psychological support which may be required by a person with benchmark disability for daily activities, to take independent and informed decision to access facilities and for participating in education, employment, family and community life and treatment and therapy.

As disability is a State subject, the States implement various schemes and programmes specifically for persons with disabilities, besides providing for them in the mainstream schemes and programmes.

The Department of Empowerment of Persons with Disabilities also implements schemes for persons with disabilities. These include:

- Deendayal Disabled Rehabilitation Scheme (also referred to in India as DDRS):** This scheme envisages financial assistance to civil society organizations for providing education, vocational training and rehabilitation to persons with disabilities.
- Scheme of Assistance to Disabled Persons for Purchase / Fitting of Aids/ Appliances (also referred to in India as ADIP):** The Department of Empowerment of Persons with Disabilities provides grant-in-aid to various implementing agencies, including civil society organizations for the purchase and fitting of aids and assistive devices for the physical rehabilitation of persons with disabilities. During the past five years, 7,987 camps were organized wherein aids and appliances worth Rs. 7373.6 million were distributed benefitting 100,000 persons with disabilities across the country. Cochlear implant surgery is also supported under the scheme. During the four years ending 2020-2021, 1,409 such surgeries were undertaken under this programme. The Department of Empowerment of Persons with Disabilities achieved 10 Guinness world records in the implementation of this scheme.¹²³

- Scheme for Implementation of Rights of Persons with Disabilities Act, 2016 (also referred to in India as SIPDA):** provides grants-in-aid to Central/State Government organizations for creating barrier-free access to buildings; making websites accessible, and developing/strengthening the skills of persons with disabilities.

- Accessible India Campaign (also referred to in India as AIC):** promotes accessibility in three areas – built environment, transportation systems and the Information and Communication Technology (ICT) Eco system.¹²⁴

- Scholarship Scheme:** to fulfill the mandate under section 31 (1) and (2) of the Rights of Persons with Disabilities Act, 2016, the Umbrella Scheme “Scholarships for Students with Disabilities” comprises six components, namely, Pre-matric Scholarship, Post-matric Scholarship, Top Class Education, National Overseas Scholarship, National Fellowship for Persons with Disabilities and Free Coaching.¹²⁵

3. Ministry/ Government Department responsible for the protection and promotion of the rights of persons with disabilities

The Department of Empowerment of Persons with Disabilities, a separate Department created within the Ministry of Social Justice and Empowerment in 2012,¹²⁶ is the nodal (focal) Department for the protection of the rights of persons with disabilities.

¹²³ Government of India, Ministry of Social Justice and Empowerment, Department of Empowerment of Persons with Disabilities. (Divyangjan), 2021a, para. 8.2.7, pp. 103–104.

¹²⁴ Government of India, Ministry of Social Justice and Empowerment, Department of Empowerment of Persons with Disabilities (Divyangjan), n.d.a.

¹²⁵ Government of India, Ministry of Social Justice and Empowerment, Department of Empowerment of Persons with Disabilities, 2021a, para 8.4, pp. 134–141.

¹²⁶ Government of India, Ministry of Social Justice and Empowerment, Department of Empowerment of Persons with Disabilities (Divyangjan), n.d.b.

¹²² Committee on the Rights of Persons with Disabilities, 2019a, paras. 8–9.

Central and State Advisory Boards on Disability headed by the Minister In-charge of Disability in the Central Government and the State Governments, respectively, are mandated to review and coordinate the activities of all Departments of the Government and civil society organizations.

4. Inclusion of persons with disabilities in policymaking

Section 19 of the Rights of Persons with Disabilities Act, 2016 requires that schemes and programmes provide for the inclusion of persons with disabilities in all mainstream formal and non-formal vocational and skill training schemes and programmes. The nodal Departments in the centre and the States, through meetings of Central and State Advisory Boards on Disability and various circulars, advise the concerned Departments to make the mainstream policies and programmes inclusive of persons with disabilities.

All poverty alleviation schemes, such as the National Rural Livelihood Mission (also known in India as NRLM),¹²⁷ make specific efforts to include persons with disabilities among other groups in vulnerable situations to ensure that no poor family is left out of the scheme.¹²⁸ Such schemes also provide for 5 per cent reservation for persons with disabilities, as mandated in the Rights of Persons with Disabilities Act, 2016.

5. Participation of persons with disabilities and their representative organizations in public decision-making

The Central Advisory and State Advisory Boards on Disability, the main policy-making bodies that contribute to decision-making in matters relating to disability, must include as members 10 persons with disabilities. Persons with disabilities are members of the civil services and public representatives at national-, State- and local-level and thus contribute to public decision-making, along with others. The Minister in charge of the Department of Disability Affairs in the Central Government is the Chairperson; the Minister of State in charge of dealing with the Department of Disability Affairs is the Vice Chairperson and three Members of Parliament, of whom two are elected by the *Lok Sabha*¹²⁹ and one by the *Rajya Sabha*,¹³⁰ are Members in the Central Advisory Board on Disability. The Ministers in charge of Disability Affairs of all States and Administrators or Lieutenant Governors of the Union territories besides the officials from the relevant ministries/ organizations are the Members. The State Advisory Boards have a similar composition.

6. Use of the Convention on the Rights of Persons with Disabilities as a framework to guide policy and practice by lower levels of government

The Rights of Persons with Disabilities Act, 2016 extends throughout the country and all establishments, at all levels, are mandated to implement its provisions as applicable. Its mandatory provisions are self-effectuating and the Central and State Governments have to frame rules and procedures within a reasonable time for implementation. The policies and implementation at local level are guided by the National and the State Policy. For example, a building plan cannot be approved or a completion certificate issued by a local body unless the building has complied with the accessibility norms prescribed under the Rights of Persons with Disabilities Act, 2016 and the Rules framed by the Central Government. However, monitoring is inadequate and there are gaps in compliance with the prescribed standards.

While implementation is better in larger cities, smaller towns continue to build inaccessible private commercial spaces, with no checking by the municipal officers. Lack of adequate awareness, resources or expertise in local urban bodies, and municipalities and at panchayat level are largely responsible for poor implementation.

7. Participation of persons with disabilities and organizations of persons with disabilities in the implementation of the Sustainable Development Goals

The National Institution for Transforming India (NITI Aayog),¹³¹ formerly the Planning Commission of India, has been assigned the role of overseeing the implementation of the Sustainable Development Goals (SDGs) in India. The NITI Aayog is responsible for evolving a shared vision of national development priorities, sectors and strategies with the active involvement of the States. It ensures the formulation of credible plans at the village level and the aggregation of these plans progressively at higher levels of government and that special attention is paid to groups in society that may be at risk of not benefiting adequately from economic progress. To spread awareness about the Goals, to bring together stakeholders and to build capabilities for the realization of the SDGs, NITI Aayog has organized several national- and regional-level consultations.

In order to align the National Voluntary Guidelines (also known in India as NVGs)¹³² on the Social, Environmental and Economic Responsibilities of Business with the Sustainable Development Goals, and the "Respect" pillar of the United Nations Guiding Principles on Business and Human Rights, the Ministry of Corporate Affairs, Government of India, has developed new principles: the National Guidelines on Responsible Business Conduct. The objective, among others, is that the industry should contribute towards inclusion of diverse and vulnerable groups (including persons with disabilities) and follow non-discriminatory policies in relation to them. Explicit reference

¹²⁷ Government of India, Ministry of Rural Development, Deendayal Antyodaya Yojana - National Rural Livelihood Mission (NRLM), n.d.b.

¹²⁸ The National Rural Livelihood Mission set out with an agenda to cover 70 million rural poor households, across 600 districts, 6000 blocks, 250,000 *Gram Panchayats* (Village Councils) and 600,000 villages in the country through self-managed self-help groups (SHGs) and federated institutions and support them for livelihood collectives in a period of eight to 10 years. See Government of India, Ministry of Rural Development, Deendayal Antyodaya Yojana - National Rural Livelihood Mission (NRLM), n.d.a.

¹²⁹ *Lok Sabha* (House of the People) or the Lower House has 543 members: The Members of Parliament of the *Lok Sabha* are directly elected by the Indian public voting in single-member districts. It has a term of five years.

¹³⁰ *Rajya Sabha* (Council of States) or the Upper House is a permanent body not subject to dissolution: the Members of Parliament of the *Rajya Sabha* are elected by the members of all State legislative assemblies by proportional representation. Each member is elected for a term of six years.

¹³¹ National Institution for Transforming India (NITI Aayog), n.d.

¹³² Government of India, Ministry of Corporate Affairs, 2018.

to the inclusion of persons with disabilities is, however, missing from the discourse. Specific mention of persons with disabilities will help reduce their possible exclusion.

11

ORGANIZATIONS OF PERSONS WITH DISABILITIES (articles 4, 29 and 33, Convention on the Rights of Persons with Disabilities)

1. Organizations advocating for persons with disabilities

Although there is no exact count, there may be over 2,000 civil society organizations working for the empowerment of persons with disabilities in different ways. Some are organizations **of** and others are organizations **for** persons with disabilities working in different thematic areas, such as, education, skill development, and advocacy. They may work across disabilities or may be disability-specific.

Some of the organizations work exclusively in relation to a particular disability such as associations/federations of Blind persons and associations/federations of Deaf persons. These are mainly organizations of persons with visual impairment, hearing impairment, mental

illness, intellectual disability that advocate for and provide services to their constituents:

- National Association for the Blind
- All India Confederation of the Blind
- National Federation of the Blind
- National Association of the Deaf
- All India Federation of the Deaf
- Association of Deaf Women.
- The Banyan
- *Jai Vakeel* Foundation and Research Centre (JVF)
- Association for the Mentally Challenged (AMC)
- *Ashadeep*

There are other disability organizations, such as the *Bahuddeshy Viklang Jan* Foundation (Multipurpose Disabled People’s Foundation), a national disability rights advocacy organization that is composed of persons with and without

disability initially assisted by CBM India Trust. Disability organizations are across the country at local, State and national level. Some of them contribute to policymaking and implementation of disability-related programmes. For example, some of the disability organizations based in the National Capital Territory expedited enactment of the Rights of Persons with Disabilities Act, 2016 through representation and protests. Most of them contribute to advocacy at the local level.

2. Participation by organizations of persons with disabilities in the implementation of the Convention

Representatives of organizations of persons with disabilities are included as members of the Central and State Advisory Boards on Disability and District-Level Committees on Disability. They were part of the Committee for harmonization endeavours that yielded the Rights of Persons with Disabilities Act, 2016, and the Mental Healthcare Act, 2017, and of committees to frame the Rights of Persons with Disabilities Rules in the Centre and in the States. Those representatives are also members of the committees set up for harmonizing the Rehabilitation Council of India Act, 1992 and the National Trust Act, 1999.

Furthermore, representatives of organizations of persons with disabilities are included in the important committees constituted by the Government and are invited to conferences and meetings on disability-related issues, including for policymaking and implementation of schemes and programmes.

Subject to their eligibility under a particular scheme, organizations of persons with disabilities and organizations working for persons with disabilities implement many Government schemes, such as those on the following:

- Distribution of aids and appliances;
- Vocational training centres and skills training;
- Running of group homes;
- Running of special schools, and resource-centres for children with disabilities, to promote inclusive education in government, as well as private schools;
- Conduct of accessibility audits of the built environment.

While, in principle, there are no barriers to the participation of organizations of persons with disabilities, in practice, not all of them necessarily get the opportunity to participate, especially those in remote or rural areas or small towns. The more active and proactive organizations of persons with disabilities that have better rapport with the concerned government functionaries tend to get repeat opportunities for participation.

3. Positive outcomes from the involvement of organizations of persons with disabilities in the implementation of the Convention

The involvement of representatives of organizations of persons with disabilities helped in increasing the quantum of reservations in admissions, employment and development programmes. Their inclusion in the process of framing the Rights of Persons with Disabilities Rules, 2017 at the centre ensured inclusion of a provision intended to limit the possibilities for misuse of section 3 (3) of the Rights of Persons with Disabilities Act, 2016: this subsection provides that “no person with disability may be discriminated against on the ground, unless the impugned act or omission is a proportionate means of achieving a legitimate aim.” Rule 3 of the Rights of Persons with Disabilities Rules, 2017 casts the responsibility on the head of the establishment (organization)

to ensure that subsection 3(3) is “not misused to deny any right or benefit to a person with disability in question.” The matter can be taken to the Chief Commissioner for Persons with Disabilities or the State Commissioner for Persons with Disabilities, as the case may be.

Organizations of persons with disabilities also put forth their demand quite effectively for:

- Revision of the upper limit of income that determines eligibility for benefits under various schemes;
- Inclusion of a greater number of aids and appliances under the Government schemes for the provision of aids and appliances to persons with disabilities.

Most civil society organizations, including organizations of persons with disabilities, and disability rights activists joined together to oppose the Government’s proposal in July 2020 to amend some of the penal provisions in the Rights of Persons with Disabilities Act, 2016 and make them compoundable which means the parties can settle the matter by a compromise and the criminal proceedings would be discontinued. Consequently, the offender would not be fined or imprisoned. As a result of the advocacy, the amendments were not taken up at all and the Government withdrew the proposal. This was yet another achievement of the disability rights organizations in India.

The author of this case study organized a webinar on 27 March 2021 to seek the inputs of stakeholders, some of whom represented organizations of persons with disabilities in different parts of the country. Some participants expressed their concern at the inadequate involvement of civil society organizations in the implementation process of the Rights of Persons with Disabilities Act, 2016. They expressed the view that the enhanced involvement of persons with diverse disabilities, their organizations and civil society leadership, could make considerably significant contribu-

tions, particularly in implementation regarding accessibility, rehabilitation services, awareness-raising, data collection, and skills development. The inputs given during and after the webinar have been incorporated in this document (Annex 7).

12 ATTITUDES TO DISABILITY AND PERSONS WITH DISABILITIES

(article 8, Convention on the Rights of Persons with Disabilities)

1. Areas for building the capability of and providing further support to organizations of persons with disabilities

Capability building is needed for creating awareness about the disability-specific and mainstream laws, policies and programmes at State, national and international levels, so that organizations of persons with disabilities are better able to demand their rights and entitlements in a more organized and effective manner. Organizations of persons with disabilities could be further empowered by capability building and deeper understanding about the following:

- Services to individuals with high support needs
- Mechanisms of supported decision-making to help persons with psychosocial and developmental disabilities exercise their legal capacity;
- Identification of persons with rare diseases, chronic pain conditions and newer disabling conditions with efforts to seek appropriate facilities for them.

2. Steps to raise awareness about persons with disabilities, foster respect for their rights, and combat stereotypes and prejudices

In line with Article 8 of the Convention on the Rights of Persons with Disabilities, section 39

of the Rights of Persons with Disabilities Act, 2016 mandates the appropriate Government, in consultation with the Chief Commissioner for Persons with Disabilities or the State Commissioner for Persons with Disabilities, to conduct, encourage, support or promote awareness-raising campaigns and sensitization programmes to ensure the protection of the rights of persons with disabilities guaranteed under the Rights of Persons with Disabilities Act, 2016.

The recommendation of the Committee on the Rights of Persons with Disabilities in its 2019 Concluding observations that the Government implement comprehensive awareness-raising programmes,¹³³ including training duty bearers, is being implemented in India. The Department of Empowerment of Persons with Disabilities implements awareness-raising programmes and has a media plan to generate awareness about the rights of persons with disabilities, in addition to the initiatives taken by the Government for the realization of their rights and entitlements. More details are provided below.

3. Human rights of persons with disabilities in the school curriculum, teacher education, legal education, judicial education, and in the training of public servants

School textbooks contain discussion of disability issues and the rights of persons with disabilities, so that all children come to accept the diversity of their community by working with peers with diverse disabilities and specific support needs, as part of everyday life, thereby promoting inclusion. School textbooks that do this include those produced by the National Council of Educational Research and Training, an autonomous body set up by the Government

of India to assist and advise the Central and State Governments on policies and programmes for qualitative improvement in school education. All teacher education courses cover disability issues.

The Foundation Training and other continuing training programmes for civil servants and other Government functionaries have sessions on disability laws and the rights and entitlements of persons with disabilities. Field visits to the organizations of and institutions for persons with disabilities are also organized for the trainees. On the recommendation of the Chief Commissioner for Persons with Disabilities, the training programmes for judicial officers, Government functionaries and other public officials included sessions on disability issues long before the coming into force of the Rights of Persons with Disabilities Act, 2016.

In Delhi, the State Commissioner for Persons with Disabilities conducted workshops and interactive sessions on the Rights of Persons with Disabilities Act, 2016 and other disability-specific laws and implementation thereof every two to three months for almost three years in the Union Territories Civil Services Directorate (training institute) for government functionaries. The functionaries included doctors, police officers and municipal personnel. In 2019, the State Commissioner for Persons with Disabilities, Delhi, also conducted two workshops, for the Members of the Legislative Assembly of the National Capital Territory of Delhi, on the Rights of Persons with Disabilities Act, 2016, the Convention on the Rights of Persons with Disabilities and the Sustainable Development Goals.

The Judicial Academies organize training programmes and workshops on disability laws for court functionaries and judicial officers. The Courts and Legal Services Authorities at

¹³³ Committee on the Rights of Persons with Disabilities, 2019a, para. 19 (b).

national-, State- and District-level also organize workshops on sensitization and capability building programmes for lawyers, judges and other court functionaries. For example, the State Commissioner for Persons with Disabilities, Delhi, conducted such workshops for all the judicial and non-judicial functionaries of the lower courts of Delhi. The Delhi Legal Services Authority continues to organize such programmes on disability law awareness for other stakeholders.

In 2019, the Department of Empowerment of Persons with Disabilities organized *Divya kala Shakti* (Witnessing the Abilities in Disabilities), a cultural event performed by about 150 youth/children with disabilities, which provided “a wider and unique platform” for persons with disabilities in the performing arts, music and dance in classical, folk and modern style acrobatics and other areas (for example, yoga). The event on 18 April 2019 was attended by the President of India and held at *Rastrapati Bhawan* (official residence of the President of India). It was repeated on 23 July 2019 at the Parliament House Library Building, New Delhi. It was attended by the President of India, Vice President, Prime Minister, Speaker of the *Lok Sabha*, Council of Ministers, Members of Parliament, and Secretaries to the Government of India. Further to encouragement by the President of India and the Prime Minister, the Department of Empowerment of Persons with Disabilities started organizing *Divya kala Shakti* in different parts of the country.

4. Portrayal of persons with disabilities in the media and in popular culture

The official government policy is to portray the positive aspects of disability and treat persons

with disabilities on an equal basis with others. The Indian Broadcasting Foundation, a not-for-profit organization that comprises both news and non-news TV channels, has adopted, with suitable modifications, the Ministry of Information Broadcasting Self-Regulation Guidelines for Broadcasting Sector.¹³⁴ These Guidelines prohibit, among other things, inciting violence against specific groups, including those with mental or physical disabilities.

Despite the above policy, disability advocates have been raising concerns about continuing insensitivity in the portrayal of persons with disabilities and the use of derogatory terminology. The Chief Commissioner for Persons with Disabilities has taken up such matters with the Ministry of Information and Broadcasting and the concerned TV channels, on receipt of complaints, as well as on his own motion, and directed them to take appropriate action and issue guidelines. The Ministry of Information and Broadcasting called a meeting of the representatives of the film producers and TV channels to sensitize them and issued instructions not to use derogatory terms in relation to persons with disabilities and not to portray negative stereotypes.

Earlier, in 2002 and 2006, the Ministry of Information and Broadcasting had issued guidelines for community radio services:

“The community radio service is not allowed to broadcast material that perpetuates hatred against or attempts to demean persons based on ethnicity, nationality, race, gender, sexual preference, religion, age, or physical and mental disability.”¹³⁵

Instances of a charity approach and viewing disability as a result of karma (actions in current and previous states of existence) still prevail and derogatory terminology is used. However, the stringent penal provisions in the Rights of Persons with Disabilities Act, 2016 are effective deterrents. A noteworthy precedent is the order of 21 January 2022 made by the State Commissioner for Persons with Disabilities of Haryana State who imposed a penalty of Rs. 10,000/- (equivalent to USD129.25 at the 9 May 2022 exchange rate) each on 22 District Elementary Education Officers (DEEOs) for not submitting the information sought by the State Commissioner for Persons with Disabilities under the provisions of section 93 of the Rights of Persons with Disabilities Act, 2016. The penalties have been recovered from all the District Elementary Education Officers. The State Commissioner for Persons with Disabilities also directed the District Elementary Education Officers to issue promotion orders for all the eligible junior basic training teachers with disabilities (of children in elementary classes) within one month from the date of the order.

5. Studies of the portrayal of persons with disabilities in the media and popular culture

There is some research on Bollywood depiction of persons with disability that varies from someone pitiable to an independent and self-reliant person.¹³⁶ Several Indian films have addressed the issue with sensitivity (for example, *Taare Zameen Par* on a boy with dyslexia, “Margarita with a Straw” on the coming of age of a teenage girl with cerebral palsy, and *Ahaan*, India’s first Hindi-language film starring a person with Down Syndrome in the lead role). Such films have had significant impact on

the disability movement in the country. However, some films have presented disability in the conventional negative stereotypical light, including in attempts to generate laughs (for example, *Golmaal 3* that pokes fun at people who stammer).¹³⁷

Recently, issues concerning persons with disability in literature and cinema have started to attract interest in colleges and universities. In 2020, a college in Delhi organized the National Conference on Representation of Persons with Disabilities in Literature and Cinema. Its purpose was to analyse the portrayal of persons with disability in order to challenge and understand the notions that are attached to both ability and disability.

¹³⁴ Indian Broadcasting Foundation, n.d.

¹³⁵ Narrain, 2008.

¹³⁶ Sawhney, 2015 and Manhasset, 2019.

¹³⁷ Sawhney, 2015.

13

EQUALITY AND NON
DISCRIMINATION

(article 5, Convention on the Rights of Persons with Disabilities); EQUAL
RECOGNITION BEFORE THE LAW
(article 12, Convention on the Rights of Persons with Disabilities)

1. Recognition of the legal capacity of persons with disabilities

Section 13 of the Rights of Persons with Disabilities Act, 2016 mandates the Government to ensure that persons with disabilities enjoy legal capacity, on an equal basis with others, in all aspects of life and have the right to equal recognition everywhere, as any other person before the law. When a conflict of interest arises between a person providing support and a person with disability in a particular financial, property or other economic transaction, then such a person shall abstain from providing support to the person with disability. A person with disability may alter, modify or dismantle any support arrangement and seek the support of another.

2. Limitations on persons with disabilities under the law in the enjoyment or exercise of their legal capacity, ensuring supported rather than substituted decision-making

While the Government of India has recently taken steps to amend other domestic laws to remove disqualifications due to leprosy or psychosocial disabilities, biases and negative social attitudes remain. Some persons with disabilities have sought, through their representatives, the intervention of courts to exercise their legal capacity. With the enactment of the Rights of Persons with Disabilities Act, 2016 and the Mental Healthcare Act, 2017, limited guardianship replaced the regime of plenary guardianship in the Rights of Persons with Disabilities Act, 2016. This is a step towards the rights-based approach.

The Rights of Persons with Disabilities Act, 2016 provides for limited guardianship as a support system to enable persons with disabilities to take legally-binding decisions. This change was made after the ratification of the Convention on the Rights of Persons with Disabilities and on the recommendation of the Committee with members who represented, inter alia, cross-disability groups.

The Committee's recommendation to repeal all types of guardianship from its national and state legislation and practices, including section 14 of the Rights of Persons with Disabilities Act, 2016, does not appear to be practical and in the best interests of a person:

- With severe intellectual disability, mental illness, or neurological condition;
- In a coma, who needs to draw funds from a bank account, or take a decision on a life-saving medical procedure to be carried out in the face of a life-threatening medical condition and similar situations.

It is important to ensure a robust and well-monitored support system to prevent any misuse. While the intent of the Rights of Persons with Disabilities Act, 2016 is that, in such circumstances, a decision would be taken in accordance with the person's known or inferred will and preferences, it is not clear whether the Committee on the Rights of Persons with Disabilities would see the current formulation of these provisions as fully in compliance with the Convention on the Rights of Persons with Disabilities. The Committee would most likely view these as cases in which a form of supported decision-making would be possible while, at the same time, accepting that safeguards against abuse may be necessary.

In any event, even the mechanism to offer limited guardianship for the taking of legally-binding decisions by persons with mental health conditions or those with developmental disabilities is not yet in place: it has not yet been addressed by the State Rules under the Rights of Persons with Disabilities Act, 2016. This has created a vacuum for persons needing to exercise their legal capacity and requires urgent action to create a robust mechanism at State level, with the active involvement of organizations of persons with disabilities.

As of May 2022, the Special Courts¹³⁸ that have been established under the Rights of Persons with Disabilities Act, 2016 have not yet developed the mechanism or laid down the procedure for how these Special Courts will function, deal with the concept of limited guardianship and ensure the exercise of supported decision-making. In many States, the Special Courts and Special Public Prosecutors are yet to be designated/appointed. On the other hand, the National Trust Act, 1999 continues to be in force providing a mechanism for guardianship (substituted decision-making) for persons with autism, cerebral palsy, mental retardation (intellectual disability) and multiple disabilities and is still in the process of being harmonized with the Convention on the Rights of Persons with Disabilities.

¹³⁸ India, 2016, section 84.

14

FREEDOM FROM TORTURE OR CRUEL, INHUMAN OR DEGRADING TREATMENT OR PUNISHMENT (article 15, Convention on the Rights of Persons with Disabilities); FREEDOM FROM EXPLOITATION, VIOLENCE AND ABUSE (article 16, Convention on the Rights of Persons with Disabilities); PROTECTING THE INTEGRITY OF THE PERSON (article 17, Convention on the Rights of Persons with Disabilities)

1. Law on medical treatment to be administered to a person with disability without the person's free and informed consent

The medical treatment of persons with disabilities is governed by the same provisions as for

other members of society. Regarding persons with mental illness, as per section 89 (6) and (7) of the Mental Healthcare Act, 2017,¹³⁹ such persons shall be provided with treatment in accordance with the informed consent of the person (if necessary, with the support of his/her nominated representative) or after taking into account an advance directive (if any). In the case of a person with mental illness requir-

ing nearly 100 per cent support, the nominated representative may temporarily consent to the treatment plan of such a person on his/her behalf.

2. Exploitation, violence and abuse of persons with disabilities

Instances of abuse, violence and exploitation do take place. Sometimes, the impact is worse due to physical limitations and social set-up. This is particularly the case when the perpetrator is a family member, or more than one family member is involved, or the violation occurs within the confines of an institution.

Current criminal and civil laws cover all the existing forms of exploitation, violence and abuse. The Rights of Persons with Disabilities Act, 2016 can also be used to address issues of abuse, exploitation and violence against persons with disabilities. The Act provides for measures to protect persons with disabilities from all forms of abuse, violence and exploitation and to prevent such from occurring. Section 7 of the Act imposes a duty on the law enforcement agencies (namely the Police and the Magistrates) to protect persons with disabilities from all forms of abuse, violence and exploitation. Any police officer who receives a complaint, or comes to know of abuse, violence or exploitation, has to take action to protect the rights of the concerned persons with disabilities. The Act also contains a strict regime of penalties which serve as deterrents.

There is, however, no mechanism to disaggregate data by disability type, except for the cases taken up with the respective State Commissioner for Persons with Disabilities. The National Crime Records Bureau publishes data

for all kinds of crimes in India; however, the agency does not collect disaggregated data on persons with disabilities. Subject-wise data are not maintained by various courts or even all the State Commissioners for Persons with Disabilities. According to the data maintained by the Office of the State Commissioner for Persons with Disabilities, Delhi, from October 2017 to 2019-2020,¹⁴⁰ the complaints pertaining to abuse, violence and exploitation ranged from 6.6 to 10 per cent of the total complaints before the State Commissioner for Persons with Disabilities, Delhi.

In September 2020, the National Human Rights Commission, in its "Human Rights Advisory on Rights of Persons with Disabilities in context of COVID-19," reaffirmed the importance of data on violence against persons with disabilities and asked the National Crime Records Bureau to include data on persons with disabilities.¹⁴¹

The concern of the Committee on the Rights of Persons with Disabilities about the situation of persons with disabilities, including Muslim persons with disabilities, rendered stateless as a result of the registry process undertaken in the state of Assam and currently in detention camps, appears to be beyond the scope of the Rights of Persons with Disabilities Act, 2016, as that matter relates to identification of foreign nationals staying illegally in Indian territory, irrespective of disability. Persons with disabilities are being treated on an equal basis with others under the laws of the land, with due consideration for the provision of reasonable accommodation for them, in response to the disabling barriers that they face, so that their circumstances are comparable to that of others.

However, the concerned authorities often take action only when directed by the courts or the

¹³⁹ India, 2017.

¹⁴⁰ The data are maintained financial year-wise. Thus, the financial year 2019-2020 runs from 1 April 2019 through 31 March 2020.

¹⁴¹ National Human Rights Commission of India, 2020.

State Commissioner or such other authorities. There is a general lack of awareness and sensitivity amongst many duty bearers about their obligations under the Act. At times, the Departments lack clarity as to who should take a particular action on a particular matter and shift the responsibility to others.

3. Women and girls with disabilities: risks and experiences of violence, including sexual and reproductive health-related violence

Women and girls with disabilities face significant barriers to justice and a higher risk of sexual violence.¹⁴² There is a lack of information and programmes on sexual and reproductive health and rights in formats and languages that women and girls can understand. In the relative absence of efforts to reach them, women and girls with disabilities, particularly those with intellectual or psychosocial disabilities, tend not to know that non-consensual sexual acts are a crime and must be reported to the authorities. Those who are deaf or hard of hearing face barriers to communicating the circumstances of the abuse. They may also be more vulnerable to attacks simply because of the lack of ability to hear sound in their surroundings. For those with physical disabilities, limited mobility compounds the difficulty of escaping from violent situations.

In the case of an offence involving the sexual exploitation of a child or of a woman with disability, section 92 (d) of the Rights of Persons with Disabilities Act, 2016 provides

for a penalty of imprisonment for a minimum of six months and up to five years and the imposition of a fine. The criminal law amendments, as a result of the JS Verma Committee recommendations,¹⁴³ ensured that attention to the specific issues of sexual violence against women with disabilities are part of India's justice system. Despite these provisions, women and girls with disabilities have often been particularly easy targets of sexual violence. The inaccessible criminal justice system fails in many respects to render justice to girls and women with disabilities who are survivors of violence.

Access to justice is particularly difficult for women and girls with disabilities. This is largely due to their extreme vulnerability compounded by the stigma associated with prevailing perceptions of their sexuality and disability. As a result, they tend not to get the support that they need at each stage of the justice process: reporting the abuse to police, being taken seriously, getting appropriate medical care, psychosocial and other support and navigating the court system.

As former Chairperson of the National Commission for Women, Lalitha Kumaramangalam, said in December 2015: "One of the biggest challenges for women (with disabilities) is access (to services), not just physical but access across the board."

15

ACCESSIBILITY (article 9, Convention on the Rights of Persons with Disabilities); FREEDOM OF EXPRESSION AND OPINION, AND ACCESS TO INFORMATION (article 21, Convention on the Rights of Persons with Disabilities)

1. Steps taken by the Government and authorities for the creation of barrier-free environments

The Rights of Persons with Disabilities Act, 2016 provides for the accessibility of the built environment, transport, information and communication technology, and goods and services, including television and radio, electronic, mobile phone and banking, and emergency services. The Government of India published standards in Rule 15 of the Rights of Persons with Disabilities Rules, 2017 on 15 June 2017,

to be complied with by all relevant public bodies and private actors in the following areas:

- (a) For buildings that are open to the public, irrespective of ownership, the Harmonised Guidelines and Space Standards for Barrier Free Built Environment for Persons With Disabilities and Elderly Persons (issued by the Ministry of Urban Development, Government of India, March 2016), apply.
- (b) Standard for Bus Body Code for transportation system: as specified in "the notification of the Government of India in the Ministry of Road Transport and Highways, vide number G.S.R. 895(E), dated the 20th September, 2016."

¹⁴² Human Rights Watch, 2018.

¹⁴³ Verma and others, 2013. The Committee comprised the former Chief Justice of India, Justice JS Verma, Justice Leila Seth, former High Court Judge, and Mr Gopal Subramaniam, Senior Advocate, and was constituted by the Government of India in response to the country-wide peaceful public outcry of civil society, led by the youth, against the failure of Government to provide a safe and dignified environment for the women of India who were constantly exposed to sexual violence. The immediate cause was the brutal gang rape of a young woman in the heart of the nation's capital in a public transport vehicle in the late evening of 16 December 2012.

(c) For Information and Communication Technology:

- (i) Website standard, as specified in the Guidelines for Indian Government websites and as adopted by the Department of Administrative Reforms and Public Grievances, Government of India.
- (ii) Documents to be placed on websites are required to be in Electronic Publication (ePUB) or Optical Character Reader (OCR)-based PDF format.

In its 2019 Concluding observations, the Committee on the Rights of Persons with Disabilities expressed its concern regarding the low number of television channels that provided closed captioning and Indian Sign Language interpretation and recommended that steps be taken to improve this situation.¹⁴⁴ In this regard, instructions to follow the standards for accessibility of television programmes have been issued by the Ministry of Information and Broadcasting; the guidelines are applicable throughout the country.¹⁴⁵

Standards for different departments, such as those responsible for airports and railways, have also been drafted and were to be notified by December 2021, as a part of the Rights of Persons with Disabilities Rules, 2017.

While some local authorities in the States have amended their building bye-laws, others are in the process of doing so. According to the Rights of Persons with Disabilities Act, 2016, no establishment is to be granted permission, if the building plan does not adhere to the Rules formulated by the Central Government containing the Harmonised Guidelines and Space Standards for Barrier Free Built Environment for Persons with Disabilities and

Elderly Persons.¹⁴⁶ The certificate of completion or permission to occupy a building will be given only if it has adhered to accessibility rules and standards. This is applicable to new buildings and is being implemented. However, exceptions may not be ruled out. For existing structures, a time limit of five years has been prescribed, unless extended by the Central Government.

The Department of Empowerment of Persons with Disabilities launched the **Accessible India Campaign** (*Sugamya Bharat Abhiyan* in Hindi) in December 2015 with the goal of achieving universal accessibility for persons with disabilities. This is compatible with Goal 3 (Targets 3.A, 3.B, 3.C) of the Incheon Strategy to “Make the Rights Real” for Persons with Disabilities in Asia and the Pacific.

The Accessible India Campaign has three verticals (or fields of operation) with ambitious timelines and targets – accessibility of:

- (a) Built environment;
- (b) Three modes of transport (road, rail and air);
- (c) Websites and documents.

It is a gigantic task to retrofit and make the existing built environment accessible in such a short time.

The Department of Empowerment of Persons with Disabilities has provided funds to the States for implementing the first phase of the Campaign which includes an access audit of the identified Government buildings and websites and making them accessible. The total number of Government buildings retrofitted under the Campaign by February 2021 was 1,057. Similarly, transport and information and communication technology infrastructure is also

being made accessible. For instance, all public transport being added to the fleet is accessible. Also being introduced in public transport are low-floor buses with ramps, standard floor buses with hydraulic lifts or dedicated bus rapid transit corridors with corresponding level boarding platforms and other facilities. The Metro rail provides level boarding and other accessibility measures such as lifts, tactile flooring, signage and attendant services. Most airports already have accessibility facilities, although there is scope for improvement. In addition to the general guidelines, these are governed by the Director-General Civil Aviation's Civil Aviation Requirements (CAR) for carriage by air of persons with disabilities.

According to the information received by this author from 12 States, of the 207,908 buses with the State Road Transport Corporations of those States, 57,993 (27.89 per cent) buses were accessible. Indian Railways, under the Ministry of Railways, Government of India, that operates the national railway system, is making railway stations and rail coaches accessible in phases.

Of the websites of the States, 917 have been selected for funding to make them accessible and implementation is being closely monitored by the Department of Empowerment of Persons with Disabilities. Nine States reported that they had selected 1,211 websites to make those accessible under the Accessible India Campaign. Those websites include the ones for which the Department of Empowerment of Persons with Disabilities has provided funding support. By February 2021, 947, that is, 69.94 per cent of the selected websites, had been made accessible.

The Ministry of Electronics and Information Technology is implementing the “Common Minimum Framework” project for making 100 Central Government websites compliant with the Guidelines for Indian Government Websites (GIGW)¹⁴⁷ which require that persons with disabilities can perceive, understand, navigate, interact with and contribute through the website. Information in the public domain as of May 2021 indicated that 61 websites had been made GIGW-compliant.¹⁴⁸

There are issues of capability building and training of the executing functionaries, sensitization of the duty bearers and the community, coordination between various Departments and monitoring. Special attention to these issues is required for better implementation.

Although the targets for the Accessible India Campaign were not achieved within the time frame set, the Campaign has created much awareness and action around the country across all the three verticals: the built environment, transport and ICT. While imperfections cannot be ruled out, the Campaign has touched almost all sections of society as observed by the author while interacting with persons with disabilities during site visits for third-party evaluation of various schemes, including the Accessible India Campaign, of the Department of Empowerment of Persons with Disabilities. For instance, a woman with disability, barely literate, who was visiting the Office of the District Empowerment of Persons with Disabilities Officer to apply for a disability pension, observed the following:

- (a) Retrofitting of buildings;
- (b) Installation of hand rails, ramps and accessible toilets;

¹⁴⁷ Government of India, Ministry of Electronics and Information Technology, n.d.

¹⁴⁸ The Content Management Framework (CMF) project has been initiated with the view of standardization and improvement in presentation and content delivery of Central Government Ministry/Department websites. The CMF scheme is primarily directed towards making Government websites more usable, user-centric and accessible. The CMF is currently planned to be rolled out for the websites of 100 Central Government Ministries/Departments to foster the development of citizen-centric and universally-accessible websites. See Content Management Framework, n.d. <<https://cmf.gov.in/index.html#about-cmf>>

¹⁴⁴ Committee on the Rights of Persons with Disabilities, 2019a, paras. 44 (c) and 45.

¹⁴⁵ Government of India Ministry of Information and Broadcasting, 2019.

¹⁴⁶ Government of India, Ministry of Urban Development, 2016.

- (c) Dedicated parking space for persons with disabilities;
- (d) The empathetic and supportive approach of the functionaries.

All such advances have instilled in persons with disabilities confidence, a sense of being rights holders and courage to demand their rights and entitlements. The best of the models, as well as the worst ones, co-exist side by side almost everywhere.

Some of the accessibility-related orders of the Courts and the State Commissioner for Persons with Disabilities, Delhi directed at the following have activated the concerned Departments and created much awareness of accessibility: Government buildings; educational institutions; hospitals; police stations; toilets; footpaths; parks; local markets, including service outlets such as hair salons and small shops; bus stops; places of worship; cinema halls; stadia; and sports facilities.

Accessible facilities are now visible, at least in the cities.

The Department of Empowerment of Persons with Disabilities also launched the *Sugamya Bharat* (Accessible India) mobile phone app in March 2021.¹⁴⁹ The app allows users to submit complaints of inaccessibility, thereby facilitating their remediation by the concerned authorities. It is intended to crowdsource from citizens issues, possible solutions and good practices in creating barrier-free infrastructure. The functioning of the app is overseen by a project monitoring unit which forwards complaints to the appropriate authorities, including District Magistrates and heads of urban local bodies.

¹⁴⁹ The app can be downloaded at <https://play.google.com/store/apps/details?id=com.geostat.sugamyabharatMOH> (accessed 7 May 2022).

¹⁵⁰ Indian Sign Language Research and Training Centre, n.d.a.

2. Indian National Sign Language and its use

The first attempt to develop the Bi-lingual (English and Hindi) Indian Sign Language (ISL) Dictionary was made by CBM India Trust and Ramakrishna Mission Vivekananda University, Coimbatore in 1997. It could document signs for only 600 out of the 1600 words listed in the lexicon.

The Government of India, through the Department of Empowerment of Persons with Disabilities, promotes Indian Sign Language (ISL). The Government set up the Indian Sign Language Research and Training Centre (ISLRTC)¹⁵⁰ with the following objectives:

- (a) To develop manpower for using Indian Sign Language and teaching and conducting research in ISL, including bilingualism. For developing Indian Sign Language Interpreters in the country, the Indian Sign Language Research and Training Centre runs courses on Indian Sign Language interpretation for employees of Government organizations and individuals.
- (b) To promote the use of Indian Sign Language as educational mode for deaf students at primary, secondary and higher education levels.
- (c) To carry out research through collaboration with universities and other educational institutions in India and abroad and create linguistic records/analysis of the Indian Sign Language, including creation of Indian Sign Language corpus (vocabulary).
- (d) To orient and train various groups, i.e., Government officials, teachers, professionals, community leaders and the public at large for understanding and using Indian Sign Language.
- (e) To collaborate with organizations of Deaf persons and other institutions in the field

of disability to promote and propagate Indian Sign Language.

- (f) To collect information relating to Sign Languages used in other parts of the world, so that this input can be used to upgrade the Indian Sign Language.

The Indian Sign Language Research and Training Centre website has a link to a Zone-wise¹⁵¹ directory of 339 Level-C/ D-certified Indian Sign Language Interpreters in India.¹⁵² The list has the name, contact details, and certification details of the Indian Sign Language interpreters. This responds to the concern of the Committee on the Rights of Persons with Disabilities relating to freedom of expression and opinion, and access to information (article 21).¹⁵³

The Indian Sign Language Research and Training Centre launched online the third edition of the Indian Sign Language Dictionary with 10,000 terms on 17 February 2021.¹⁵⁴ This was an increase from the 6,000 terms in the second edition launched on 27 February 2019. The first Indian Sign Language Dictionary of 3000 terms was launched on 23 March 2018. This progress highlights Government support for the advancement of Indian Sign Language. The entries are under the categories of academic, legal, medical, technical and everyday terms.

There is a demand for the recognition of Indian Sign Language as one of the official languages of the Republic of India and its inclusion in the Eighth Schedule to the Constitution of India; this was also recommended by the Committee on the Rights of Persons with Disabilities.¹⁵⁵ A case filed in the Delhi High Court seeking an order from the court that the Government include

¹⁵¹ Six Zones: North, South, East, West, Central, North-East.

¹⁵² Indian Sign Language Research and Training Centre, n.d.b.

¹⁵³ Committee on the Rights of Persons with Disabilities, 2019a, para. 44 (a).

¹⁵⁴ Indian Sign Language Research and Training Centre, n.d.c.

¹⁵⁵ Committee on the Rights of Persons with Disabilities, 2019a, para. 45 (a).

¹⁵⁶ High Court of Delhi, 2019.

¹⁵⁷ High Court of Delhi, 2019, paras. 6–10.

Indian Sign Language in Schedule VIII to the Constitution of India was rejected.¹⁵⁶ The Court held that "enough and adequate recognitions (of ISL) have been given by the respondent": as seen in sections 2, 16, 17 and 42 of the Rights of Persons with Disabilities Act, 2016 and the establishment of the Indian Sign Language Research and Training Centre and the training programmes and resources which the Centre was planning to offer.¹⁵⁷ It was deemed that enough steps had been taken by the Government to recognize, protect and preserve the Indian Sign Language. No decision as to the possible inclusion of Indian Sign Language in the Constitution has so far been taken by the Government.

3. Accessible documents and public announcements with sign language interpretation or captioning

The Rights of Persons with Disabilities Act, 2016 requires that government documents be prepared in accessible formats. Its compliance is generally being enforced, but instances of non-compliance do occur. The news channels have started to broadcast announcements accompanied by Indian Sign Language interpretation. However, the full implementation of accessible information, especially in emergency situations, is yet to happen due to inadequate availability of technical expertise of the scale needed for the purpose.

4. Braille signage in buildings

Some public buildings use signage in Braille and with colour contrast. This practice is just beginning and will soon be institutionalized for all existing and new buildings as has happened for lifts.

16

EDUCATION AND VOCATIONAL AND OTHER SKILLS TRAINING

(articles 20, 24 and 27, Convention on the Rights of Persons with Disabilities)

1. Policy on inclusive education in India

India has a policy of promoting inclusive and quality education for all and has initiated various measures in this regard. During 2018-2019, the Government of India launched *Samagra Shiksha* — an integrated scheme and an overarching programme for school education. It covered children from pre-school to class XII. Its aim was to ensure inclusive and equitable quality education at all levels of school education. *Samagra Shiksha* subsumes the erstwhile centrally-sponsored schemes, namely, *Sarva Shiksha Abhiyan* (Education for All), *Rashtriya Madhyamik Shiksha Abhiyan* (Grades IX and X) and Teacher Education (TE). It envisages

the “school” as a continuum from pre-school, primary, upper primary, secondary to senior secondary levels.

The National Education Policy 2020 recognizes that, while there has been steady progress towards bridging gender and social category gaps in all levels of school education, large disparities still remain. This is especially the case at the secondary level for persons with disabilities (including those with learning disabilities) among other socio-economically disadvantaged groups. The emphasis of the Policy is on ensuring “Equitable and Inclusive Education: Learning for All.” The highest priority will be accorded to ensuring the inclusion and equal participation of children with disabilities in the National Early Childhood Care and Education

(ECCE) Curriculum Framework for all children below six years of age¹⁵⁸ and in the schooling system.

The Policy commits to providing resources to schools for the integration of children with disabilities, for the recruitment of special educators with cross-disability training, and for the establishment of resource centres, wherever needed, especially for children with severe or multiple disabilities. Barrier-free access for all children with disabilities will be ensured, as required by the Rights of Persons with Disabilities Act, 2016. Schools will be supported to provide accommodation and support mechanisms tailored to suit the needs of all children with disabilities and to ensure their full participation and inclusion in the classroom. In particular, assistive devices and appropriate technology-based tools, as well as adequate and language-appropriate teaching-learning materials (for example, textbooks in accessible formats such as large print and Braille) are being made available to help children with disabilities integrate more easily into classrooms and engage with their peers and with teachers.¹⁵⁹ The assistive devices, and tools are already being provided under the existing schemes of the Government of India and the State Governments; this is a dynamic process. With advancements in technology and research, new devices are added to the list to meet the needs of children with disabilities.

2. Government's policy on "special schools" and "special classes"

The law and policy recognize that some children may need special school services. Hence, the choice is left to the child/parent to choose between special or inclusive school.

In practice, many private schools which claim to be inclusive schools, conduct special classes for children with certain disabilities of a higher degree, such as intellectual disability, autism or multiple disabilities. This arrangement is not in accordance with the policy of the Government on education. Some have advocated that the special schools should be converted into and used as resource centres for inclusive education. Although there has been no explicit policy announcement in this regard, reduced financial support to special schools by the Government is indicative of this.

The National Policy provides for the setting up of resource centres, though not necessarily by converting special schools. The number of schools for children with special needs has been fluctuating over the years: their number declined from 16,442 during 2012-2013 to 12,645 during 2017-2018 and to 11,225 during 2019-20, as per the Unified District Information System for Education (UDISE) of the Ministry of Education.¹⁶⁰

The Department of Education, Government of National Capital Territory of Delhi, has already initiated the setting up of resource centres, following an order and recommendation of the State Commissioner for Persons with Disabilities.¹⁶¹

3. Vocational and other skill training for persons with disabilities

All the trades available under the National Skill Development Council are available to persons with disabilities in the mainstream trades. In pursuance of a specific provision of the National Policy for Skill Development and Entrepreneurship 2015, in 2015, the Skill Council for Persons with Disability was set up jointly by the Ministry of Social Justice and Empowerment (MSJE), the National Skill Development Corporation (NSDC) and the Confederation of Indian Industry (CII). The Skill Council for Persons with Disability has undertaken a number of initiatives in this field.¹⁶² Every mainstream skill training centre is also mandated to deliver inclusive training, as provided for by the Rights of Persons with Disabilities Act, 2016.¹⁶³

All vocational and technical training by mainstream training institutions, such as industrial training institutes,¹⁶⁴ polytechnics and undergraduate/postgraduate engineering courses, are open to persons with disabilities, with not less than 5 per cent of the places reserved for them. Furthermore, 21 vocational rehabilitation centres for persons with disabilities have been set up in the country (at Agartala, Ahmedabad, Bangalore, Bhubaneswar, Chennai, Delhi, Guwahati, Hyderabad, Jabalpur, Jaipur, Kanpur, Kolkata, Ludhiana, Mumbai, Patna, Puducherry, Ranchi, Srinagar, Thiruvananthapuram, Una and Vadodara). The Vocational Rehabilitation Centre at Vadodara is exclusively for women with disabilities. The objective of vocational

rehabilitation centres, among others, is evaluation of persons with disabilities to assess their physical capability, measure their psychological strengths and weaknesses in respect of their intelligence, aptitude, areas of interest, psychomotor dexterity, personality traits and areas of adjustment to help them fulfil their potential.¹⁶⁵

The State of Uttar Pradesh set up the Dr Ambedkar Institute of Technology for Persons with Disabilities at Kanpur in 1997, just after the enactment of the Persons with Disabilities Act, 1995 to provide diploma and degree-level technical education to persons with disabilities. All of the places in the diploma programmes are reserved for persons with locomotor disability and Deaf persons. Of the places in degree programmes, 60 per cent are reserved for persons with disabilities (specifically persons with locomotor disability and Deaf persons). The students with disabilities from the Institute find placement in reputed companies.¹⁶⁶

4. Barriers in obtaining access to vocational and skill training

For vocational and skill training to advance, there is a need for the following:

- Adequate availability of inclusive training centres near the homes of persons with disabilities;
- Appropriate and accessible teaching-learning materials and trained instructors;

¹⁶² Skill Council for Persons with Disability, n.d.a.

¹⁶³ Section 19 (2): "The schemes and programmes referred to in sub-section (1) shall provide for— (a) inclusion of person with disability in all mainstream formal and non-formal vocational and skill training schemes and programmes; (b) to ensure that a person with disability has adequate support and facilities to avail specific training; (c) exclusive skill training programmes for persons with disabilities with active links with the market, for those with developmental, intellectual, multiple disabilities and autism;"

¹⁶⁴ Industrial Training Institutes (ITI) and Industrial Training Centres (ITC) are post-secondary schools in India constituted under the Directorate-General of Training (DGT), Ministry of Skill Development and Entrepreneurship, Government of India, to provide training in various trades.

¹⁶⁵ Government of India, Ministry of Labour and Employment, n.d.a.

¹⁶⁶ Information contained in a letter dated 9 April 2021 from the Director of the Ambedkar Institute of Technology for Handicapped, Kanpur, India, to Mr. T.D. Dhariyal (author of this case study) (on file with author).

¹⁵⁸ Government of India, Ministry of Women and Child Development, 2013.

¹⁵⁹ Government of India, Ministry of Education, 2020, pp. 24–28.

¹⁶⁰ Government of India, Ministry of Education, Department of School Education and Literacy, n.d.

¹⁶¹ Government of the National Capital Territory of Delhi, Directorate of Education, 2018.

- (c) Willingness of parents to send their children for training, even if this means a long distance from home.

The situation is expected to improve, with the continued development and progress of the Skill Council for Persons with Disability.¹⁶⁷

17

RIGHT TO LIFE (article 10, Convention on the Rights of Persons with Disabilities); HEALTH (article 25, Convention on the Rights of Persons with Disabilities); HABILITATION AND REHABILITATION (article 26, Convention on the Rights of Persons with Disabilities)

1. Principal threats to enjoyment of the right to life and life expectancy of persons with disabilities

The principal threats to life of persons with disabilities in India are: inadequate early detection of disabilities, lack of professional care and access to health and treatment facilities in rural and remote areas, and household poverty. There is no disaggregated data on the life expectancy of persons with disabilities. The life expectancy for the general population was 67.13 years.

Census 2011 data show the proportion of persons with disabilities to the respective age groups:¹⁶⁸ 4.15 in the age group of 60-69 years, 6.22 in the age group of 70-79 years, 8.41 in the age group of 80-89 years and 8.40 in the age group of 90 plus years, as against 2.21 per cent to the total population. The proportion of persons with disabilities gradually increases from 1.14 for 0-4 years to 8.40 in the 90 plus years population, apparently due to counting persons with age-related disabilities.

Dementia is one of the major contributors to disability in older persons. As per Census 2011,

¹⁶⁷ Skill Council for Persons with Disability, n.d.b.

¹⁶⁸ Office of the Registrar General and Census Commissioner, India, 2013.

people aged 65 and above constituted 5.5 per cent (65 million) of the total population of India. As per the National Health Portal,¹⁶⁹ the prevalence of dementia in India is reported to be 2.7%.

By 2050, people over 60 years of age are predicted to constitute 19.1% of the total population. This ageing of the Indian population is expected to be accompanied by a dramatic increase in the incidence and prevalence of dementia. The number of older persons with dementia is growing and is expected to rise dramatically in the coming decades.¹⁷⁰ According to the *Dementia in India 2020* report,¹⁷¹ an estimated 5.3 million Indians aged >60 years had dementia in 2020, and this number is projected to exceed 14 million by 2050.

2. Access to health care services

Section 25 of the Rights of Persons with Disabilities Act, 2016 mandates the Government and the local authorities to provide free health care facilities in the vicinity, especially in rural areas, for persons with disabilities in lower income groups. Priority in attendance and preference in treatment is to be given to persons with disabilities and barrier-free access is to be ensured in all parts of Government and private hospitals and other healthcare centres. The *Swavlamban* Health Insurance Scheme was implemented through the Trust Fund for Persons with Disabilities on a pilot basis, to cover 50,000 persons with disabilities within a period of two years. During 2015-2016 and 2016-2017, 46,758 persons with disabilities were enrolled under the Scheme.

In 2018-2019 the Government launched the *Ayushman Bharat – Pradhan Mantri Jan Arogya Yojana*, the National Health Insurance Programme. This Programme provides free secondary and tertiary care hospitalization of up to Rs 0.5 million per family per year (equivalent to USD 6,470.68 at the 10 May 2022 exchange rate). All persons with disabilities living below the poverty line in rural areas are covered (some 0.72 million rural families). Several services are available free of charge in public health facilities, particularly for persons with disabilities.

The Government of India is also implementing the Reproductive, Maternal, Newborn, Child and Adolescent Health (RMNCH+A) Strategy and Programme under the National Health Mission for improving the health of women and girls, including women and girls with disabilities.

The Government of India's National Health Mission has initiated a programme for children's health, *Rashtriya Bal Swasthya Karyakram* (RBSK). The healthcare provider teams visit schools and *Anganwadi* centres (centres for children aged below 6 years) to identify children with birth defects and developmental delays, including disability. These children are then referred to District Early Intervention Centres to prevent disability and minimize its negative impact on child development. The children identified with developmental delays are comprehensively screened for any other chronic health conditions. Comprehensive free treatment is also provided for management and treatment at various identified health facilities for such children. There are more than 11,000 RBSK field teams and 92 District Early Intervention Centres across the country. The number of District Early Intervention Centres is grossly inadequate for the 718 districts in the country.

Apart from an inadequate number of health-care functionaries and District Early Intervention Centres, accessing health facilities which are open to all, is challenging for persons with disabilities, particularly for those in remote and rural areas.

3. Health services specifically tailored to persons with disabilities

While, in theory, the health services are available, in practice, the supply is not commensurate with the need in general and persons with disabilities in particular. Furthermore, persons with disabilities face discrimination in health insurance products that are available to others. An independent third-party evaluation of the *Deen Dayal* Rehabilitation Scheme¹⁷² carried out in 2018-2019 concluded that the Scheme was very fruitful and effective for the rehabilitation of persons with disabilities. The Scheme was revised to ensure more effective implementation of the Rights of Persons with Disabilities Act, 2016, with effect from 1 April 2018. The State Governments also have schemes which have good coverage.

¹⁶⁹ National Health Portal, n.d.

¹⁷⁰ Ravindranath and Sundarakumar, 2021.

¹⁷¹ Kumar and others, eds., 2019.

¹⁷² Government of India, Ministry of Social Justice and Empowerment, Department of Empowerment of Person with Disabilities, 2018.

18

WORK AND EMPLOYMENT (article 27, Convention on the Rights of Persons with Disabilities)

1. Persons with disabilities in the regular workforce

The Census 2011 provided data on main workers, marginal workers and non-workers.

Workers were mainly classified as main and marginal workers on the basis of amount of paid work they engaged in over the relevant year. Those workers who had worked for six months (183 days) or more, including the salaried persons in Government or private sector, were termed as main workers. Those who had worked for less than 6 months (less than 183 days) in a year were termed as marginal workers.

Table 13
Proportion of workers by age group to total number (persons with disabilities in India – Census, 2011)¹⁷³

PROPORTION OF WORKERS, MAIN WORKERS AND MARGINAL WORKERS BY RESPECTIVE AGE GROUP TO TOTAL PERSONS WITH DISABILITIES IN INDIA – CENSUS, 2011 ¹⁷⁴			
Disabled	Workers (WPR) ²	Main Workers	Marginal Workers
Total	36.3	26.0	10.3
0-14	4.1	1.8	2.3
15-59	50.5	36.9	13.6
60+	28.3	19.3	9.0
Age not stated	37.5	26.2	11.3

¹⁷³ Government of India, Ministry of Statistics and Programme Implementation, Social Statistics Division, 2017, p. 31.

¹⁷⁴ Government of India, Ministry of Statistics and Programme Implementation, Social Statistics Division, 2017, p. 31.

Table 14
Work status of persons with disabilities, Census, 2011¹⁷⁵

Total workers out of total persons with disabilities	CL out of total workers	AL out of total workers	HHI out of total workers	Other workers out of total workers	Non-workers out of total persons with disabilities	Total persons with disabilities
9,744,386 (36.34%)	2,274,322 (22.7%)	2,977,272 (31%)	43,5053 (4.5%)	4,057,739 (41.6%)	17070608 (63.66%)	26,814,994

CL: Cultivator, AL: Agricultural labourer, HHI: worker hired in household industries

Among the 36.34 per cent of workers with disabilities, 22.7 per cent were cultivators, 31 per cent were agricultural labourers and 4.5 per cent were in household industries. A significant proportion, 41.6 per cent, were in undefined work.

A survey covering the employment of persons with disabilities from July-December 2018 published in 2019¹⁷⁶ found that self-employed workers with disability aged 15 years and above were 61 per cent of those employed; the percentage of regular wage or salaried was very small at 14.5 per cent and casual labourers were 24.5 per cent. Even amongst the regular wage/salaried employees aged 15 years and above, a large proportion, 31.8 per cent, were engaged in the non-agriculture informal sector. Thus, a majority of persons with disabilities did not have an assured income. Lack of accessibility, mismatch of qualifications and skills, and the attitudinal barriers of employers are the major barriers that persons with disabilities face in finding regular employment.

2. Reservation in Government and equal opportunity policy in the private sector

The Rights of Persons with Disabilities Act, 2016 provides for the reservation (quotas) of not less than 4 per cent of the vacancies in Government and public sector undertakings. Both Government and private sector organizations are mandated to adopt and follow their own equal opportunity policy, and to publish it or register it with the Chief Commissioner for Persons with Disabilities or the State Commissioner for Persons with Disabilities, as the case may be. The Department of Personnel and Training, Government of India, and the State Governments have issued detailed guidelines on the implementation of reservation, the provision of various facilities, reasonable accommodation and accessible environment, to enable employees with disabilities to perform their duties. Reservation in government posts has been implemented in India since 1977, that is well before the Persons with Disabilities Act, 1995 came into force. Cases of non-compliance with reservation requirements are almost negligible now. The majority of employment-related complaints against Government organizations pertain to faulty implementation and procedural mistakes.

¹⁷⁵ Government of India, Ministry of Statistics and Programme Implementation, Social Statistics Division, 2017, p. 72.

¹⁷⁶ Government of India, Ministry of Statistics and Programme Implementation, National Statistics Office, 2019, p. 97.

3. Legal protection against discrimination on the ground of disability and the denial of reasonable accommodation

No Government organization can discriminate against any person with disability on the basis of disability in any matter relating to employment:

Section 20 of the Rights of Persons with Disabilities Act, 2016 provides.

“(1) No Government establishment shall discriminate against any person with disability in any matter relating to employment: Provided that the appropriate Government may, having regard to the type of work carried on in any establishment, by notification and subject to such conditions, if any, exempt any establishment from the provisions of this section.”

Private companies also have to ensure equal opportunity to persons with disabilities in the matter of employment.

Section 20(2) of the Rights of Persons with Disabilities Act, 2016 mandates the provision of reasonable accommodation, providing that

“(1) Every Government establishment shall provide reasonable accommodation and appropriate barrier free and conducive environment to employees with disability.”

Rule 3 of the Rights of Persons with Disabilities Rules, 2017 prohibits compelling a person with disability to partly or fully pay the costs of a reasonable accommodation.

Rule 3. **Establishment not to discriminate on the ground of disability.** --

“(4) No establishment shall compel a person with disability to partly or fully pay the costs incurred for reasonable accommodation.”

Contraventions of any provision of the Rights of Persons with Disabilities Act, 2016 or any rules made under the Rights of Persons with Disabilities Act, 2016 run the risk of penal action under sections 89 and 90 of the Act. The penalty can extend up to Rs. 0.5 million (equivalent to USD 6470.68 at the 10 May 2022 exchange rate). There is provision for the State Government to specify, for each district, a Court of Session to be a Special Court to try offences under that Act.

4. Remedies for discrimination on the basis of disability in accessing employment, during employment or on the termination of employment

In addition to any proceedings before a court that may be available to prevent or seek a remedy for discrimination on the ground of disability, an aggrieved person can file a complaint with the Chief Commissioner for Persons with Disabilities/State Commissioner for Persons with Disabilities. The Chief Commissioner for Persons with Disabilities or the State Commissioner for Persons with Disabilities is required

to dispose of the complaint within 60 days and in exceptional cases, within 30 days.¹⁷⁷

Section 20 (4) of the Rights of Persons with Disabilities Act, 2016 prohibits terminating the employment or reducing the rank of a government or public sector employee who acquires a disability during her or his service. If it is not possible to assign the employee to a particular post, she/he may be kept on in a supernumerary post until a suitable post is available or she/he attains the age of superannuation, whichever is earlier. This provision was also in the Persons with Disabilities Act, 1995 and its implementation continues under the new Act. The Act also provides for framing policies for the posting and transfer of employees with disabilities. The Department of Personnel and Training has issued comprehensive instructions in this regard and for providing various facilities, which are generally followed. Cases of non-compliance are reported to the Chief Commissioner for Persons with Disabilities/State Commissioner for Persons with Disabilities by the aggrieved person for resolution.

¹⁷⁷ Government of India, Ministry of Social Justice and Empowerment, Department of Empowerment of Persons with Disabilities (*Divyangjan*), 2017a, Rule 3.

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ADEQUATE STANDARD OF LIVING AND SOCIAL PROTECTION (article 28, Convention on the Rights of Persons with Disabilities)

Section 24 of the Rights of Persons with Disabilities Act, 2016 provides that the appropriate Government within the limit of its economic capacity and development should formulate necessary schemes and programmes “to safeguard and promote the right of persons with disabilities for adequate standard of living to enable them to live independently or in the community.” The quantum of assistance to persons with disabilities under such schemes and programmes shall be at least 25 per cent higher than that of similar schemes applicable to others.

The Central Government and the State Governments provide disability pensions and unemployment allowances to persons with disabilities, subject to their eligibility. The disability

pension scheme is implemented in every State and Union Territory. However, the Government does not maintain segregated data on the number of persons with disabilities living below the poverty line. According to a Reserve Bank of India¹⁷⁸ publication of 18 September 2020, 21.92 per cent of the overall population in India was living below the poverty line in 2011-2012 (as of 1 March 2012). Thus, it is estimated that out of 26.8 million persons with disabilities in 2011, approximately 5.9 million persons with disabilities might have been living below the poverty line. However, the number could be higher than this: persons with disabilities are more likely to be poorer, as compared to those without disabilities.

¹⁷⁸ Reserve Bank of India, 2020.

20

LIBERTY AND SECURITY OF PERSON (article 14, Convention on the Rights of Persons with Disabilities); LIVING INDEPENDENTLY AND BEING INCLUDED IN THE COMMUNITY (article 19, Convention on the Rights of Persons with Disabilities); RESPECT FOR PRIVACY (article 22); RESPECT FOR HOME AND THE FAMILY (article 23, Convention on the Rights of Persons with Disabilities)

1. Detention of persons with disabilities on the basis of disability

The law does not permit detention of persons with disabilities on the ground of disability. In fact, the Rights of Persons with Disabilities Act, 2016 mandates that persons with disabilities have the right to equal recognition before the law everywhere, as any other person. The

Act also mandates that persons with disabilities are not confined to any particular living arrangement and have the right to “live independently or in the community.”¹⁷⁹ However, in the case of persons with psychosocial disabilities, there is a huge gap between the provisions of the legislation and practice. A study¹⁸⁰ conducted by a Task Force jointly constituted on 12 January 2018 by the Ministry of Health and Family Welfare, and the Ministry of Social

¹⁷⁹ India, 2016, section 24 (1).

¹⁸⁰ The Hans Foundation, 2019.

Justice and Empowerment (Department of Empowerment of Persons with Disabilities) and The Hans Foundation found that 36.25 per cent (4,935) of residential service users at state psychiatric facilities had been living in those institutions for one year or more. There were more women than men (54.3 per cent women, 45.7 per cent men) in the long-stay population. The median duration of stay was six years. Close to half (48.8 per cent) had lived in institutions for one to five years, and 11.4 per cent had lived for over 25 years in mental hospitals. The majority (77.1 per cent) were living in closed wards and 1 per cent were in solitary confinement, often for years.

2. Persons with disabilities held in detention

No separate data are maintained about persons with disabilities who may be in detention. The laws of the land are applicable to persons with disabilities without any discrimination on the basis of disability.

3. Persons with disabilities experiencing homelessness

The data on the number of homeless persons with disabilities are not available from Government sources. According to the guesstimates of some civil society organizations, the percentage of persons without disabilities experiencing homelessness is about 1 per cent of the entire population of cities; this translates to about 3.7 million. As per Census 2011, the population of persons with disabilities in urban areas was 8,178,636.¹⁸¹ One percent of this works out to 81,786.

4. Persons with disabilities living in institutional settings

No data are available on persons with disabilities living in institutional arrangements. However, the study conducted by the above-mentioned Task Force,¹⁸² identified a figure of 4,935 people with one or more years of stay in 43 State mental hospitals across 24 States in the country. This does not include persons with psychosocial disabilities who may be in all the mental hospitals and homes run in the Government and civil society organization sectors.

5. Options for persons with disabilities to live in particular arrangements

The State Governments and civil society organizations maintain homes for persons with disabilities who are homeless and those who have been abandoned or are separated from their families. All possible facilities, such as education, vocational training, and health facilities, are provided to them within the homes. As per the policy of the Government, efforts are made to unite such children and persons with their families. Despite those efforts, a large number of destitute persons with disabilities remain in the homes. In view of this, it may take some time to implement the 2019 recommendation of the Committee on the Rights of Persons with Disabilities on the deinstitutionalization of children from all types of institutions.¹⁸³

Section 5 of the Rights of Persons with Disabilities Act, 2016 mandates that persons with disabilities shall have the right to live in the community. The appropriate Governments are

obligated to see that persons with disabilities are not obliged to live in any particular living arrangement. They should be given access to a range of in-house, residential and other community support services, including personal assistance necessary to support living with due regard to age and gender. However, the support systems are, in practice, inadequate. The Task Force has observed that about 32 per cent of psychiatric hospital beds in India are estimated to be occupied by long-stay service users, as against the global median. There have been some efforts towards deinstitutionalization. However, the availability of any holistic community-based support services is grossly inadequate.

¹⁸¹ Government of India, Ministry of Statistics and Programme Implementation, Social Statistics Division, 2017.

¹⁸² Jointly constituted on 12 January 2018 by the Ministry of Health and Family Welfare, the Ministry of Social Justice and Empowerment (Department of Empowerment of Persons with Disabilities) and The Hans Foundation.

¹⁸³ Committee on the Rights of Persons with Disabilities, 2019a, para 41.

21

PARTICIPATION IN POLITICAL AND PUBLIC LIFE (article 29, Convention on the Rights of Persons with Disabilities); PARTICIPATION IN CULTURAL LIFE, RECREATION, LEISURE AND SPORT (article 30, Convention on the Rights of Persons with Disabilities)

1. Political rights of persons with disabilities in India

The Constitution of India provides for universal franchise. It gives all adult citizens the right to vote, regardless of income, gender, social status, ethnicity, or any other restriction, subject only to relatively minor exceptions. Section 11 of the Rights of Persons with Disabilities Act, 2016 specifically provides that the Election Commission of India (ECI) and the State Election Commissions shall ensure that all polling stations are accessible by persons with disabilities and all materials related to the electoral process are easily understandable and accessible by them.

The laws do not debar persons with disabilities from seeking election to Parliament or to a State Assembly. The Election Commission of India takes measures from time to time to facilitate the participation of persons with diverse disabilities, including blindness, on an equal basis with others. However, section 16 of the Representation of the People Act, 1950 still appears to provide for a person to be disqualified as an elector if the person “is of unsound mind and stands so declared by a competent court.” This appears to raise questions of consistency with the Convention on the Rights of Persons with Disabilities.¹⁸⁴

For the 2019 Parliamentary elections, the Election Commission of India declared as its motto: “Accessible Elections.” For that, the Election Commission of India gave a special focus to ensuring the participation of persons with disabilities. This resulted in a voter registration of a total of 6,263,701 persons with disabilities in an electorate of 910 million.¹⁸⁵

Following a recommendation of the State Commissioner for Persons with Disabilities, Government of the National Capital Territory of Delhi, a more recent decision addressed the participation of persons with severe disabilities who face difficulty in exercising their right to vote at the nearest polling station, even if offered transport via accessible Government vehicles; this group may vote by casting postal ballots.¹⁸⁶

The Election Commission of India Notification under Section 60(c) of the Representation of the People Act, 1951 and dated 26 February 2021 states that:

“Electors above the age of 80 years and electors with physical disability (benchmark) who request to vote by postal ballot paper and whose requests are verified by the Returning Officer concerned, are a class of persons eligible to submit a postal ballot in the general elections or bye-elections in the State/Union Territory concerned.”

2. Persons with disabilities as elected members of the legislature

While data on the percentage of persons with disabilities as Members of Parliament/Members of Legislative Assemblies are not maintained, persons with locomotor disability, blindness/low vision have been elected and served as Ministers. Among them were six men: Mr Sundar Singh Bhandari, Mr Jaipal Reddy, Mr Simon Britto Rodrigues, Mr Hari Deo Joshi, Mr Yamuna Prasad Shastri and Mr Sharad Govindrao Pawar.

3. Persons with disabilities in public service

The Rights of Persons with Disabilities Act, 2016 provides for reservation of not less than 4 per cent vacancies for persons with disabilities in all levels of posts. This was an improvement on the Persons with Disabilities Act, 1995 that had provided for 3 per cent of vacancies. For persons with disabilities in India, since 1977, reservation of 3 per cent of vacancies in Group “C” and Group “D” posts, that is below Officer-level posts, had been available.

The implementation of the provision (for reservation of not less than 4 per cent vacancies) is monitored by the Chief Commissioner for Persons with Disabilities, and the State Commissioners for Persons with Disabilities in the States. Various courts, including the Supreme Court of India, have also directed strict implementation of the reservation. Special recruitment drives are conducted to reduce the backlog of reserved vacancies.

¹⁸⁵ Centre for Accessibility in Built Environment Foundation, 2019.

¹⁸⁶ Centre for Accessibility in Built Environment Foundation, 2021.

¹⁸⁴ Committee on the Rights of Persons with Disabilities, 2013, paras. 9.4–9.5.

On 1 January 2018, there were 22,411 public servants with disabilities in various Ministries and Departments of the Government of India. Corresponding data for the States and local bodies are not available.

22

ROLE OF THE PRIVATE SECTOR IN ADVANCING THE RIGHTS OF PERSONS WITH DISABILITIES (article 27, Convention on the Rights of Persons with Disabilities)

In compliance with the provisions in the Persons with Disabilities Act, 1995 and the Rights of Persons with Disabilities Act, 2016, the Department of Empowerment of Persons with Disabilities launched an incentive scheme for private sector employers to employ persons with disabilities. Under the incentive scheme, the Government pays, for 10 years in the case of employees with disabilities, the employers' contribution to the Employees' Provident Fund and the Employees' State Insurance Scheme. Some companies have done much better than the Government sector in terms of including persons with disabilities in their workforce,

even without any incentives.¹⁸⁷ Such companies are also doing much better than their counterparts in the respective sector.

Wipro, an Indian multinational corporation that leads in global information technology, consulting and business process services, is a signatory to The Valuable500, a business-to-business initiative aimed at catalyzing disability inclusion. Wipro has won awards, including for disability inclusion.¹⁸⁸ Wipro introduced, in March 2022, its Global Policy for Equal Employment Opportunity for Persons with Disabilities. The Policy is in accordance with the provisions

¹⁸⁷ Wipro, 2020.

¹⁸⁸ 2013 ESCAP-Sasakawa Award for Disability-Inclusive Business in Asia and the Pacific (in the category of Disability-Inclusive Multinational Enterprise); Associated Chambers of Commerce and Industry of India (ASSOCHAM) Diversity & Inclusion Excellence Awards, 2020 winner for "Best Employer for Persons with Disabilities". See Equity Bulls, 2021; and "Disability Confident Committed Employer" in the UK, 2020. For more information, see Wipro, n.d. and Wipro, 2013.

of the Rights of Persons with Disabilities Act, 2016 and the Rights of Persons with Disabilities, Rules, 2017. Furthermore:

“The Policy applies to all aspects of employment, including recruitment, training, working conditions, salaries, transfers, employee benefits and career advancement.”

- Advocacy;
- Adoption of the CII Corporate Code on Empowerment of Persons with Disabilities;
- Sensitization and capacity building of the corporate sector;
- Development of knowledge resources;
- Holding of job fairs and special recruitment drives;
- Collaboration with the Skill Council for Persons with Disability;¹⁹¹
- Development of a workplace inclusion index;
- COVID-19 response.

The Government of India set up in 1997 the National Handicapped Finance and Development Corporation¹⁸⁹ to channel funds, via “State Channelising Agencies” nominated by State Governments, to persons with disabilities for income-generation activities. Vocational rehabilitation centres, in collaboration with the Finance and Development Corporation and civil society organizations, organize job fairs for persons with disabilities. The Industry Chambers in India have been taking various measures to promote the inclusion of persons with disabilities in the workforce. This has been undertaken individually with member companies or in collaboration with the Government and civil society organizations.

In response to a communication to collect information for this case study, the Confederation of Indian Industry (CII), Associated Chambers of Commerce and Industry in India (ASSOCHAM) and Indo-German Chamber of Commerce (IGCC) gave details of their initiatives.

The key areas of Chamber of Indian Industry¹⁹⁰ intervention and contribution to the empowerment of persons with disabilities have been the following:

The Associated Chambers of Commerce and Industry in India instituted national ASSOCHAM awards for its member companies to promote the inclusion of persons with disabilities in their workforce.

The Indo-German Chamber of Commerce, in partnership with CBM India, is implementing the Inclusion Initiative. A publication highlighting more initiatives and good practices from Indo-German Chamber of Commerce member companies in the Indian context is also being planned.

23 INTERSECTING FORMS OF DISCRIMINATION (articles 5, 6 and 7, Convention on the Rights of Persons with Disabilities)

Discrimination in matters such as education, inclusion in social functions, marriage, share in property, exclusion from decision-making processes in the family, and personal matters, are common issues that persons with disabilities face. The discrimination is exacerbated by the lived reality of multiple disadvantages. India recognizes the entire population as indigenous. At the societal level, discrimination often happens against almost all marginalized and vulnerable groups, including persons with disabilities, in the country.

The remedial measures have been ensured in the Constitution and in the disability-specific legislation. Article 15 of the Constitution of India prohibits discrimination on the grounds of religion, race, caste, sex or place of work. The Constitution also allows the State to make special provisions for the advancement of “socially and educationally backward classes” of citizens. Discrimination against these groups

is addressed through affirmative action. The Rights of Persons with Disabilities Act, 2016 is applicable to all persons with disabilities, irrespective of caste, creed, religion, gender, sexual orientation, and/or other aspects. Hence, cases of discrimination are addressed by the Chief Commissioner for Persons with Disabilities or the State Commissioners for Persons with Disabilities. Furthermore, as per the Act, women with disabilities are accorded priority in reservation regarding allotment of agricultural land and housing in all relevant schemes and development programmes, and in all poverty alleviation and various developmental schemes. India has a National Commission for Women and State Commissions for Women that takes up issues relating to the empowerment of women with disabilities.

The courts have recognized the phenomenon of intersectionality. An important recent judgment of the Supreme Court is in the case *Patan Jamal Vali v The State of Andhra Pradesh*

¹⁸⁹ National Handicapped Finance and Development Corporation, 2021.

¹⁹⁰ Confederation of Indian Industry, 2020, especially CII Initiatives on Special Abilities, pp. 6–8.

¹⁹¹ Skill Council for Persons with Disability, n.d.b.

(2021).¹⁹² The case involved an appeal against conviction by a person who had raped a woman who was both Blind and a member of a Scheduled Caste. The accused was convicted of offences under section 376 (rape) of the Indian Penal Code and also under section 3(2) (v) of the Scheduled Castes and Tribes (Prevention of Atrocities) Act, 1989 (commission of an offence carrying a sentence of imprisonment of 10 years or more against a person, knowing that the person is a member of a Scheduled Caste). Justice D.Y. Chandrachud undertook a detailed analysis of the concept of intersectionality,¹⁹³ explored comparative and Indian case law on the topic and its particular relevance to gender-based violence,¹⁹⁴ and examined its operation in the context of the case which involved the intersection of gender, caste and disability.

In the event the Court held that the conviction of the accused under the Scheduled Castes and Tribes (Prevention of Atrocities) Act, 1989 had to be quashed as it could not be shown that the accused had committed the rape only on the ground of the victim's caste (a requirement of the statute). However, the Court noted that this element of the offence adopted a "single axis model of oppression" which failed to reflect the social realities of intersectional discrimination. Life sentence for rape was affirmed.

The Rights of Persons with Disabilities Act, 2016 provides that children with disabilities have the right to live with their parents. If the parents are unable to take care of their child with disability, the Act requires that arrangements be made for the placement of the child with near relations or in the community in a family setting or in a shelter home run by the Government/a civil society organization.

Under Government child protection schemes, child care institutions that have children with disabilities affected by substance abuse are entitled to additional financial support for the purchase of specialized equipment, psychological test materials, training materials for speech and language, teaching materials, wheelchairs, crutches and other necessary equipment and materials.

Under The National Trust for the Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999, there are schemes for children with disabilities. Those schemes pertain to early intervention, school readiness and day care, with the aim of enhancing interpersonal and vocational skills and care-giving support.

To remove the discriminatory provisions relating to leprosy-affected persons, the Government has amended the following Acts:

- Indian Divorce Act, 1869;
- Dissolution of Muslim Marriage Act, 1939;
- Hindu Marriage Act, 1955;
- Hindu Adoption and Maintenance Act, 1956;
- Special Marriage Act, 1954.

Since this is one of the disabilities covered by the Rights of Persons with Disabilities Act, 2016, the statute accords protection against discrimination on the basis of being or having been leprosy-affected.

The Act mandates that no woman with disability shall be subject to any medical procedure without her express and informed consent.

The Act also requires that at least five women representing persons with disabilities have to be nominated to the Central/ State Advisory Boards on Disability.

24 SITUATIONS OF RISK AND HUMANITARIAN EMERGENCIES

(article 11, Convention on the Rights of Persons with Disabilities)

1. The impact of the COVID-19 pandemic on persons with disabilities and measures taken

During the COVID-19 pandemic, maintaining social distancing was impossible for persons with disabilities. Many persons with disabilities are dependent on others for managing the activities of daily living, such as hand washing, personal hygiene and wearing masks correctly. In the first wave of the pandemic, the lockdown disproportionately affected persons with disabilities, especially those who required regular therapy, blood transfusion, dialysis and access to medicines. Getting groceries became a major challenge for persons with disabilities living independently. When caregivers and personal assistants became infected by the virus, no

substitutes were available. In the initial stage, most of the public information on the outbreak was inaccessible, resulting in many not being informed. Furthermore, with sudden and extended lockdown, many diagnostic and quarantine centres that were set up were inaccessible.

Unemployment and poverty impacted persons with disabilities disproportionately in comparison to others. Persons with autism were affected by sudden disruption to routine, changes in food taste, texture and smell caused by sensory overload. Anxiety levels escalated.

The Department of Empowerment of Persons with Disabilities issued Comprehensive Disability-Inclusive Guidelines for the protection and safety of persons with disabilities during COVID-19.¹⁹⁵ The issuance of the Guidelines came as a great relief to persons with disability-

¹⁹² Supreme Court of India, 2021b.

¹⁹³ Supreme Court of India, 2021b, paras. 12–19.

¹⁹⁴ Supreme Court of India, 2021b, paras. 20–49.

¹⁹⁵ Government of India, Ministry of Social Justice and Empowerment, Department of Empowerment of Persons with Disabilities (*Divyangjan*), 2020b.

ities and their families. In the wake of the declaration of the COVID-19 situation as a national emergency, the Guidelines gave direction to government functionaries, organizations and individuals involved in the provision of health care facilities and relief. Civil society organizations, such as CBM India Trust, and organizations of persons with disabilities, prepared and circulated handouts containing the Guidelines to hospitals, healthcare providers, health professionals and care givers and issued key video clips in Indian Sign Language.

The nodal Ministries, namely the Ministry of Home Affairs and the Ministry of Health and Family Welfare, were advised to issue disability-inclusive instructions and information on COVID-19, to ensure better preparedness by persons with disabilities. Specific measures targeting persons with disabilities, such as dedicated vaccination centres, were taken by the authorities during the second wave of the pandemic.

2. Inclusion of persons with disabilities, as participants, in the formulation and implementation of national emergency and disaster recovery plans

The National Disaster Management Authority (NDMA), Government of India, issued the National Disaster Management Guidelines on Disability-Inclusive Disaster Risk Reduction in September 2019.¹⁹⁶ The document contains a detailed matrix of the roles and responsibilities of the Central Government, State Governments and other agencies with respect to various themes/activities, such as the following:

- (a) Identification of persons with disabilities;
- (b) Vulnerability;

- (c) Institutional mechanism and policy framework;
- (d) Enforcement, monitoring and evaluation;
- (e) Standard operating procedures;
- (f) Community-based disability-inclusive disaster risk reduction;
- (g) Participation of persons with disabilities and organizations of persons with disabilities.

Regrettably, the document uploaded to the website of NDMA is not in an accessible format. A lot needs to be done, in practice, to ensure effective implementation of Disability-Inclusive Disaster Risk Reduction, especially section 8 (3) of the Rights of Persons with Disabilities Act, 2016 which mandates the District Disaster Management Authority to maintain a record of the details of persons with disabilities in each district and take suitable measures to inform such persons of any situations of risk, so as to enhance disaster preparedness.

25 OTHER MATTERS RELEVANT TO THE IMPLEMENTATION OF THE CONVENTION IN INDIA

1. Achievements in implementation and barriers to implementation of the Convention

The Rights of Persons with Disabilities Act, 2016 and the Convention on the Rights of Persons with Disabilities are implemented across States, as well as at the Central Government level.

State measures may not be getting compiled and reported to focal points; related documentation may not be in the public domain. It is as true for non-implementation. Thus, to understand the actual situation on the ground, it is important to have a robust mechanism for reporting, compiling, analysing and disseminating/publishing information on implementation. Better implementation will result from making it mandatory to include such information in the agendas of review meetings at all levels and in social audits.

2. Beneficial impact of the implementation of the Convention

Awareness among all stakeholders about the rights of persons with disabilities has increased. This is attributed to the fact that the harmonization process was highly consultative, with the extensive engagement of civil society entities. The courts started referring to the provisions of the Convention on the Rights of Persons with Disabilities and their orders were influenced by the rights-based provisions of the Convention. The Government created a separate Department of Empowerment of Persons with Disabilities, set up the Indian Sign Language Research and Training Centre and revised most of its schemes. The launch of the Accessible India Campaign and a large number of camps for the distribution of aids and appliances, and programmes, such as *Divya Kala Shakti*, have also contributed to awareness creation. Initially, larger allocations to the disability sector were made by the Centre. Regrettably, the allocations have declined in recent years.

¹⁹⁶ Government of India, Ministry of Home Affairs, National Disaster Management Authority, 2019.

26

GOOD PRACTICES AND FUTURE PROSPECTS

1. Most effective strategies for persons with disabilities to get their rights by law and in practice

With the harmonization of disability-specific domestic laws, such as the Rights of Persons with Disabilities Act, 2016 and the Mental Healthcare Act, 2017, persons with disabilities are able to put forth their demands more forcefully. Persons with disabilities and organizations for and of persons with disabilities have also become more vocal and more effective. Making the Government withdraw its proposal to decriminalize some offences in the Rights of Persons with Disabilities Act, 2016 and make them compoundable is an example of the disability sector becoming more powerful after the ratification of the Convention on the Rights of Persons with Disabilities and the enactment of the Rights of Persons with Disabilities Act, 2016. For those who approach the Chief Commissioner for Persons with Disabilities and the State Commissioners for Persons with Disabilities, it is relatively easy to get relief promptly, as compared with other socially disadvantaged groups. In fact, many use the redressal and enforcement mechanism most extensively through the Chief Commissioner for Persons with Disabilities and State Commissioners for Persons with Disabilities. Courts too have been very proactive and come to their rescue often. However, there is a lack of seamless and

systematic mechanisms to ensure that persons with disabilities get their rights and entitlements without having to approach the authorities, except for those entitlements that require an application. All the duty bearers need to be more proactive, thereby reducing the need to approach the grievance redressing authorities too often. The involvement of the primary stakeholders and, more importantly, the better-informed younger parents of children with disabilities, could be very useful.

2. Strategies for the future to enhance the level of implementation of the Convention

As it may not be feasible to implement all the provisions of the Convention simultaneously, prioritization of key areas for immediate, short-term, medium-term and long-term implementation should be identified. The Department of Empowerment of Persons with Disabilities and the State Governments should draw up action plans to be reviewed meticulously on a quarterly basis by the Chief Commissioner for Persons with Disabilities/State Commissioners for Persons with Disabilities and on a six-monthly basis by the Central Advisory Board on Disability and the respective State Advisory Boards on Disability. Strengthening the nodal Departments and the Chief Commissioner for

Persons with Disabilities, State Commissioners for Persons with Disabilities and governance at the district level is key to a better level of implementation. More frequent reviews by the United Nations could also be useful.

3. Legal or policy reforms in advancing the implementation of the Convention and the enjoyment by persons with disabilities of their human rights

An effective coordination mechanism in the nodal Ministry/Department should be mandated to review regularly the status of implementation. Furthermore, review of the status of implementation of the Convention on the Rights of Persons with Disabilities and the Rights of Persons with Disabilities Act, 2016 should be a regular item in the agenda for the review meetings of all Ministers and senior officers in the centre and in the States. Independent enforcement mechanisms must be put in place. Expeditious harmonization of the domestic disability-specific laws, as well as other laws and policies in line with the Convention on the Rights of Persons with Disabilities and their time-bound implementation should be ensured.

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Annexes

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Annex 1

Definitions of disability conditions used for Census 2011

TYPE OF DISABILITY	DEFINITION
In Seeing	1. Cannot see at all; or 2. Has no perception of light even with the help of spectacles; or 3. Has perception of light but has blurred vision even after using spectacles, contact lenses etc. A simple test is whether the person can count the fingers of one hand from a distance of 10 feet in good daylight. Such persons can however, move independently with the help of remaining sight; or 4. Can see light but cannot see properly to move about independently; or 5. Has blurred vision but had no occasion to test if her/his eyesight would improve after taking corrective measures. 6. One-eyed person not to be considered as disabled in seeing
In Hearing	1. Cannot hear at all; or 2. Has difficulty in hearing day-to-day conversational speech (hard-of-hearing); or 3. If she/he is using a hearing aid, hearing problem in one ear not to be considered as having hearing disability.
In Speech	1. Cannot speak at all or she/he is unable to speak normally on account of certain difficulties linked to speech disorder; or 2. Able to speak in single words only and is not able to speak in sentences; or 3. Stammers to such an extent that the speech is not comprehensible.
In Movement	1. Do not have both arms or both legs; or 2. (Arms/legs) are paralyzed and unable to move (walk) but can crawl; or 3. Able to move only with the help of walking aids; or 4. Has acute and permanent problems of joints/muscles that have resulted in limited movement; or 5. Has lost all the fingers or toes or a thumb; or 6. Is not able to move or pick up any small thing placed nearby; or 7. Has stiffness or tightness in movement; or 8. Has difficulty in balancing and coordinating body movements; or 9. Has loss of sensation in the body due to paralysis or leprosy or any other reason; or 10. Has any deformity of the body part/s such as a hunch back; or 11. Very short stature (dwarf).
In Mental Retardation	1. Lacks understanding/comprehension as compared to her/his own age group; or 2. Is unable to communicate her/his needs when compared to other persons of her/his age group; or 3. Has difficulty in doing daily activities; or 4. Has difficulty in understanding routine instructions; or 5. Has extreme difficulty in making decisions, remembering things or solving problems.

TYPE OF DISABILITY	DEFINITION
In Mental Illness	1. Is taking medicines or other treatment for mental illness; or 2. Exhibits unnecessary and excessive worry and anxiety; or 3. Exhibits repetitive (obsessive-compulsive) behaviour/thoughts; or 4. Exhibits sustained changes of mood or mood swings (joy and sadness); or 5. Has unusual experiences – such as hearing voices, seeing visions, experience of strange smells or sensations or strange taste; or 6. Exhibits unusual behaviours like talking/laughing to self, staring in space; or 7. Has difficulty in social interactions and adaptability.
Any Other	1. If the person has a disability other than the categories mentioned above; or 2. The respondent fails to report the exact type of the disability; or 3. Disabilities like “Autism” etc. (difficulty in communicating, interacting with others; unusual and repetitive behaviours, etc).
Multiple Disabilities	1. Multiple disabilities means a combination of two or more specific types of disability. 2. The question has been designed to record a combination of a maximum of three types of disability.

Annex 2

Comparison between the Persons with Disabilities Act, 1995 and the Rights of Persons with Disabilities Act, 2016

PERSONS WITH DISABILITIES ACT, 1995	RIGHTS OF PERSONS WITH DISABILITIES ACT, 2016
Type of Disability	
Disabilities listed under the Persons with Disabilities Act, 1995: 1. Blindness 2. Low-vision 3. Hearing-Impairment (now "Deaf" and "hard -of-hearing") 4. Locomotor Disability 5. Mental Retardation (now included in intellectual disability) 6. Mental illness 7. Leprosy Cured.	New disabilities added in the Rights of Persons with Disabilities Act, 2016. In addition to the seven disabilities listed under the Persons with Disabilities Act, 1995, the following are covered by the Rights of Persons with Disabilities Act, 2016: 1. Autism spectrum disorder; 2. Specific learning disabilities; 3. Acid attack victims; 4. Dwarfism; 5. Cerebral palsy; 6. Muscular dystrophy; 7. Speech and language disability; 8. Chronic neurological conditions; 9. Parkinson's Disease; 10. Multiple sclerosis; 11. Haemophilia; 12. Thalassemia; 13. Sickle cell disease; 14. Multiple disabilities; 15. The Central Government has the power to add new disabilities.
Definitions	
The Persons with Disabilities Act, 1995: Only defines persons with disabilities as those who have 40 per cent or more disability.	The Rights of Persons with Disabilities Act, 2016: Classifies persons with disabilities in three categories: • Persons with disabilities with less than 40 per cent disability; • Persons with disabilities with benchmark disability – 40 per cent or more; • Persons with disabilities having high support needs.
The Persons with Disabilities Act, 1995: Does not provide definitions of discrimination, reasonable accommodation, barriers, universal design, etc.	The Rights of Persons with Disabilities Act, 2016: Provides these definitions in line with the Convention on the Rights of Persons with Disabilities.

PERSONS WITH DISABILITIES ACT, 1995	RIGHTS OF PERSONS WITH DISABILITIES ACT, 2016
Rights and entitlements	
The Persons with Disabilities Act, 1995: Makes no mention of specific rights and entitlements.	The Rights of Persons with Disabilities Act, 2016: Provides various rights and entitlements, such as, equality and non-discrimination; community life; protection from cruelty, violence, abuse; home and family; reproductive rights; access to justice, legal capacity and other rights.
Education	
The Persons with Disabilities Act, 1995: Mandates the appropriate Governments and local authorities to take measures and frame schemes to promote school education.	The Rights of Persons with Disabilities Act, 2016: Provides for reasonable accommodation in the school support system, to maximize academic and social development, to take care of learning disabilities etc; Broadens the scope of measures and areas for schemes; Covers private schools recognized by the Government; Allows the Government to modify the curriculum and examination system to meet disability-specific needs.
Skills development and employment	
The Persons with Disabilities Act, 1995: Has no specific thrust on skill development, vocational training and self-employment and no mechanism to address grievances relating to employment in the organization	The Rights of Persons with Disabilities Act, 2016: Provides loans at a concessional rate of interest to promote entrepreneurship and self-employment; frames schemes to promote skill development and vocational training; identifies the thrust areas for framing schemes for this purpose, with a designated grievance redressal officer in every Government establishment.
Health, social security, rehabilitation and recreation	
The Persons with Disabilities Act, 1995: • Only emphasizes the prevention and early detection of disabilities. Health aspects are not included. • Mandates insurance coverage for employees with disabilities only. Other social security programmes include unemployment allowance and rehabilitation aspects. • The Act is silent about promoting recreational activities and sports among persons with disabilities.	The Rights of Persons with Disabilities Act, 2016: • Spells out various intervention measures to promote health services for persons with disabilities which include free health care, priority in attendance and treatment, etc.; awareness through schools, health centres, village level workers. • Aims to cover every person with disability under a comprehensive insurance scheme. • Mandates disability pension, support for the livelihood of women with disabilities, support during disasters, care giver allowance, access to safe drinking water and accessible sanitation facilities, etc. • Mandates the appropriate Government to take measures to facilitate persons with disabilities to promote their cultural and recreational activities. • Mandates art to be accessible by persons with disabilities, and recreation centres and TV programmes, etc., also to be accessible. • Mandates promoting and organizing disability-specific sporting events and facilitating the participation of persons with disabilities. • Provides for the participation of persons with disabilities in sports and promoting sporting events for persons with disabilities at all levels.

PERSONS WITH DISABILITIES ACT, 1995	RIGHTS OF PERSONS WITH DISABILITIES ACT, 2016
Reservation of seats in educational institutions	
The Persons with Disabilities Act, 1995: Provides for reservation of 3 per cent seats in Government and Government-aided educational institutions, including higher education for students with disabilities.	The Rights of Persons with Disabilities Act, 2016: Provides for 5 per cent reservation in Government and Government-aided higher educational institutions. Provides for a five-year age relaxation for admission into higher educational institutions.
Reservation in employment	
The Persons with Disabilities Act, 1995: 3 per cent reservation in Government establishments. Reservation applicable for persons with locomotor disability, visual impairment and hearing impairment (1 per cent each).	The Rights of Persons with Disabilities Act, 2016: Provides for 4 per cent reservation in Government establishments. Reservation extended to persons in the following categories: • Visual impairment; • Hearing impairment; • Cerebral palsy, leprosy-cured; muscular dystrophy; acid attack victim in the category of locomotor disability; • Autism, intellectual disability, specific learning disability and mental illness (under a new category); • Multiple disabilities (as a new category). • Relaxation of the upper age limit for employment to be prescribed via notification by the appropriate Government.
Provisions to take care of persons with severe disabilities	
The Persons with Disabilities Act, 1995: Does not provide any mechanism for the purpose.	The Rights of Persons with Disabilities Act, 2016: Has provisions regarding the care of persons with severe disabilities. Mandates constitution of assessment board to decide on support services for persons with severe disabilities.
Affirmative action and other responsibilities of appropriate Government	
The Persons with Disabilities Act, 1995: Mandates framing of schemes for aids and appliances for persons with disabilities and preferential allotment of land at concessional rate for the purpose of housing, setting up of business, etc. Envisages accessible transport system, accessible features on roads and in the built environment.	The Rights of Persons with Disabilities Act, 2016: Mandates specific objective-oriented awareness campaigns. Mandates the Central Government to frame regulations on accessibility standards for the physical environment, transportation, information, communication, etc. Provides for timeline for Government and private establishments to adhere to such standards. Allows programmes to promote the personal mobility of persons with disabilities at affordable cost and promoting development of universal design products and accessories for persons with disabilities. Mandates training to develop human resources such as members of the panchayat raj and legislature, administrators, police officials, judges, etc. Mandates social audit of all schemes / programmes of persons with disabilities.

PERSONS WITH DISABILITIES ACT, 1995	RIGHTS OF PERSONS WITH DISABILITIES ACT, 2016
Disability certification	
The Persons with Disabilities Act, 1995: Does not contain any specific provision.	The Rights of Persons with Disabilities Act, 2016: Mandates detailed procedure for issuance of disability certificates to be prescribed under Rules. Mandates recognition of the disability certificates to be valid throughout the country. Provides for appeal against the decision of the certifying authority.
Advisory bodies	
The Persons with Disabilities Act, 1995: Coordination Committees at the Central and State level under the chairmanship of the Minister concerned are the main policy bodies.	The Rights of Persons with Disabilities Act, 2016: Broad-based Central and State Advisory Boards.
Monitoring agencies	
The Persons with Disabilities Act, 1995: Chief Commissioner for Persons with Disabilities (CCPD) at the central level, State Commissioners for Persons with Disabilities (SCPDs) at the state level. These authorities are also responsible for looking into the complaints/grievances of persons with disabilities.	The Rights of Persons with Disabilities Act, 2016: The Office of the Chief Commissioner for Persons with Disabilities and State Commissioners will be strengthened to handle more work.
Offences and penalties	
The Persons with Disabilities Act, 1995: The Act only provides for penal provision for fraudulently obtaining disability certificates.	The Rights of Persons with Disabilities Act, 2016: Provides penal provisions for various offences and violation of the provisions of the new Act. Penalty ranges from six months to five years' jail and a fine.
Special Courts/Fund	
The Persons with Disabilities Act, 1995: Does not provide for either special courts or any fund.	The Rights of Persons with Disabilities Act, 2016: Mandates designated special courts at district level to try offences against persons with disabilities. Mandates setting up of National Fund and State Fund for welfare of persons with disabilities.

Annex 3

Comparison between the
Convention on the Rights of Persons with Disabilities and the
Rights of Persons with Disabilities Act, 2016

SERIAL NO.	PROVISIONS OF THE CONVENTION ON THE RIGHTS OF PERSONS WITH DISABILITIES	CORRESPONDING PROVISIONS OF THE: CONSTITUTION OF INDIA; RIGHTS OF PERSONS WITH DISABILITIES ACT, 2016
1	Article 2 definitions – It only provides for definition of communication, language, discrimination on the basis of disability, reasonable accommodation and universal design.	Section 2: (f) communication; (y) reasonable accommodation; (ze) universal design; (h) discrimination.
2	Article 3 – General Principles	Preamble.
3	Article 4 – General obligations. This article provides general obligations on the States parties to take measures to promote the human rights of persons with disabilities, to eliminate discrimination on the basis of disability, to undertake or promote research and development in various areas, such as, universal design of goods and services, and accessible information for persons with disabilities.	Sections: 3.(3) (non-discrimination) 28. Research and development. 42. (iii); 43. universal design. 44 - 46 accessibility.
4	Article 5 – Equality and non-discrimination	Section 3.
5	Article 6 – Women with Disabilities – Article 6 (1) recognises the fact of multiple discrimination experienced by women with disabilities, Article 6 (2) provides for appropriate measures to ensure the full development and empowerment of women with disabilities.	Section 4.
6	Article 7 – Children with disabilities. The article has three clauses. The focus of these clauses is that in all actions concerning children with disabilities, the best interest of each child shall be the primary consideration, and the views of children must be taken into account on all matters affecting them.	Section 4. Section 31 also mandates admission to a school of choice of children with disabilities.
7	Article 8 – Awareness raising. It contains two paragraphs: the first one indicates the areas to be addressed and the second provides the measures to promote awareness generation.	Section 39.

SERIAL NO.	PROVISIONS OF THE CONVENTION ON THE RIGHTS OF PERSONS WITH DISABILITIES	CORRESPONDING PROVISIONS OF THE: CONSTITUTION OF INDIA; RIGHTS OF PERSONS WITH DISABILITIES ACT, 2016
8	Article 9 – Accessibility — comprises two clauses. Article 9 (1) mandates States parties to ensure barrier-free access by persons with disabilities in the physical environment (buildings, roads), transportation, medical facilities, workplaces, information and communication and other services. Article 9 (2) provides for the development and promulgation of minimum accessibility standards and other measures to promote access by persons with disabilities.	Sections 40 – 46, Rights of Persons with Disabilities Act, 2016.
9	Article 10 – Right to Life. This article mandates States parties to reaffirm that every human being has the inherent right to life and to take all necessary measures to ensure its effective enjoyment by persons with disabilities on an equal basis with others.	Section 5, Rights of Persons with Disabilities Act, 2016.
10	Article 11 – Situations of risk and humanitarian emergencies. This article imposes obligation on States parties to take all necessary measures to ensure the protection and safety of persons with disabilities in situations of risk.	Section 8, Rights of Persons with Disabilities Act, 2016.
11	Article 12 – Equal recognition before the law. The article has five clauses. The first two clauses reaffirm the right of persons with disabilities to recognition as persons before the law and require States parties to recognize that persons with disabilities enjoy legal capacity on an equal basis with others. Article 12 (3) - (6) provides for measures to be taken by States parties to achieve this objective.	Article 14 of the Constitution. Section 13 of the Rights of Persons with Disabilities Act, 2016.
12	Article 13 – access to justice. This article has two paragraphs that mandate States parties to ensure effective access to justice by persons with disabilities on an equal basis with others and require States parties to promote appropriate training for those working in the field of administration of justice, including police and prison staff.	Section 12, Rights of Persons with Disabilities Act, 2016.
13	Article 14 – Liberty and security of the person.	Section 3(4), Rights of Persons with Disabilities Act, 2016.
14	Article 15 – freedom from torture or cruel, inhuman or degrading treatment or punishment. This article mandates that no one shall be subjected to any medical or scientific experimentation without his/her free consent.	Section 6, Rights of Persons with Disabilities Act, 2016.
15	Article 16 – Freedom from exploitation, violence and abuse. This article has five clauses mandating States parties to take appropriate legislative, administrative, social and other measures to protect persons with disabilities from all forms of violence, abuse and exploitation. It also requires the taking of effective measures for proper investigation and prosecution of such events.	Section 7, Rights of Persons with Disabilities Act, 2016.

SERIAL NO.	PROVISIONS OF THE CONVENTION ON THE RIGHTS OF PERSONS WITH DISABILITIES	CORRESPONDING PROVISIONS OF THE: CONSTITUTION OF INDIA; RIGHTS OF PERSONS WITH DISABILITIES ACT, 2016
16	Article 17: provides that every person with disability has a right to respect for her/his physical and mental integrity on an equal basis with others.	Section 3 (1), Rights of Persons with Disabilities Act, 2016.
17	Article 18 – Liberty of movement and nationality. This article requires States parties to recognize the rights of persons with disabilities to liberty of movement, to choose their residence and to nationality.	The Constitution of India guarantees this right for all citizens.
18	Article 19 – living independently and being included in the community. This article provides for recognition of the right of persons with disabilities to live in the community and obliges States parties to take appropriate measures in this regard.	Section 5.
19	Article 20 – personal mobility. This article obliges States parties to ensure the personal mobility of persons with disabilities by making provision for access to quality mobility aids/devices, and providing those at affordable prices, etc.	Section 41.
20	Article 21 – freedom of expression and opinion, and access to information.	The Constitution of India guarantees the right to freedom of opinion and expression.
21	Article 22 – respect for privacy.	The Constitution of India guarantees the right to privacy.
22	Article 23 – Respect for home and the family.	Section 9.
23	Article 24 – Education. It has five clauses. This article guarantees the right of persons with disabilities to education and obliges States parties to ensure an inclusive education system, i.e., primary and secondary education on an equal basis with others in the community.	Sections 16 - 17.
24	Article 25 – Health. This article provides for the availability of healthcare facilities without discrimination towards persons with disabilities, at no cost or at an affordable cost, with provision for early identification and intervention, awareness, etc.	Section 25.
25	Article 26 – habilitation and rehabilitation.	Section 27.
26	Article 27 – Work and employment. The provisions of the article guarantee the right of persons with disabilities to equal opportunities for employment, obliges States parties to promote opportunities for self-employment, employment of persons with disabilities in the public sector, as well as to promote employment in the private sector through affirmative action plans, and to promote vocational and professional rehabilitation programmes.	Sections: 19 (skill development and self-employment), 20 and 34 (Government employment), 35 (incentive for private employment).

SERIAL NO.	PROVISIONS OF THE CONVENTION ON THE RIGHTS OF PERSONS WITH DISABILITIES	CORRESPONDING PROVISIONS OF THE: CONSTITUTION OF INDIA; RIGHTS OF PERSONS WITH DISABILITIES ACT, 2016
27	Article 28 – Adequate standard of living and social protection. This article provides for measures to be taken by States parties to ensure that persons with disabilities enjoy an adequate standard of living by taking measures, such as, providing for access to clean water, social protection programmes, assistance in meeting disability-related needs, and access to public housing programme.	Sections 24 and 37.
28	Article 29 – participation in political and public life. This article obliges States parties to ensure that persons with disabilities can effectively participate in public and political life. It also requires the provision of accessible facilities to enable persons with disabilities to exercise their voting rights.	Section 11.
29	Article 30 – Participation in cultural life, recreation, leisure and sport. This article obliges States parties to take measures to enable persons with disabilities to have the opportunity to develop and utilize their creative, artistic and intellectual potential, to provide accessible environment for cultural life, participation in mainstream sporting activities etc.	Section 29.
30	Article 31 – statistics and data collection. This article obliges States parties to undertake appropriate information, including statistical and research data with respect to persons with disabilities.	Census India collects data on disability. The Government is implementing the Unique Identification numbers (UID) project < https://uidai.gov.in/en/about-uidai/unique-identification-authority-of-india.html > to: - Create a national data base of persons with disabilities; - Provides an online platform for the issuance of disability certificates, and a Unique Identification Card to each person with disability. Furthermore, a periodic survey is also conducted by the National Sample Survey Organization (NSSO).
31	Article 32 – International cooperation. This article obliges States parties to facilitate international cooperation to promote capability building and other areas for empowerment of persons with disabilities.	India signs MoUs and bilateral agreements for this purpose. India also participates in international cooperation initiatives, such as regarding the Incheon Strategy, and the 2030 Agenda for Sustainable Development.
32	Article 33 – National implementation and monitoring. This article obliges States parties to designate one or more focal point within the government for the implementation of provisions of the Convention and also provide for a framework to promote, monitor and protect its implementation.	Chapter XII of the Act provides for the appointment of the Chief Commissioner for Persons with Disabilities and the State Commissioners for Persons with Disabilities to oversee implementation of the Rights of Persons with Disabilities Act, 2016 at the Centre and at State level. The Act also provides for penal provisions for violations under Chapter XVI.

Annex 4

Success stories of the Chief Commissioner for Persons with Disabilities, Government of India, 2015-2018¹⁹⁷

2015-2016

Case No. 2216/1011/2014

A suo motu case was registered against some public sector organizations in the State of the then undivided Andhra Pradesh (AP) to remedy their failure to compute the backlog of reserved vacancies for persons with disabilities and fill these up.

As a number of respondents were from that State and a group of persons with hearing impairment complained that their representation in those organizations was poor and wanted to join the hearings, the Deputy Chief Commissioner for Persons with Disabilities held hearings in the National Institute for the Empowerment of Persons with Intellectual Disabilities (under the Department of Empowerment of Persons with Disabilities) at Secunderabad, Andhra Pradesh. During the day-long hearings of the organizations on 02.06.2014, the rosters for computation of reserved vacancies were perused. The author of this report was the Deputy Chief Commissioner for Persons with Disabilities at that time.

A number of organizations was found not to have distributed the 3 per cent vacancies equally among the three categories of disability, the procedure for computing the 3 per cent vacancies for persons with disabilities (1 per cent for persons with blindness/low vision; 1 per cent for persons with hearing impairment and 1 per cent for persons with locomotor disability and persons with cerebral palsy and the carry forward / lapsing of reserved vacancies as per sections 33 and 36 of the erstwhile Persons with Disabilities Act, 1995). They were directed to take corrective actions and it was ensured that the prescribed procedure was followed.

For example, the Commandant, Headquarters Artillery Centre, Golconda, Hyderabad, one of the respondents, after the directions of the Chief Commissioner for Persons with Disabilities, appointed one visually-impaired person as Lower Division Clerk and informed that the appointment of one visually-impaired person as Multi-Tasking Staff was in progress. The other organizations too took remedial action in compliance with the directions/recommendations.

¹⁹⁷ These summaries are taken from the annual reports of the Chief Commissioner for Persons with Disabilities and have been slightly edited in some cases. However, they retain the terminology used in the original reports regarding persons with the disabilities referred to, as these reflect the applicable laws and regulations.

Case No. 3973/1012/2015

Dr Desh Raj, a person with 50 per cent locomotor bilateral disability (both legs affected) filed a complaint dated 27.03.2015 against the Director-General of Health Services (DGHS) and Union Public Service Commission (UPSC) for not considering him eligible in the Recruitment of Combined Medical Services Examination, 2015.

As per the list of identified posts issued by the Department of Empowerment of Persons with Disabilities, the post of Medical Officer is identified suitable for an eligible candidate with one leg affected or one arm affected. The notification also provided that a post held by a person with disability would be deemed to be identified as suitable for that category of disability. Hence, Dr Desh Raj was not considered eligible for a regular post. However, he had earlier been offered an appointment as Medical Officer on a contractual basis. The parties were heard on 15.10.2015 and vide Record of Proceedings dated 20.10.2015, the matter was disposed of with an advice to UPSC that the entire matter might be considered as per the extant rules and mandate of the Persons with Disabilities Act, 1995 and the functional requirements of the post by the indenting organization and to ensure that the legitimate rights of the candidates with disabilities were not infringed.

The complainant, vide his letter dated 10.02.2016, intimated that he was selected for the post of Medical Officer in the Combined Medical Service Examination, 2015.

Case No. 20/1026/12-13 TR

Shri Govindbhai K. Shrimali, a person with 95 per cent blindness, filed a complaint dated 30.12.2012 regarding his regularization on the post of *Khalasi*¹⁹⁸ (post involving manual work) in the Central Water Commission.

The post of *Khalasi* is identified for persons with low vision and not identified as suitable for persons with blindness as per the list of identified posts issued by the Department of Empowerment of Persons with Disabilities.

The case was taken up with the respondent and after detailed examination, the matter was heard on 11.06.2014 and an order dated 15.07.2014 was passed by the Court of the Chief Commissioner for Persons with Disabilities advising the respondent to complete the exercise of identifying the backlog of reserved vacancies in posts identified as suitable for persons with blindness within three months and consider the complainant for appointment, if there was any backlog reservation for persons with low vision/ blindness in a post identified for persons with blindness. After action taken, a report was sought from the respondent; the complainant vide a letter dated 10.11.2015 informed that he had been appointed as Multi-Tasking Staff from 7.11.2015.

¹⁹⁸ *Khalasi* Physical Requirement: S, ST, BN, L, MF, SE, C. Categories of Disabled suitable for Jobs: OA, OL, BL, LV, HH. Nature of Job: seaman; deck-hand, cleans decks and deck equipment by washing decks, chipping points, painting wood and metal fixtures, and splicing wires and cables. Breaks out rigs, overhauls lifeboats, cargo-handling and lifesaving gears lowers and raises lifeboats. Takes depth sounding in unfamiliar or shallow waters and shouts information to bridge. Makes ready derricks and winches for operation. May stow and remove cargo from hold. Abbreviations used: B = Blind; BA = Both Arms; BL = Both Legs; BLA = Both Legs and Arms; BLOA = Both Legs and One Arm; BN = Bending; C = Communication; CL = Climbing; CP = Cerebral Palsy; CRL = Crawling; H = Hearing; HH = Hearing Handicapped (Impairment); JU=Jumping; KC = Kneeling and Crouching; L = Lifting; LC = Leprosy Cured; LV = Low Vision; MF = Manipulation by Fingers; OA = One Arm; OAL = One Arm and One Leg; OH = Orthopaedically Impaired; OL=One Leg; PP = Pulling and Pushing; RW = Reading and Writing; S = Sitting; SE = Seeing; ST = Standing; VH = Visually Impaired; W = Walking.

Case No. 4161/1014/2015

Shri R. Ganesh, a person with 100 per cent hearing impairment, filed a complaint dated 17.04.2015 regarding recruitment for the post of Postal Assistant in the Department of Post. His candidature was not considered on the ground that he had not studied "English Subject" in the 10+2 standard. The matter was taken up with the Department of Post. After continuous follow-up of the case with the respondent, finally the respondent, vide a letter No. REP/2-2/2013&2014/DR/Mis III dated 22.12.2015, relaxed the requirement of studying two compulsory languages laid down in the Recruitment Rules and issued an appointment order in respect of the complainant to the post of Postal Assistant.

Case No. 4729/1022/2015

Shri Surinder Kumar Gupta, a person with 50 per cent locomotor disability, filed a complaint dated 16.05.2015 that the Oriental Bank of Commerce, in which he was working, did not accept his request for his transfer to a work place near his residence.

The matter was taken up with the respondent Bank vide the letter dated 20.07.2015 of the Chief Commissioner for Persons with Disabilities advising consideration of the request of the complainant in accordance with the instructions of the Department of Personnel and Training, Government of India, to consider such requests within the administrative constraints and subject to availability of vacancy at the requested place. The respondent Bank considered the request of the complainant and posted him near the place of his residence at Lucknow.

Case No. 5105/1022/2015

Shri Ravi Kumar, father of a daughter with intellectual disability, filed a complaint 31.08.2015 against the Union Bank of India regarding his posting/transfer from Ghazipur to Patna.

The matter was taken up with the respondent and the complainant was posted at the Regional Office, Patna, as intimated vide the Bank's letter dated 6.10.2015.

Case No. 192/1024/2013 (Transport Allowance)

Shri Sanjiv Kumar, a person with 75 per cent visual disability, filed a complaint dated 03.07.2013 regarding non-payment of Transport Allowance at double the normal rate by the National Council for Educational Research and Training (NCERT), New Delhi, from the date of his application. The Government instructions are that employees with disabilities will be entitled to double the normal transport allowance applicable to other employees of the same level as employees with disabilities have to spend more on transportation to travel to the workplace and home than non-disabled persons. The matter was taken up with the NCERT and after detailed deliberations, the Department vide its letter No. F 3-1/2011-E. II/1190 dated 12.06.2015 sanctioned Transport Allowance at double the normal rate retrospectively with effect from (w.e.f.) the date of his application, i.e., 06.09.2011.

Case No. 4514/1083/2015

Shri Amjad Khan, a person with 40 per cent locomotor disability, filed a complaint dated 16.6.2015 against the Delhi Milk Scheme (DMS) seeking an allotment of a booth in his name. There is a provision for the reservation of milk booths for persons with disabilities by the Delhi Milk scheme. The matter was taken up with the DMS vide office letters dated 30.06.2015 and 07.01.2016. After the intervention of the Chief Commissioner for Persons with Disabilities, the respondent allotted a booth number 2057-58 to the complainant, as informed vide its letter number 7-3/4884/2015 (VIP Ref) (Fin) dated 16.01.2016. The complainant was satisfied with the given allotment as intimated vide his letter dated 18.01.2016.

Case No. 668/1102/2013

Shri Raghuvans Kumar Yadav, a person with 100 per cent visual impairment, filed a complaint dated 11.11.2013 against the Union Bank of India regarding the non-issuance of an ATM Card. The matter was taken up with the respondent on 15.01.2014.

As per the instructions of the Reserve Bank of India (Central Bank) issued in compliance with the directions of the Chief Commissioner for Persons with Disabilities, all banking products have to be accessible for persons with disabilities. That includes the accessibility and usability of ATMs by persons with visual impairment.

After the intervention of the Office of the Chief Commissioner for Persons with Disabilities, the respondent intimated, vide its letter no. MOIC 443:2015 dated 19.05.2015, that the ATM card was issued to the complainant.

Case No. 425/1092/2013

Shri M.L. Prakash filed a complaint dated 09.09.2013 against the Central Water Commission, New Delhi, in the Court of the Chief Commissioner for Persons with Disabilities for reimbursement of expenditure incurred for the cochlear implantation of his son, Master Vijeth, with 100 per cent hearing impairment.

The Government of India has a scheme for the reimbursement of expenditure incurred on cochlear implantation. The then ceiling for cochlear implantation was Rs.0.535 million in the Central Government Health Scheme <<http://www.adipcochlearimplant.in/>>. The matter was taken up with the respondent vide a letter dated 30.09.2013 of the Chief Commissioner for Persons with Disabilities, followed by various reminders/clarifications. The respondent reimbursed the amount of Rs. 552,964.00 to the complainant as intimated vide its letter no. D 12015/1(32)/2013.Estt XIV (Pt) dated 04.11.2015.

2016-2017

No reference number is available for this case, as Indian Railways took positive action without the need for the issuance of summons and obviating the need for a hearing.

Complainant Shri Rajendra Sadankar submitted that, despite his repeated requests to the Central Railway, there was no provision of washroom/toilet facility for the well-being of persons with disabilities at Kalyan Railway Station. He requested that the Divisional Railway Manager (DRM), Central Railway, Mumbai Chhatrapati Shivaji Maharaj Terminus (CST) be directed to provide washroom/toilet facilities for persons with disabilities at Platform No. 01 at Kalyan Railway Station.

The matter was taken up with the Ministry of Railway, New Delhi, on 04.01.2016. In compliance, the Deputy Director/Land Management, Railway Board, Ministry of Railway, New Delhi, vide letter dated 11.11.2016, informed that work on the construction of a deluxe toilet on Platform No. 01 at Kalyan Railway Station was in progress. Washroom/toilet facilities for persons with disabilities are provided in this deluxe toilet.

Ms Shalini Khanna, Honorary Secretary, National Association for the Blind, New Delhi, filed a complaint through e-mail dated 06.09.2016 on behalf of Ms Veena Thakur. It was submitted that Ms Veena Thakur had been selected in the Clerical Cadre for the Punjab National Bank under the Blind category of Persons with Disabilities but suddenly she received a cancellation letter on 22.08.2016 from the said Bank. The reason stated by the Bank for the cancellation was: “she belongs to Other Backward Class (OBC) category while she had ticked Scheduled Caste (SC) Category¹⁹⁹ in her application form.” Ms Khanna indicated that Ms Veena Thakur’s Institute of Banking Personnel Selection (IBPS) online form had been filled by a cybercafé worker who had ticked “SC” instead of “OBC.” She subsequently made many efforts to rectify the mistake but could not succeed.

The matter was taken up with the Punjab National Bank on 29.09.2016, with the advice to allow the change in category as the error in the category ticked had not been intentional.

It would also not be to anyone’s disadvantage as she would be considered against the vacancies reserved for persons with disabilities and would be competing with candidates in the same category as she.

In compliance, the Deputy General Manager, Punjab National Bank, considered the matter, extended reasonable accommodation to the candidate with disability and informed on 04.11.2016 that the Bank had considered the candidature of Ms Veena Thakur in the OBC-Visual Impairment (VI) category instead of SC-VI. She was also issued an offer of appointment on 29.10.2016 to start work (join) on 21.11.2016.

Ms Shalini Khanna extended her gratitude to the Office of the Chief Commissioner for Persons with Disabilities and appreciated the prompt action taken by that Office which was exemplary and motivating.

Shri Abhiroop Achari, a person with 70 per cent hearing impairment, submitted in his complaint that he had applied for the post of Junior Technical Officer (Telecom) in Mahanagar Telephone Nigam Limited (MTNL), a Government of India undertaking, for direct recruitment. He was asked to appear at its Delhi office on 08.07.2016 for verification of documents based on his Graduate Aptitude Test in Engineering (GATE) score. Subsequently, the Mahanagar Telephone Nigam Limited authority informed him that, as per a rule in the Mahanagar Telephone Nigam Limited, Deaf persons are “those whose sense of hearing is non-functional sounds at all events with amplified loss of more than 90 decibels (dB) in the better ear (profound impairment) or total loss of hearing in both ears” and the Mahanagar Telephone Nigam Limited asked him to resubmit his disability certificate fulfilling the requirement of 90 dB.

As per section 2 (I) of the Persons with Disabilities Act, 1995, “hearing impairment means loss of sixty decibels or more in the better ear in the conversational range of frequencies.” All subordinate legislation, rules, policies are required to be modified and, if not, the provisions of the Act would prevail. The matter was taken up with the Mahanagar Telephone Nigam Limited on 04.10.2016 as it was a case of clear violation of the provision in the Persons with Disabilities Act, 1995.

In compliance, the Deputy General Manager (Personnel), Mahanagar Telephone Nigam Limited, vide a letter dated 27.03.2017, informed that an offer of appointment had been given to Shri Abhiroop Achari and he had joined the Mahanagar Telephone Nigam Limited as a trainee Junior Technical Officer. Shri Abhiroop Achari also informed that he had joined on 07.11.2016 at Mumbai and the complainant withdrew the complaint lodged against the authority on 16.03.2017.

2017-2018**Case No: (7578/1013/2016)**

Ms Pratima Pandit, a person with 85 per cent hearing impairment, submitted that she had applied for the post of peon in the Eastern Railway and after clearing the written test, her documents had been verified on 17.05.2014. She appeared before the Medical Board on 10.07.2014. Her name was on the website as a selected candidate. But the authorities did not issue the appointment letter despite a lapse of two years.

The matter was taken up with Eastern Railway on 20.02.2017 which informed that the complainant had joined in the post of Helper Engineer in Eastern Railway, Asansol Division.

There has been hesitation in the Railways regarding the appointment of persons with disabilities, especially those with hearing impairment and blindness due to the perceived safety posts in the organization and it was deemed difficult to deploy a large number of persons with disabilities in the non-safety posts which are small in number.

¹⁹⁹ The backward classes mainly consist of Schedule Castes (SCs), Schedule Tribes (STs) and other Backward Classes (OBCs). The origin of backwardness is primarily due to the age-old caste system that determines one’s social status. The caste system divides Hindus into rigid hierarchical groups based on their work/ duty. At the top of the hierarchy are the *Brahmins*: traditionally, *Brahmins* were mainly teachers and intellectuals. In the second tier are *Kshatriyas* (warriors) and rulers. The third group is the *Vaishyas* (traders). The fourth group at the bottom, the *Shudras*, have the duty to serve the other three groups and undertake menial work. The *Shudras* face extreme social marginalization on account of their perceived low status. Other backward classes are those who are socially and educationally backward but do not face social exclusion. Scheduled Tribes (STs) face oppression and marginalization due to geographical isolation and other factors.

2017

Case No: (8391/1022/2017)

Lt. Col. Sanjay Agarwal, vide his complaint, submitted that Shaurya Vikram, his son with dyslexia (with 40 per cent specific learning disability) and a student of Delhi University, required constant medical assistance, monitoring and guidance from counsellor, parents, teachers and an environment for systematic rehabilitation. Currently, he was undergoing counselling and medical treatment in the Institute of Human Behaviour and Allied Sciences, Delhi, and the same had been recommended to be continued for a considerable period. The complainant was posted at the Office of the Additional Directorate General, Integrated Headquarters of the Ministry of Defence (Army), in New Delhi, on compassionate ground on 21.08.2014. He had requested for an extension of posting for another two years for systematic rehabilitation and completion of graduation of his son in July 2017. But his request was rejected by the Army authorities.

Although the instructions of the Department of Personnel and Training to consider such requests of Government employees (civilians) are not applicable to Army officers and personnel, it was a matter of providing reasonable accommodation to the complainant. The matter was taken up with the Integrated Headquarters of the Ministry of Defence on 20.07.2017.

During the hearing on 22.12.2017, the representative of the respondent informed that the study leave of two years duration to the complainant had been approved. The complainant, vide letter dated 03.01.2018, expressed his gratitude to the Office of the Chief Commissioner for Persons with Disabilities.

2017

Case No: 8104/1014/2017

Shri Jetho Chandiram Somai, in his complaint, submitted that his daughter, Kumari Neha Jethanand Somai, a person with 60 per cent hearing impairment, had appeared in the Special Recruitment Drive for Persons with Disabilities, 2016 conducted by the Securities and Exchange Board of India for the post of Assistant Manager (General Stream) for 03 HH and 01 VH candidates. His daughter was selected as the first waitlisted and the above status was valid till September 2017. In spite of issuing an offer of appointment letter to his daughter, the Securities and Exchange Board of India again issued a fresh notification and invited applications for the same post.

On the intervention of the Court of the Chief Commissioner for Persons with Disabilities, the Chief General Manager, Securities and Exchange Board of India, vide a letter dated 16.08.2017, informed that an offer of appointment had been issued to Ms Kumari Neha Jethanand Somai as she was the first wait-listed candidate in the HH category from the General Stream. She accepted the offer of appointment.

2018-2019

Case No. 10034/1032/2018

Complainant: Shri N.V. Narasimha

Respondent: Bhagwanti Chadha Niketan

Deputy Inspector-General N.V. Narasimha, Tatrakshak Medal (TM), Coast Guard Headquarters, New Delhi, submitted a representation dated 17.07.2018 requesting that his son, Master Venkatesh Nanduri, a child with 50 per cent Intellectual Disability, needed to pursue the Class 10 exam through the National Institute of Open Schooling. The petitioner requested the Chief Commissioner for Persons with Disabilities for help in the admission of his son to Class 10 at Mata Bhagwanti Chadha Niketan, a charitable school at Noida that provided education and various training programmes for children with disabilities to develop their ability and prepare them for the Class 10 exam under the National Institute of Open Schooling (NIOS).

The matter was taken up with the Principal, Mata Bhagwanti Chadha Niketan. The Principal, vide his letter dated 22.10.2018, intimated that Master Venkatesh had been admitted in the school on 24.08.2018.

2018

Case No.10354/1041/2018

Complainant: Shri G. Sivasankar

Respondent: National Testing Agency

Shri G. Sivasankar, a person with 67 per cent cerebral palsy from Krishna District (Andhra Pradesh), complained regarding the National Testing Agency that had conducted the UGC-NET²⁰⁰ test in December 2018. At Point 10 Provisions for Persons with Disability of the Information Bulletin for UGC-NET December 2018, only visually challenged candidates with 40 per cent or more disability were allowed to be provided a scribe/reader on the request of the candidate. No other candidates with disabilities were allowed to avail themselves of the facility of scribes/readers. The said provision was in violation of the "Guidelines for conducting written examination for Persons with Benchmark Disabilities" issued by the Department of Empowerment of Persons with Disabilities (*Divyangjan*), Ministry of Social Justice and Empowerment, vide Office Memorandum No.34-02/2015-DD-III dated 29.08.2018.

The matter was taken up with the National Testing Agency that was advised to implement the "Guidelines for conducting written examination for Persons with Benchmark Disabilities" and to modify the "Provisions for Persons with Disability" at Point 10 of the notification. Accordingly, the National Testing Agency noted the complaint and allowed Shri G. Sivasankar to avail himself of the services of a scribe along with compensatory time on the basis of his disability certificate.

²⁰⁰ UGC-NET is a test to determine the eligibility of Indian nationals for "Assistant Professor" and "Junior Research Fellowship and Assistant Professor" in Indian universities and colleges. The selection of candidates for the following Fellowships of the Ministry of Social Justice and Empowerment and the Ministry of Minorities Affairs is also made through the UGC-NET: National Fellowship for Scheduled Caste Students (NFSC); National Fellowship for Other Backward Classes (NFOBC); Maulana Azad National Fellowship for Minority Students (MANF). Candidates aspiring for the above Fellowships have to apply for the Test. The National Testing Agency has been entrusted by the University Grants Commission (UGC) with the conduct of the UGC-NET <<https://ugcnet.nta.nic.in/>>.

2018
Case No.10532/1041/2018

Complainant: Shri Akhilesh Bhambri
Respondent: Indian Institute of Technology Madras

Shri Akhilesh Bhambri, a person with 40 per cent locomotor disability (both upper limbs) from Udaipur (Rajasthan) was to appear in the Graduate Aptitude Test in Engineering (GATE)²⁰¹ 2019 (Electrical Engineering). He requested compensatory time as per the "Guidelines for conducting written examination for Persons with Benchmark Disabilities" issued by the Department of Empowerment of Persons with Disabilities (*Divyangjan*), Ministry of Social Justice and Empowerment, vide Office Memorandum No.34-02/2015-DD-III dated 29.08.2018.

The matter was taken up with the Organizing Chairman – GATE 2019 – Indian Institute of Technology Madras. Shri Akhilesh Bhambri was allowed to avail himself of compensatory time of 20 minutes per hour exam for GATE 2019.

2018
Case No. 9224/1024/2018

Complainant: Shri Manjunath Sheshadri
Respondent: State Bank of India

Shri Manjunath Sheshadri, a person with 80 per cent disability, submitted that he had been appointed in SBM Bank under the disability quota and posted as Associate at the State Bank of India, Brindavan Extension Branch, in Mysuru. He made a complaint to the Court of the Chief Commissioner for Persons with Disabilities vide his email dated 08.01.2018 regarding non-reimbursement, by the Bank, of money spent by him on his spectacles. The State Bank of India turned down his request and found him not eligible for reimbursement of the cost of spectacles.

The matter was taken up with the Chairman, State Bank of India vide letter dated 13.02.2018. The State Bank of India, vide its letter dated 27.03.2018, informed this Court that it had reimbursed a payment of Rs.11,500/-²⁰² to the complainant towards the cost of his spectacles.

The complainant, vide his email dated 16.03.2018, also thanked this Court for helping him in getting the reimbursement of his medical bill for the new spectacles.

²⁰¹ GATE 2019: a competitive exam for higher education in post-graduate courses in premier institutes in India. It is also an eligibility test for recruitment in various public sector undertakings. The Indian Institute of Technology (IIT) Madras or IITM is the official organizer of the exam.

²⁰² Equivalent to approximately USD140.

2018
Case No. 9487/1023/2018

Name of the Complainant: Shri Anoop A.G.
Name of Respondent: State Bank of India

Shri Anoop A.G., person with 75 per cent visual impairment, filed a complaint dated 11.01.2018 against relieving him from service.

The matter was taken up with the respondent vide letter dated 04.06.2018. The Deputy General Manager (DGM) and Chief Digital Officer (CDO), State Bank of India, Local Head Office, Chennai, vide letter no. HR:IR 1645 dated 01.08.2018, submitted that the complainant joined as Clerk in the State Bank of Travancore, Thiruvanchoor Branch, on 01.10.2009. He was later promoted to the Officer cadre and was posted as Assistant Manager at Simmakkal Branch.

After a merger of associate banks, all employees of the associate banks were given an option to accept an offer of employment in the State Bank of India on the terms and conditions enumerated in the offer letter.

There were three options given to the employees of associate banks to select. Option A referred to acceptance of terms and conditions of employment in the State Bank of India with State Bank of India terminal benefits. Option B was in relation to acceptance of the offer of employment in the State Bank of India with terminal benefits that were of the associate bank, i.e., the State Bank of Travancore. Option C stipulated an option to reject the offer of employment in the State Bank of India.

Employees who chose "Option C" would be discontinuing their service altogether and receive the terminal benefits of the State Bank of Travancore. The complainant selected "Option C."

The Chief General Manager, State Bank of India, Local Head Office, Chennai, vide letter no. HR: LAW: 3772 dated 07.01.2019 informed this Court that the Bank had accorded approval for reinstating Shri Anoop A.G. in the Bank and had advised Shri Anoop A.G. to report for duty at RBO, Nagercoil immediately.

Annex 5

Success stories of the State Commissioner for Persons with Disabilities, Delhi, 2017-2019

2017-2018

The following complaints/ cases were decided in the period from April 2017 through March 2018. The orders of the State Commissioner for Persons with Disabilities, Delhi, arranged subject-wise are available on the website of the Commissioner for Persons with Disabilities, Government of the National Capital Territory of Delhi.²⁰³

1. Case No. 4/1729/2017-Wel/CD²⁰⁴ D.O.O.: 11.01.2018

Shri Desh Raj versus Delhi Jal Board

Shri Desh Raj, a person with 50 per cent locomotor disability, filed a complaint regarding the need for a transfer to a posting nearer his residence. He was facing difficulty in commuting to his current place of posting as that office was 30 km away from his residence.

Recommendation / Decision of the State Commissioner for Persons with Disabilities

The State Commissioner directed consideration of the request of the complainant in accordance with the guidelines/instructions of the Department of Personnel and Training, Government of India, to consider the requests of employees with disabilities for transfer to be near their place of residence within the administrative constraints and subject to availability of a vacancy.

The respondent transferred the complainant to a posting near his residence. The complainant also confirmed that he had started work at that posting.

²⁰³ Government of the National Capital Territory of Delhi, Office of the Commissioner for Persons with Disabilities (n.d.).

²⁰⁴ Wel/CD is a file code indicating the department/ office, namely, Welfare/Commissioner Disability. D.O.O. is the Date of Order.

2. Case No. 78/1011/2018/01 D.O.O: 16.01.2018

Suo-Motu versus Additional Medical Superintendent (Administration), Lok Nayak Hospital, Secretary, Health and Family Welfare Department, Government of the National Capital Territory of Delhi

Suo-moto cognizance of an advertisement published in the Hindustan Times dated 06.01.2018 for filling up 201 vacant posts of Junior Resident Doctors mentioned that “3 per cent seats shall be reserved for persons with disabilities on horizontal basis” was taken, followed by a show cause notice as to why a corrigendum to the advertisement reserving 4 per cent vacancies should not be issued by the respondent. The advertisement was in violation of section 34 of the Rights of Persons with Disabilities Act, 2016 which mandated that not less than 4 per cent of the vacancies be reserved for persons with disabilities in the identified posts. It also did not follow the instructions of the Government to indicate in the advertisement the posts in which the vacancies were reserved and the category of disabilities for which the posts were reserved.

Recommendation / Decision of the State Commissioner for Persons with Disabilities

In compliance with the instruction of the State Commissioner for Persons with Disabilities, the respondent issued a corrigendum reserving eight vacancies of Junior Resident Doctors at 4 per cent of the vacancies.

3. Case No. 4/967/2015 Wel/CD date of order (D.O.O): 16.03.2018

Dr. Satendra Singh versus Delhi District Cricket Association (DDCA)

Dr. Satendra Singh, a person with 70 per cent locomotor disability, submitted that Feroz Shah Kotla Cricket Stadium in Delhi was not accessible for persons with disabilities.

The stand taken by the Delhi District Cricket Association was that when the complaint was filed in 2015, the then applicable Persons with Disabilities Act, 1995 did not apply to the Delhi District Cricket Association, a private entity. There was no further order and hence that complaint as per the respondent had become infructuous.

Section 45 of the Rights of Persons with Disabilities Act, 2016 provides that all existing public buildings are to be made accessible in accordance with the prescribed standards within five years from the date of notification of such standards and the Government had notified the Harmonized Guidelines in April 2017.

In light of the enactment of the Rights of Persons with Disabilities Act, 2016 which also applies to private entities for the purpose of providing accessible facilities, the State Commissioner issued show cause notice followed by hearings. After the first hearing, a committee was constituted to conduct the accessibility audit of the stadium and to recommend additional facilities that should be provided in and around the stadium to ensure equal access to all the facilities and amenities for persons with diverse disabilities on an equal basis with others.

Recommendation / Decision of the State Commissioner for Persons with Disabilities

Upon receipt of the access audit report and the recommendations of the committee, the State Commissioner for Persons with Disabilities recommended that Feroz Shah Kotla Stadium be made fully accessible for persons with disabilities as per the prescribed standards and be developed as a model accessible stadium for persons with disabilities in Delhi which could be replicated elsewhere in the country.

The Delhi District Cricket Association internally constituted a committee including its Chief Engineer to incorporate the recommended retrofitting or additional facilities.

4. Case No. 4/1121/2017-Wel/CD date of order (D.O.O): 06.02.2018***Ms Rajbala versus the Medical Superintendent, Satyawadi Raja Harish Chandra Hospital and the Medical Superintendent, Guru Nanak Eye Centre***

The complainant was working as a trained graduate teacher (T.G.T) of Sanskrit and had been selected for post-graduate teacher (P.G.T) by the Delhi Subordinate Services Selection Board. She went to Babu Jagjivan Ram Hospital, Delhi, for a medical examination and was declared medically unfit due to her visual disability.

She applied for a disability certificate in Satyawadi Raja Harish Chandra Hospital (SRHCH), Delhi. Despite a lapse of more than three months, she did not receive the disability certificate. This was a case of the usual administrative delay as the hospital could only issue a disability certificate for visual disability in consultation with another hospital that had an ophthalmologist. Nonetheless, it caused distress to the complainant.

Recommendation / Decision of State Commissioner for Persons with Disabilities

On the intervention of the State Commissioner, the Satyawadi Raja Harish Chandra Hospital issued a disability certificate after receiving a report from the Guru Nanak Eye Centre for 100 per cent visual impairment on 04.01.2018 and she was appointed.

5. Case No. 4/1471/2017/ Wel/CD D.O.O: 04.08.2017***Shri Babu Lal versus the Commissioner, New Delhi Municipal Corporation***

The complainant, a person with 62 per cent locomotor disability, submitted that the respondent assured the Commissioner for Persons with Disabilities on 07.10.2015 that he would be allotted government accommodation as soon as possible. But he had not been allotted the quarter to date.

Recommendation / Decision of the State Commissioner for Persons with Disabilities

On the intervention of the State Commissioner, the complainant was allotted the government quarters out of the 5 per cent quota reserved for specific categories.

This was a case of non-compliance with the assurance given to the Commissioner for Persons with Disabilities, as well as the Government's guidelines to allot Government accommodation to employees with disabilities among other categories and a matter of reasonable accommodation, even if the reserved quota had been filled.

6. Case No. 4/1311/2016/ Wel/CD date of order (D.O.O): 03.08.2017***Shri Ravi s/o Shri Bharat Lal versus the Medical Superintendent, Deen Dayal Upadhyay Hospital***

The complainant submitted that he was in Jail No. 4 of Tihar Jail. He applied for a disability certificate but was assessed to be having only 17 per cent physical disability. Aggrieved by the decision of the Medical Authority at Deen Dayal Upadhyay Hospital, the complainant approached the State Commissioner for Persons with Disabilities for a review of his case.

The complaint was taken up as the rules provided for review by a board in case of any dispute.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

The rule position was brought to the notice of the respondent that was directed to review the decision of the medical authority and the decision of the review board was deemed final as per the provisions of the Rights of Persons with Disabilities Rules, 2017. The respondent informed, vide letter dated 06.03.2017, that the complainant had been issued a disability certificate of 41.20 per cent vide No. 46/2017 dated 04.03.2017.

7. Case No. 4/1025/2015/ Wel/CD D.O.O: 27.07.2017***Shri Vishamber Verma versus the Deputy Commissioner***

Shri Vishamber Verma, a person with more than 40 per cent locomotor disability, submitted that he wanted a loan of Rs. 0.5 million for self-employment. He had also applied for a loan under the Prime Minister's Employment Generation Programme (PMEGP). However, the authorities had not sanctioned the loan, despite a lapse of many months.

Recommendation / Decision of the State Commissioner for Persons with Disabilities

On the intervention of the State Commissioner, the complainant informed, vide his e-mail dated 29.2.2016, that he had been sanctioned a loan of Rs.3.32 lakh for setting up a cyber cafe.

8. Case No. 141/1121/2018/03 DOO: 27.03.2018***Mr Ashfak Ali Khan versus the Medical Superintendent, G.B. Pant Hospital***

Mr Ashfak Ali Khan, father of (f/o) Humairaa Khan, vide his email dated 01.03.2018, submitted that he was facing an enormous problem in getting a disability certificate for his daughter.

Recommendation / Decision of State Commissioner for Persons with Disabilities

The complaint was taken up with the respondent vide letter dated 07.03.2018 with the direction to submit Action Taken Report within 15 days from the date of receipt of that communication.

The respondent hospital, vide letter dated 17/03/J2018, informed that the complainant's daughter had been issued, on 08.03.2018, a disability certificate for approximately 73 per cent permanent physical and mental disability.

9. Case No. 106/1121/2018/08 DOO: 19.03.2018***Ms Simmi Chopra versus the Medical Superintendent, Safdarjung Hospital, Bhagwan Mahavir Hospital, and the Secretary, Health and Family Welfare Department, Government of the National Capital Territory of Delhi***

Ms Simmi Chopra, vide her email dated 11.02.2018 informed that she had been trying to get a disability certificate for her son, Master Manith Chopra, since 02.03.2017. However, she had not been able to get it despite making the rounds of many hospitals.

The complaint was taken up with the concerned authorities vide show-cause-cum-hearing notice dated 16.02.2018. The respondents were directed to submit their versions by 28.02.2018 and to appear for the hearing on 09.03.2018. The complainant was separately advised to intimate the updates of her visits to the hospitals/authorities to clarify the problems that she and other similarly placed persons were facing in obtaining the disability certificate and the related issues.

Recommendations / Decision of State Commissioner for Persons with Disabilities

During the hearings and the version submitted by the complainant, a number of issues emerged. Those ranged from the permanent residence of the person concerned and temporary residence, jurisdiction of the hospital, the mismatch between the allocation of areas to various hospitals, unavailability of specialist doctors for assessment of disability in an assigned hospital, to issues of streamlining of the procedures, and lack of dissemination of information. Safdarjung Hospital, vide its letter dated 20.04.2018, informed that the disability certificate had been issued in respect of Master Manith Chopra.

Even though the disability certificate had been issued in favour of Master Manish Chopra, a number of recommendations were also made to the Health Department to address the issues that had emerged and for streamlining the procedure for the issuance of disability certificates.

10. Case No. 4/920/2015-Wel/CD D.O.O: 13.03.2018***Ms Pooja versus the General Manager, Delhi SC/ST/OBC/Minorities and Handicapped Financial Development Corporation***

The complainant alleged that the medical bills of her late husband who acquired a disability while in the service of the respondent had not been reimbursed fully and she should be appointed on compassionate ground.

Recommendations / Decision of State Commissioner for Persons with Disabilities

State Commissioner vide order dated 13.03.2018 recommended as under:

The question of appointment of the complainant on compassionate ground be decided by the Committee constituted for the purpose in accordance with the Department of Personnel and Training Office Memorandum (DoP & T OM) No. 14014/02/2012-Estt./(D) dated 16.01.2013

1. The question of appointment of the complainant on compassionate ground be decided by the Committee constituted for the purpose in accordance with the Department of Personnel and Training Office Memorandum (DoP & T OM) No. 14014/02/2012-Estt./(D) dated 16.01.2013
2. Medical Bills be reimbursed within one month.

The respondent informed, vide letter dated 18.06.2018, that the balance amount on account of medical bills had been reimbursed to the complainant. As regards the appointment of the complainant, the same was not recommended by the competent committee constituted for the purpose as per the rules.

2018-2019

The following complaints/cases were decided in the period from April 2018 through November 2019.

1. Case No. 97/1024/2018/02 dated 09.04.2018***Mr Mohd. Faizan versus the Director, Department of Social Welfare, and the Branch Manager, Oriental Bank of Commerce***

Through his father, the complainant, a person with 75 per cent intellectual disability, complained that he had not received a disability pension since February 2017. The Department of Social Welfare asked him to link his Aadhaar²⁰⁵ to the complainant's bank account number in the Oriental Bank of Commerce.

Recommendations / Decision of State Commissioner for Persons with Disabilities

A show cause notice was issued to the respondents.

²⁰⁵ Aadhaar: a 12-digit individual identification number issued by the Unique Identification Authority of India on behalf of the Government of India, under the Ministry of Electronics and Information Technology (MeitY).

The Branch Manager informed that the said account had been linked to the *Aadhar* on the National Payments Corporation of India (NPCI) mode on 03.02.2018.

From the interaction with the complainant during the hearing, it was observed that the complainant was very hesitant to narrate his experience in the Office of the District Social Welfare Officer, appearing fearful of the concerned officials.

The State Commissioner for Persons with Disabilities contacted the concerned Deputy Director (Mrs Saroj Rawat) in the District Social Welfare on the telephone as none appeared from that Department. She checked the record and informed that the *Aadhaar*²⁰⁶ number of the complainant was not correct and no information had been updated by the District Social Welfare Officer. She, however, promptly updated the record and assured that the pension would be credited to the account of the complainant by the end of March 2018.

The Director, District Social Welfare, was also advised on the telephone during the hearing to look into the matter and take appropriate action against the responsible officer so that persons with disabilities in need were not harassed by officials whose duty it was to serve them. The concerned District Social Welfare Officer was subsequently transferred as a consequence of her improper treatment of the complainant.

Mrs Saroj Rawat, Deputy Director, District Social Welfare, vide her letter dated 28.03.2018, informed that necessary corrections had been made in the data base and payment of Rs. 20,000/- had been released into the *Aadhar*-linked account of the complainant.

The complaint was disposed of with the advice to the Director, District Social Welfare, to issue an appropriate advisory to all concerned to include training on disability as a component for all the Social Welfare Officers and other functionaries of District Social Welfare as required under section (u/s) 47(1)(b) of the Act.

The State Commissioner for Persons with Disabilities, while appreciative of the action of the Deputy Director, District Social Welfare, passed strictures against the District Social Welfare Officer and recommended action against her.

2. Case No. (i) 149/1024/2018/03 & (ii) 108/1024/2018/02 dated 13.07.2018

Shri Sainik Gulam Asgar versus the Delhi Transport Corporation

The complainant, a person with 30 per cent locomotor disability, vide his complaint dated nil received from the Court of the Chief Commissioner for Persons with Disabilities vide letter dated 01.03.2018, submitted that he had been appointed on 13.07.1979 as a Driver in the Delhi Transport Corporation. He had met with an accident while on duty on 08.11.1983 resulting in injury of both his legs. On his return to duty, he was re-designated as Conductor on 24.12.1986 but was terminated on 20.05.1987. During his termination period, he went to his home town (Basti, Uttar Pradesh) where he obtained a disability certificate of 50 per cent locomotor disability. He was reinstated with back wages after the order dated 26.11.2001 of the Honorable High Court of Delhi. By then, the Persons with Disabilities Act, 1995 had come into force which prohibited dispensing with the services of a government employee on acquiring a disability during service. He was sent to Lok Nayak Hospital for re-examination where his disability was found to be 41 per cent in January 2013. He was accordingly given the Transport Allowance at double the normal rate w.e.f. 10.01.2013 to 31.05.2014, i.e., up to the date of his retirement as per the Government's instructions. The complainant requested that he should be given Transport Allowance at double the normal rate w.e.f. 01.01.2008 as he had been issued a disability certificate of 50 per cent disability by the Chief Medical Officer, Basti, on 16.09.2008.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

- (a) The complaint was taken up with the respondent vide notice dated 15.02.2018. The respondent vide letter dated 16.03.2018 submitted that the complainant was assessed to have 30 per cent locomotor disability on 01.10.1987. As he was residing in Delhi and the hospital in Delhi assessed his disability as 41 per cent and informed the respondent, on 10.01.2013, he was paid the Transport Allowance from 10.01.2013 till his retirement.
- (b) The Chief Medical Officer (CMO), Basti, confirmed through a letter of 2018 the genuineness of the disability certificate of 50 per cent issued by CMO, Basti. The respondent also informed that CMO, Basti had found the disability certificate to be genuine.
- (c) Based on the above facts, the complaint was disposed of with the recommendation that the Transport Allowance at double the normal rate be paid to the complainant w.e.f. 16.09.2008 within 45 days from the date of receipt of the order.
- (d) Vide letter dated 07.02.2019, the respondent informed that Rs. 1,84,392 towards transport allowance w.e.f. 16.09.2008 to 31.12.20012 had been paid to the complainant which was confirmed by the complainant.
- (e) This was a case of lack of knowledge and understanding of the rules that an employee is not required to produce a disability certificate from a hospital of his/her residence for availing himself/herself of double the transport allowance available as per government policy; non-application of mind to the case; and lack of genuine efforts to get to the truth, to ensure justice for a person with disability.

²⁰⁶ *Aadhaar*: a 12-digit individual identification number issued by the Unique Identification Authority of India on behalf of the Government of India.

3. Case No. 86/1150/2018/01 and 4/1712/2017-Wel/CD dated 02.08.2018

3.1 Shri Kapil Kumar Aggarwal versus the Principal Secretary-cum-Commissioner, Transport Department

3.2 Ms Suvarna Raj versus the Chairman, Transport Department, Motor Licensing Officer, Delhi Transport Corporation Mall Road, and Motor Licensing Officer, Delhi Transport Corporation Loni Road

86/1150/2018/01

Shri Kapil Kumar Aggarwal, a person with locomotor disability and General Secretary of *Viklang Sahara Samiti*, an organization of persons with disabilities, vide his complaint dated 23.12.2017, submitted that many persons with disabilities in Delhi were not able to get driving licenses. Some persons with disabilities could drive commercial vehicles, but due to the unavailability of driving licences for them, they could not earn their livelihood.

4/1712/2017-Wel/CD

Ms Suvarna Raj, a person with 90 per cent locomotor disability, vide her complaint dated 27.06.2017, submitted that she had purchased an Axtiva Scooter on 25.05.2017 and modified it with side wheels. She had to go out of Delhi and the Motor Licensing Authority refused to register the vehicle in her absence. As a result, the registration got delayed and she had to pay a fine although the Licensing Authorities were responsible for the delay. The Department had also decided to register the Invalid Carriages at a particular Motor Licensing Authority which was not convenient for her. She also alleged improper behavior of the staff with her family member who had gone for the registration of her vehicle.

Recommendations / Decision of State Commissioner for Persons with Disabilities

Both the complaints related to similar problems faced by persons with disabilities in obtaining driving licences. Hence, those were disposed of by a common order.

86/1150/2018/01

The complaints were taken up with the respondents vide notice dated 24.01.2018 followed by a hearing. The two affected persons with disabilities also participated in the hearing.

After hearing the complainants and the accompanying two persons, the representatives of the respondent clarified that the driving licence was not denied to a person with disability merely on the ground of his or her disability. A person with disability like any other person was required to submit a certificate of fitness from a doctor of a government hospital. Thereafter, the Motor Licensing Authority assessed and examined the fitness of the person with or without disability to ascertain whether he/she could drive the vehicle.

In respect of persons with disabilities seeking driving licences to drive invalid carriage vehicles, they were issued temporary learner licences even without possession of a vehicle.

Every permanent driving licence could only be issued after there was possession of a vehicle (modified/invalid carriage vehicle) in the name of the applicant himself or herself. The licence of an applicant with disability had to bear the number of the respective invalid carriage vehicle.

The representatives of the respondent clarified that there had been some problem regarding the online application form which required the applicant to insert the vehicle number. The said issue had been rectified and removed from the application form. Following that rectification, a person with

disability who applied for a learner's licence would not be required to insert the vehicle number. They also submitted copies of four driving licences issued to four persons with disabilities and assured that any problem related to the matter would be attended to by the Department.

4/1712/2017-Wel/CD

The complaint of Ms Suvarna Raj was taken up with the respondent vide notice dated 06.09.2017 and followed up by reminder dated 10.10.2017. The Motor Licensing Officer (MLO) and Registering Authority, North-East Zone, informed the complainant that he was not posted in the Zonal Office on the date misbehavior was alleged.

No proof of any misbehavior was produced.

As regards the issuance of driving licences to persons with disabilities on a priority basis, they should visit the Zonal Office on any working day and bring along all requisite documents and contact the concerned inspector or the Motor Licensing Officer.

The respondent Department was advised to organize sensitization programmes for its officers and staff and ensure that persons with disabilities were provided reasonable accommodation without their being harassed.

4. Case No. 374/1023/2018/07 dated 09.08. 2018

Ms Latika Kapoor versus Nestle India Ltd., Gurugram (Haryana)

Ms Latika Kapoor, a person with disability, vide her email dated 12/07/2018 submitted that she was working as HR Contact Centre Associate, Nestle-India Ltd, Gurugram (Haryana). She was hired under "Diversity Hiring for Nestle-India" on 05.04.2017. She faced discrimination on the ground of her disability and had been told to leave the job.

As she had not received a response from other authorities and she was a resident of Delhi, she sought the assistance of the State Commissioner for Persons with Disabilities, Delhi.

As Ms Latika Kapoor was working in Gurugram (Haryana) State, the State Commissioner for Persons with Disabilities of Haryana was the appropriate authority to take up the matter. However, looking at the circumstances of the complainant and the urgency of the matter, her complaint was forwarded to the State Commissioner for Persons with Disabilities, Haryana, with a copy to the Chairman and Managing Director, Nestle-India Ltd (Haryana) vide letter dated 13.07.2018.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

It was brought out in the letter that the Rights of Persons with Disabilities Act, 2016 had been enacted to implement the Convention on the Rights of the Persons with Disabilities and its principles of respect for inherent dignity, non-discrimination, equality of opportunity and equality between men and women with disabilities were the hallmarks of the Act.

In order to ensure that persons with disabilities enjoyed equal opportunities and were not discriminated against, section 21 of the Act and rule 8 of the Rights of Persons with Disabilities Rules, 2017 mandated that every establishment (including private establishments) “shall notify Equal Opportunity Policy and register the same” with the Chief Commissioner for Persons with Disabilities / State Commissioner for Persons with Disabilities.

This was with a view to ensuring that the company and the concerned authorities were aware of the mandate and the intent of the law. They were expected to take the initiative and, if required, go the extra mile to contribute to making the rights of persons with disabilities in India “real.”

Vide email dated 21.07.2018 and 02.08.2018, Nestle-India Ltd informed that the grievance of the complainant had been redressed and her contract for another year had been extended which the complainant, vide her email dated 02.02.2018, confirmed and requested closure of her case.

5. Case No. 166/1011/2018/03 dated 20.08. 2018

Shri Jai Pal Singh versus the Director, Directorate of Education

The complainant, vide his complaint received on 12.03.2018, submitted that his son Sh. Pawan Kumar Singh, a person with 100 per cent hearing impairment, applied for the post of Art Teacher (Guest Teacher) for the session 2017-2018 in the Directorate of Education, South District, New Delhi. The respondent had filled up 18 vacancies. None of them was filled by a person with disability.

Incidentally, the complainant could apply for the post online on the intervention of the State Commissioner for Persons with Disabilities, Delhi, if the online application had made a provision for persons with hearing impairment as one of the eligible categories for the post of Drawing Teacher — identified for persons with locomotor disability and hearing impairment as per the list of identified posts issued by the Department of Empowerment of Persons with Disabilities.

The complaint was taken up with the respondent vide notice dated 25.05.2018 seeking Action Taken Report (ATR) within 15 days.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

Vide the Record of Proceedings dated 25.07.2018, the respondent was directed to inform whether any vacancy was reserved for persons with disabilities in general and persons with hearing impairment in particular and whether Shri Pawan Kumar Singh was considered against a reserved vacancy for persons with disabilities. This case involved non-compliance with the list of identified posts for persons with hearing impairment under the Persons with Disabilities Act, 1995.

The matter was scheduled for hearing on 29.08.2018. In the meantime, the Deputy Director of Education, vide letter dated 03.08.2018, informed that Shri Pawan Kumar Singh had been engaged as Guest Teacher (Drawing Teacher) against a reserved vacancy for persons with disabilities in Sarvodaya Co-Ed Vidyalaya Safdarjung Enclave, New Delhi. The complainant also confirmed that his son had joined the post (started work in that position).

6. Case No. 433/1031/2018/08 dated 05.09.2018

Dr Usha Bhatnagar, Chairperson, Shubhakshika Educational Society (civil society organization) and Ms Kajal (Victim) versus (1) The Director, Department of Social Welfare; (2) The Principal, School for Deaf and Dumb, NPS Building, Near, Vishram Chowk, Rohini Sector-4, New Delhi

Dr Usha Bhatnagar, Chairperson, Shubhakshika Educational Society (civil society organization), vide her email dated 15.08.2018, submitted that an 11 year-old girl, Ms Kajal daughter of (d/o) Shri Girish Kumar, was a child with hearing impairment. Her parents approached the school for Deaf persons in Sector-4, Rohini, under the Department of Social Welfare, for her admission in July 2018. She had a disability certificate and an Aadhaar card. She was asked to submit her school leaving certificate and a certificate that she (Kajal) was not a mentally challenged person. However, she was not admitted on the ground that the admission was closed and the child did not have a school leaving certificate.

The complaint was taken up with the respondents vide notice dated 23.08.2018 directing them to show cause why Ms Kajal should not be admitted. Subsequently a hearing was also held.

It appeared prima facie that Ms Kajal was denied admission in violation of sections 16 (1) and 31 of the Rights of Persons with Disabilities Act, 2016 and the Right of Children to Free and Compulsory Education Act, 2009. The laws provide that children with disability shall be admitted without discrimination and every child with benchmark disability between the age of six to 18 years shall have the right to free education in a neighbourhood school, or in a special school, of her/his choice.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

During the hearing on 04.09.2018, the respondents acknowledged that the parents had submitted the duly filled in application form on 20.08.2018. In the meantime, the petitioner also approached the Court of the State Commissioner for Persons with Disabilities on 15.08.2018. Ms Kajal was admitted on 30.08.2018.

7. Case No. 189/1101/2018/04 dated 07.09. 2018

Shri G.B. Singh, Chief Executive, Confederation of Cooperative Housing Societies Mausam Vihar, Delhi versus (1) The Commissioner, East Delhi Municipal Corporation (CDMC); (2) The Chief Engineer, Shahdara (EDMC)

The complainant, vide his complaint dated 26.03.2018, pointed out that none of the many parks near the Confederation of Cooperative Housing Societies, Vikas Marg, Delhi, had proper facilities for wheelchair users.

The complaint was taken up with the respondents vide notice dated 06.04.2018 in light of sections 45 and 46 of the Rights of Persons with Disabilities Act, 2016 which provide for a time limit for making accessible, under an action plan, existing “public buildings” and “public facilities and services” which include public utilities, religious, cultural, leisure or recreational activities.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

After two hearings, the respondents were directed to submit an action plan with a time frame for making the parks accessible. The concerned Chief Engineer submitted a location-wise action plan and the progress report in respect of 257 parks under the jurisdiction of the East Delhi Municipal Corporation, along with the targeted dates for making the parks accessible by 31.10.2019 vide an email dated 28.08.2018.

The complainant, who was allowed to be heard on the phone, informed that the encroachment which had hindered access to a park, had also been removed at the park where a ramp had been constructed with the gate widened.

8. 4/408/1013/2018/08 dt. 13.09.2018***Dr. Gunjan Nain versus the Dean, Maulana Azad Medical College (MAMC)***

The complainant, a person with 64 per cent locomotor disability and having a Master's degree in pathology from the Maulana Azad Medical College, submitted that she had applied for the post of Senior Resident in the same College against a notice dated 04.07.2018 in which one seat out of 37 was reserved for application by persons with disabilities. But no candidate with disability had been selected and the post had been left vacant. She requested appropriate action.

The case was taken up with the respondent vide notice dated 07.08.2018 pointing out a prima facie improper implementation of the provision of section 34 of the Rights of Persons with Disabilities Act, 2016 mandating reservation of not less than 4 per cent vacancies for persons with disabilities. The respondent's action also appeared to be against para. 11 of the Department of Personnel and Training (DoP & T), Government of India instructions/guidelines issued vide Office Memorandum No.36035/02/2017-Estt (Res) dated 15.1.2018 which provides for effecting reservation and relaxation of the standard for the selection of persons with disabilities.

The respondent vide reply dated 29.08.2018 submitted that one post was reserved for persons with disabilities. There was a threshold/benchmark of 40 marks in the interview for selection. As per the minutes of the Selection Committee for Pathology, for which the complainant appeared, Dr. Gunjan Nain could not clear the threshold/ benchmark of 40 marks. Hence her name was not recommended. It was observed that the Selection Committee was not informed about the provision for relaxation of standard of selection as envisaged in para. 11 of the Department of Personnel and Training Office Memorandum (DoP & T OM) dated 15.01.2018. The said Office Memorandum provides that, if a sufficient number of candidates with benchmark disabilities are not available on the basis of the general standard to fill all the vacancies reserved for them, the standard of suitability should be relaxed in respect of the candidates with benchmark disabilities unless they are found unfit for such a post. Consequently, the vacancy reserved for persons with benchmark disabilities was not filled by a person with benchmark disability although an eligible candidate was available.

It was observed that the medical profession was highly skill-based. Therefore, the principal criterion for deciding the suitability of a candidate for the job of a doctor should be possession of the prescribed qualifications in the relevant specialty and experience. The weightage for performance in an interview should have been comparatively much less.

Recommendations / Decision of State Commissioner for Persons with Disabilities

In light of the above, it was recommended that the complainant be appointed as Senior Resident against the reserved vacancy for persons with benchmark disabilities, as otherwise the complainant would be deprived of her legitimate right.

In 10 days, the respondent vide Action Taken Report dated 24.09.2018, informed that the complainant had been given an offer of appointment to the post of Senior Resident on a regular basis in the Department of Pathology, Maulana Azad Medical College, vide its letter dated 24.09.2018.

9. Case No. 378/1011/2018/07 – 387/1011/2018/07 dated 19.09.2018***Shri Rajesh Upreti and Shri Kapil Pal versus (1) The Principal Secretary, Department of Health and Family Welfare; (2) The Chairman, Delhi Subordinate Services Selection Board (DSSSB)***

Shri Rajesh Upreti, a person with benchmark disability (65 per cent cerebral palsy), vide his complaint/email dated 16.07.2018 submitted that the Delhi Subordinate Services Selection Board in the advertisement No. F (1) 477 DSSSB/P&P/2018/Advertisement /432 dated 05.07.2018 for the post code 2/18 (Pharmacist) had mentioned that the post was identified only for one leg affected (OL) and both legs affected (BL).

Shri Kapil Pal, a person with benchmark locomotor disability (more than 40 per cent), vide his complaint dated 13.07.2018 submitted that the Department of Health and Family Welfare, Delhi, should be asked to comply with the directions passed in the order dated 09.05.2018 vide which the Chief Commissioner for Persons with Disabilities directed Safdarjung Hospital to include one arm affected (OA), one arm and one leg affected (OAL) and hearing handicapped (HH) also as suitable for the post of Pharmacist.

The above complaints were taken up with the respondents vide notice dated 2.07.2018 and 24.07.2018.

The Delhi Subordinate Services Selection Board submitted that the eligibility criteria had been framed by the user department and the Department of Health and Family Welfare had submitted that, as per the notification dated 29 July 2013 of the Department of Empowerment of Persons with Disabilities, the post of Pharmacist was suitable only for OL and BL.

As per the list of identified posts issued by the Department of Empowerment of Persons with Disabilities, the post of Pharmacist appears at Serial No. 992 and 1233. Against Serial No. 992, it is shown identified for OL (One leg affected) and BL (Both legs affected) whereas as per entry at Serial No. 1233, it is suitable for OA (one arm affected), OL (one leg affected), OAL (One arm and One leg)

and HH (Hearing Handicapped (Impairment)). Even if there had been some typing error in the list, the intent of the expert committee, on the recommendation of which the list had been issued by the Department of Empowerment of Persons with Disabilities, was clear: the post was suitable the post was suitable for all these sub-categories of disability. Hence the post should be treated as suitable for all the categories indicated. Moreover, if a person with the same type and extent of disability had successfully completed a technical course involving practical work, denial of the appointment to that job would be clearly illogical and violated his/ her right.

Recommendations / Decision of State Commissioner for Persons with Disabilities

The Department of Health and Family Welfare was advised to amend and resend the requisition indicating the suitability of the categories of persons with disabilities for which the post of Pharmacist was identified as above, so that the Delhi Subordinate Services Selection Board could accordingly issue a corrigendum to that effect. The Department of Health and Family Welfare was also advised to ensure that, in future, before sending requisition for recruitment to the Delhi Subordinate Services Selection Board or any other recruiting agency, the categories of persons with disabilities suitable for various posts should be thoroughly examined with reference to the posts in different groups and with different nomenclatures having identical functions overlooking any anomaly such as discussed above.

In compliance with the advice of the State Commissioner for Persons with Disabilities, the Department of Health and Family Welfare, vide its letter dated 23.10.2018 requested the Delhi Subordinate Services Selection Board to modify the categories of disabilities for the post of Pharmacist of the Department of Health and Family Welfare as OA, OL, OAL, BL and HH and to issue the necessary corrigendum.

10. Case No. 528/1141/2018/10 dt. 26.11. 2018

Mr Mohd. Muzzmil Hussain versus The In charge, Hiring Zone Building Careers

The complainant, a Blind person, complained that the Hiring Zone Building Careers, Near Kotak Mahindra Bank, Vikas Marg, Shakarpur, Delhi <hiringzone.z@gmail.com>, Call Centre took Rs. 3750/- from him but did not provide him a job. He requested his money back.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

The complaint was taken up with the respondent vide letter dated 11.09.2018 and email dated 18.10.2018.

On 26.11.2018, the complainant informed that the company had returned the full amount of Rs. 3750/-.

11. Case No. 222/1111/2018/05 – 507/1111/2018/09 dated 04.01.2019

Shri Guddu Srivastava versus The Post Master Grade, Gukulpuri Post Office

The complainant, a person with 90 per cent locomotor disability, submitted a complaint dated 01.05.2018 and alleged that one Mr Dinesh, working as a clerk in Gokulpuri Post Office, had abused him and tried to manhandle him on 28.04.2018 between 10.15–10.30 A.M. when he visited that Post Office for sending a letter because the complainant did not have change (small denomination of the currency). Mr Dinesh also allegedly used derogatory language, intimidated, insulted and humiliated him. He also threatened to break his other leg.

The complaint was taken up by the respondent vide notice dated 29.09.2018. The complaint attracted the provisions of section 92 of the Rights of Persons with Disabilities Act, 2016 which provides inter alia that whoever intentionally insults or intimidates with intent to humiliate a person with disability in any place within public view; assaults or uses force on any person with disability with intent to dishonour him or outrage the modesty of a woman with disability, shall be punishable with imprisonment for a term of six months but which may be extended to five years and with a fine.

The respondent vide letter dated 08.11.2018 informed that no person by the name of Dinesh was working at the Post Office on 28.04.2018. Mr Naresh Kumar, whose statement was taken, was working at the Speed Post/Registered Post counter on 28.04.2018. However, he expressed ignorance of the incident. A Mr. Dinesh Tewari had been working at the savings counter for the past one and a half years.

The complainant alleged that the respondent was trying to protect the staff. It was also alleged that the accused tried to influence the complainant and the Police personnel to force him to withdraw his complaint from the Office of the State Commissioner for Persons with Disabilities.

The respondent conducted an inquiry into the matter and found Mr Naresh Kumar guilty of misbehaving towards the complainant and filed a report dated 28.12.2018. A disciplinary case was initiated against him.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

After taking into account the facts and circumstances of the case, an order with the following recommendations was passed:

- (a) Deputy Commissioner of Police (North-East District) should have the matter investigated and take appropriate action against the concerned police officer and the accused, if found guilty.
- (b) The respondent should conclude the disciplinary case expeditiously and an Action Taken Report should be submitted within three months from the date of receipt of the order of the State Commissioner for Persons with Disabilities, as required under section 81 of the Rights of Persons with Disabilities Act, 2016.

Under the service Rules, the Senior Superintendent of the Post Office, Delhi East Division, conducted disciplinary proceedings against Mr. Naresh Kumar and found him guilty of misbehaviour towards the complainant. The disciplinary authority imposed a penalty of withholding of the next increment of pay of Mr Naresh Kumar for a period of three months without cumulative effect.

Although the action under section 92 of the Rights of Persons with Disabilities Act, 2016 was unlikely to be taken due to the lackadaisical approach of the Police, a message had been sent across that the consequences of harassing or intimidating a person with disability could be very serious.^{0.635}

12. Case No. 602/1111/2018/11 dated 11.02.2019

Shri Virender Singh, Smt. Poonam and Shri Omkar Singh versus the Directorate of Education, the Principal, Rashtriya Virjanand Andh Kanya, the President, Rashtriya Virjanand Andh Kanya Society and the Secretary, Rashtriya Virjanand Andh Kanya Society

Shri Virender Singh, Local Guardian of Ms Bhawna, an 11 year-old Blind girl, vide his complaint dated 27.11.2018 submitted that Ms Bhawna, the daughter of his wife's sister, lived in Bulandshehar (U.P.). She had been admitted into Rashtriya Virjanand Andh Kanya Vidyalaya, a residential special school run by a civil society organization in New Delhi in Class-I in the year 2012. In August, 2018. The school authorities called the guardian and informed, without giving anything in writing, that Bhawna had been expelled from the school and the hostel allegedly for stealing money.

The complaint was taken up with the respondents vide notice dated 03.12.2018.

The Education Department informed that the said school was a recognized government-aided school. As there was no response from Respondent No. 2, a hearing was scheduled on 04.01.2019.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

During the hearing, the school was directed to readmit Ms Bhawna and desist from such acts in future.

The school complied with the direction and admitted the child. Although it was a blatant violation of the rights of persons with disabilities, that too of a Blind girl child, by an organization working for their education, yet at the behest of the complainant, a lenient view of the matter was taken and action was not recommended against respondents 3 and 4 for contravention of the provisions of the Act. They were left with the advice to be sensitive, humane and respectful of the dignity and honour of a child with disability, especially when they were in the business of educating Blind girl children.

13. Case No. 717/1014/2019/02 dated 13.02. 2019

Shri Ajit Kumar, Ms Sujata, Shri Vivek, Ms Geeta, Shri Nitin Kumar, Sh. Vinor Kumar, Shri Parveen Kumar, Shri Mahesh Kumar, and Ms Munazza versus the Delhi Subordinate Services Selection Board (DSSSB)

The complainants, Shri Ajit Kumar and eight others, personally appeared before the State Commissioner for Persons with Disabilities on 04.02.2019 and submitted that the Delhi Subordinate Services Selection Board, in an advertisement, reserved 93 Primary Teacher vacancies, instead of 133, for persons with locomotor disability. The complainants requested that the cut-off marks be determined based on 133 reserved vacancies for persons with locomotor disability in the Primary Teacher post, instead of 93.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

The Secretary, Delhi Subordinate Services Selection Board, was advised to give a meeting to Shri Ajit Kumar and Others and to do the needful. This was because the unfilled vacancies reserved for persons with visual impairment were to be interchanged with persons with locomotor disability as per an earlier order of the State Commissioner for Persons with Disabilities, instead of diverting them to unreserved categories.

The Secretary, Delhi Subordinate Services Selection Board, vide a letter dated 12.02.2019, informed that 40 unfilled vacancies had been added and, accordingly, the vacancies in the locomotor category had thus been increased to 133 (93+40) and a corrigendum dated 11.02.2019 had also been issued.

14. Case No.792/1092/2019/03 dated 18.04.2019

Smt. Tara Devi versus the Department of Social Welfare and the District Social Welfare Officer (South-West)

The complainant, a person with 40 per cent locomotor disability, vide her complaint dated 06.03.2019 submitted that she had applied to the Social Welfare Department on 30.11.2017 for a disability pension, but the pension had not been sanctioned. She requested help her in getting her disability pension sanctioned.

The complaint was taken up by the respondents vide notice dated 11.03.2019 with advice to submit information on the status.

Vide e-mail dated 16.04.2019, the District Social Welfare Officer (DSWO) informed that the case of the complainant was pending for want of uploading the mandatory ID proof.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

The complainant was advised to visit the District Social Welfare Officer and get the necessary documents uploaded. At the same time, the respondents were directed to expeditiously process the case of the complainant for her disability pension and ensure that the amount of disability pension, including the arrears, was credited to the complainant's account by 15.06.2019. If the amount was not credited to the complainant's account by that date, the complainant was advised to intimate the State Commissioner for Persons with Disabilities through e-mail/telephone.

The District Social Welfare Officer, vide letter dated 17.07.2019, informed that the payment of Rs 42,500/- had been credited to the bank account of the beneficiary on 14.06.2019.

15. Case No. 831/1092/2019/04 dated 25.04.2019***Ms Nidhi Jain versus the Department of Social Welfare and the District Social Welfare Officer (North)***

Ms Nidhi Jain, daughter of Sh. Pawan Jain, a Blind person, vide her email dated 27.03.2019, submitted that her father had not been receiving his disability pension since January 2018, even after submitting all the documents, including updating his *Aadhaar* details. She also submitted that her father had been receiving the disability pension at the old rate of Rs.1500/- per month. The complaint was taken up with the respondent vide notice dated 05.04.2019.

The respondent No.2 vide reply dated 18.04.2018 informed that, as per available data in the District Social Welfare Office (North), it was found that the details of the *Aadhaar* had not been updated by the Office. After receipt of the notice of the State Commissioner for Persons with Disabilities, the record had been updated and sent for release of the pension for crediting to his account.

The District Social Welfare, District Office (North), through a letter dated 26.06.2019, also informed that the pension had been credited to the bank account of the beneficiary on 10.06.2020.

The complainant also confirmed that he had received the pension after the intervention of the State Commissioner for Persons with Disabilities.

Recommendations / Decision of State Commissioner for Persons with Disabilities

The delay and inaction on the part of the concerned functionaries in processing and releasing the disability pension (social security amount) was partly due to the inefficient functioning of the systems and the indifferent attitude of the responsible functionaries to go the extra mile in helping persons with disabilities.

Strongly-worded communication, passing strictures and, in one case, the transfer of the concerned District Social Officer, were recommended in order to send out a strong message. As a result, all concerned started taking swift action to streamline the system and procedures, as well as take action on complaints.

16. Case No. 852/1141/2019/04 dated 20.05.2019***Shri Rahul Singh s/o Late Mohinder Singh versus the General Manager, BSES Yamuna Power Ltd., Karkardooma, Delhi***

The complainant, a person with 46 per cent locomotor disability, submitted vide an email dated 11.04.2019 that he had applied for an electricity connection on 25.03.2019 but the same had not been provided although all the formalities had been completed.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

The complainant was advised, vide a letter dated 22.04.2019 with a copy to the respondent, to file a complaint with the Grievance Redressal Officer (GRO) appointed under the Rights of Persons with Disabilities Act, 2016 in BSES <<https://www.bsesdelhi.com/web/bypl/about-bses>>, with a copy to the Office of the State Commissioner for Persons with Disabilities.

The complainant was contacted by the Office of the State Commissioner for Persons with Disabilities on the given telephone number on 15.05.2019. The complainant informed that the new electricity connection had been installed immediately on receipt of a copy of the letter of the State Commissioner for Persons with Disabilities.

It is important to make use of the redressal mechanisms created under the Rights of Persons with Disabilities Act, 2016 and use various strategies to ensure that the rights are realized with the least possible time and effort expended by a complainant with disability.

The significance of this case is that it created awareness among the duty bearers, making them realize what they should be doing as their duty and the threat of the action that could be taken against them for their failure to comply with the law, and in the process cause harassment to persons with disabilities.

It also highlights that, if the grievance redressal mechanisms are invoked with diligence, persons with disabilities will approach that authority more often and at times for the simplest of the things as well.

17. Case No. 297/1024/2018/05 dated 18.06.2019***Shri Suraj Prakash Kamal versus the Secretary (Services), Services Department, Government of the National Capital Territory (GNCT) of Delhi***

The complainant, a person with more than 50 per cent locomotor disability (Chronic Polio, right Lower Limb), vide his complaint dated 01.05.2018, requested that the "Disability" category be added in his Service Record and all the benefits, including promotion from the date of his initially joining service on 08.08.2000 be extended to him. He had long been requesting this of the concerned Departments. However, the needful was not done and the matter was pending in the Office of the Deputy Secretary (Services-IV).

The complaint was taken up with the respondent vide letter dated 08.06.2018, followed by letters dated 24.07.2018 and 02.04.2019.

The Additional Secretary (Services) of the Department responsible for maintaining seniority and for promotion etc, vide letter dated 14.08.2018, submitted that, at the time of initial appointment for the post of Gr. IV (DASS), a Lower Division Clerk, the complainant had not disclosed his disability status.

However, the Education Department where the complainant was posted, had been paying him the transport allowance at double the normal rate from the date of joining itself on 08.08.2000 as per the Government policy.

Recommendations / Decision of State Commissioner for Persons with Disabilities

After a series of hearings, the Services Department was directed to make an entry in the service documents of the complainant and also consider him for promotion to the next post against the reserved vacancy for persons with disabilities as per the Government policy from the date that he would have been promoted had he been treated as a person with disability by reviewing the decisions of the promotion committees that had been held in the past.

The Services Department, vide its letter dated 11.06.2019, informed that the necessary entry of the Persons with Disabilities Category had been made in the Seniority List.

The complainant appeared on 17.06.2019 and submitted that, while he was satisfied with the insertion of the Persons with Disabilities category in the Seniority List, he should be given the benefit of promotion to the higher grades.

While disposing of the complaint, the Services Department was directed to *suo motu* examine whether the complainant was eligible for consideration against a reserved vacancy for persons with disabilities earlier than he was promoted against an unreserved vacancy, had he been treated as a person with disability from 19.07.2001. If so, then the decision of the relevant promotion committee ought to be reviewed within three months from the date of receipt of the order to consider the complainant for promotion to the higher grades, in accordance with the instructions which provided for reservation of vacancies for persons with disabilities in promotion from Group-D to Group-C posts and within Group-C posts. If found fit, his promotion should be ante-dated accordingly.

The Services Department, vide its letter dated 11.10.2019, informed that the promotion of Shri Suraj Prakash Kamal to the next post of Grade-III (DASS) was approved by the Department Promotion Committee held on 23.09.2010 and orders in that regard were issued.

18. Case No. 650/1023/2019/01 dt.12.07.2019

Shri Pradeep Kumar Arora, Assistant Engineer (Civil), Delhi Urban Shelter Improvement Board (DUSIB) versus the CEO, DUSIB

The complainant, a person with 61.25 per cent Speech and Hearing Impairment, filed a complaint dated 27.12.2018 and alleged that his pay was wrongly fixed and needed to be re-fixed in the pay scale of Rs. 10000-15200 as on 24.12.2007, as per his revised option.

The complaint was taken up with the respondent vide notice dated 24.01.2019.

The respondent, vide letter dated 26.02.2019, submitted that revised pay fixation as requested by the complainant was under consideration and further action "shall be taken at the earliest."

Recommendations / Decision of the State Commissioner for Persons with Disabilities

The respondent was directed to intimate the decision on the pay fixation based on the revised option of the complainant by 31.05.2019, with a copy to the complainant. If the complainant was satisfied with the pay fixation, he was directed to intimate the State Commissioner for Persons with Disabilities and the respondent by 04.06.2019, preferably by e-mail so that an order could be passed. If the decision was not in his favour, the complainant was given an option to submit his comments by 04.06.2019.

Vide email dated 03/06/2019, the complainant informed that the Delhi Urban Shelter Improvement Board, vide its order dated 30.05.2019, had fixed his basic pay at Rs. 18,600 as on 24.12.2007 and the complaint was disposed of.

19. Case No. (1). 1225/1121/2019/09, (2). 1156/1121/2019/09, (3). 1239/1121/2019/10 dated 11.11.2019

The complainants in the above three cases, vide their respective emails, informed that Smt. Shukuntala Manchanda wife of (w/o) Shri Subhash Manchanda; Shri Virender Pal Singh husband of (h/o) Smt. Seema Yadav; and Sh. Raj Kumar Arora, h/o Smt. Anita Arora, had severe disabilities and were on wheelchairs/paralysed. They were not in a position to make multiple visits to hospitals and therefore arrangements for their assessment for disability certificate issuance should be made in such a way that all the formalities/assessments were completed in a single day. All of them were living on the first/third floor. Lal Bahadur Shastri Hospital (LBS Hospital) had the jurisdiction to issue disability certificates for locomotor disability, deafness and blindness and the Institute of Human Behaviour and Allied Sciences (IHBAS) for chronic neurological disorder.

Considering the condition of the three persons and that the disability certificate was an essential document to access any rights/facility meant for persons with disabilities, show cause-cum-hearing notices were issued to the respondents.

Representatives of the respondents submitted that all the three complainants would need to be examined not only for locomotor disability, but also for other conditions such as chronic neurological disorder, etc. They did not have any medical record regarding the diagnoses of the patients in question. It would not be possible to depute the specialist doctors to their homes for the assessments. If their attendants could submit the medical records for diagnosis, the hospital could decide whether they could be assessed by doctors of the LBS Hospital or they would have to be taken to the Institute of Human Behaviour and Allied Sciences. Thereafter, the team of doctors could be arranged in one of the two hospitals and complainants could be assessed in one visit and their attendants could collect the disability certificates on the same day or as early as possible.

Recommendations / Decision of the State Commissioner for Persons with Disabilities

In view of the facts and circumstances of the above cases, the Principal Secretary, Department of Health and Family Welfare was contacted on the phone during the hearing and based on the discussion, it was recommended that the relatives of the three individuals with disabilities should take the treatment/medical papers of the respective patients to Dr. P.K. Khedwal, Consultant ENT Specialist, or to Dr. Sanjeev Gambhir, Orthopaedic Specialist in LBS Hospital, before 19.11.2019 and with prior appointment.

"After that the hospital shall depute the specialist doctors to their residences or take them to the concerned specialists for assessment in ambulances to be arranged by the hospital and deliver the disability certificates to them at their residences by 03.12.2019."

In case No.(1), the Manager, Oriental Bank of Commerce, Krishna Nagar, Branch, Delhi, who had refused to open an account by visiting the home of the complainant, despite there being the Guidelines of the Reserve Bank of India, vide Circular dated 09.11.2019, for doorstep banking, was also directed to visit the home of the complainant and open an account for the complainant.

During the hearing on 07.11.2019, Shri Subhash Manchanda (on the phone) informed that, in compliance with the directions of the State Commissioner for Persons with Disabilities, the Branch Manager of the Oriental Bank of Commerce, Krishna Nagar, had opened a bank account in respect of his wife by visiting his house and he was appreciative of the same.

The Institute of Human Behaviour and Allied Sciences and the Lal Bahadur Shastri Hospital made arrangements and deputed a team of doctors to the residences of the abovementioned three persons for assessment of their disabilities and issuance of disability certificates to them. The Lal Bahadur Shastri Hospital, vide its letter dated 05/12/2019, informed that disability certificates had been issued.

Annex 6

Subject matter of complaints from October 2017 to 31 March 2018:
Office of the State Commissioner for Persons with Disabilities, Delhi

SERIAL NO.	INCIDENT NAME AND CODE		NO. OF COM-PLAINTS	TOTAL COM-PLAINTS	%
1	Employment	1011 Reservation in Jobs	8	21	11.35
		1012 Relaxation in Employment	0		
		1013 Provide / Recommend for Job	4		
		1014 Others – Employment	9		
2	Service Matter	1021 Promotion / Fixation of seniority	7	29	15.67
		1022 Transfer / Posting	5		
		1023 Reinstatement / Department Enquiry / Harassment in service / Termination from service on the ground of disability	9		
		1024 Other – Service matters / Pension / Non-payment of arrears / Medical benefits / Allotment of Government accommodation, etc.	8		
3	Education	1031 Denial / Reservation / Relaxation in admission	2	4	2.16
		1032 Facilities / Infrastructure for education	0		
		1033 Others – Education / Scholarship / Termination from school, Re-evaluation / Declaration of result, etc.	2		
4	Conduct of Examination	1040 Others – Conduct of examination / Discrimination / Misbehaviour / Harassment / Allotment of Examination Centre	2	3	1.62
		1041 Scribe / Extra time / Relaxation for exam	1		
5	Property Disputes	1061 Dispute among family members over property	1	3	1.62
		1062 Other matters of property dispute – Encroachment of land, property / vacating of rented flat, property	2		

SERIAL NO.	INCIDENT NAME AND CODE		NO. OF COM-PLAINTS	TOTAL COM-PLAINTS	%
6	Preferential Allotment	1081 Allotment of land / flat, petrol pump, LPG (Violation of section 37 (a) and (c))	0	20	10.81
		1082 Cancellation of License / Allotment	1		
		1083 Other matters of preferential allotment / License for Tehbazari, booths, petty shops / removal of shops / sealing/ relocation	19		
7	Benefit of Schemes	1091 Reservation under section 37 (b)	0	14	7.56
		1092 Non-receipt of benefits under Central/ State Government Scheme	11		
		1093 Others	3		
8	Accessibility	1101 Barrier in built and outside environment / others (barrier / accessibility)	30	31	16.75
		1102 Denial of banking products and facilities, discrimination	0		
		1103 Misuse of railway coaches / counters other such facility for persons with disabilities	1		
9	Atrocities / Abuse	1111 Major offences / atrocities, sexual abuse, framing under false charges	17	17	9.18
10	Disability Certificate	1121 Non-issuance of disability certificate / Identity Card / Others	13	13	7.8
		1122 Other disability /medical certificate-related issues / Meter	0		
11	Loan	1131 Denial of loan	0	1	0.54
		1132 Others – matters related to extension of time for repayment / waiving off, etc.	1		
12	Miscellaneous	1141 Matters not covered above	9	15	8.1
		1143 Financial assistance / Social security	2		
		1144 Non-filing of first information report (FIR) < https://www.indiafilings.com/learn/fir-filing-in-india/ > ²⁰⁷ / Non-assistance / Harassment by the police	4		
13	Non- Specific	1150 Non-specific complaint	14	14	7.56
Total Cases			185	185	100

²⁰⁷ A first information report (FIR) is the first step that sets the criminal justice proceedings in motion; only after registration of a FIR can the police take up investigation of a case.

COMPLAINTS FROM APRIL 2018 TO NOVEMBER 2019: OFFICE OF THE STATE COMMISSIONER FOR PERSONS WITH DISABILITIES, DELHI				
Serial No.	Incident Name	Incident Code No.	Total Complaints	%
1	Employment	1011 Reservation in Jobs	60	9.52
		1012 Relaxation in Employment		
		1013 Provide/Recommend for Job		
		1014 Others-Employment		
2	Service Matter	1021 Promotion/Fixation of Seniority	63	10
		1022 Transfer/Posting.		
		1023 Reinstatement/ Department Enquiry/ Harassment in service/Termination from service on the ground of disability		
		1024 Other-Service matters/ Pension/ Non-payment of arrears/ Medical benefits / Allotment of Government accommodation, etc.		
3	Education	1031 Denial / Reservation / Relaxation in admission	42	6.67
		1032 Facilities / Infrastructure for education		
		1033 Others – Education / Scholarship / Termination from school, Re-evaluation / Declaration of result etc.		
4	Conduct of Examination	1040 Others -- Conduct of examination / Discrimination / Misbehaviour / Harassment / Allotment of Examination Centre	7	1.11
		1041 Scribe / Extra time / Relaxation for exam		
5	Property Disputes	1061 Dispute among family members over property	12	1.90
		1062 Other matters of property dispute / Encroachment of land, property / vacating of rented flat, property		
6	Preferential Allotment	1081 Allotment of Land / Flat, Petrol Pump, LPG (Violation of section 37 (a) & (c))	40	6.35
		1082 Cancellation of License / Allotment		
		1083 Other matters of preferential allotment / License for Tehbazari, booth, petty shops / removal of shops / sealing / relocation		
7	Benefit of Schemes	1091 Reservation under section 37 (b)	75	11.90
		1092 Non-receipt of benefits under Central / State Government Scheme		
		1093 Others		
8	Accessibility	1101 Barrier in built and outside environment / others (barrier / accessibility)	107	16.98
		1102 Denial of banking products and facilities, discrimination		
		1103 Misuse of Railway coaches / Counters other such facility for persons with disabilities		
9	Atrocities / Abuse	1111 Major offences / atrocities, sexual abuse, framing under false charges	66	10.48
10	Disability Certificate	1121 Prevention of cruelty.	61	9.68
		1122 Review of disability percentage		

COMPLAINTS FROM APRIL 2018 TO NOVEMBER 2019: OFFICE OF THE STATE COMMISSIONER FOR PERSONS WITH DISABILITIES, DELHI

Serial No.	Incident Name	Incident Code No.	Total Complaints	%
11	Loan	1131 Denial of loan	4	0.63
		1132 Others --- Matters related to extension of time for repayment / waiving off, etc.		
12	Miscellaneous	1141 Matters not covered above	83	13.17
		1143 Financial assistance / social security		
		1144+1146 Non-filing of FIR / Non-assistance / Harassment by Police + fraudulent availing of benefits meant for persons with disabilities		
13	Non-Specific	1150 Rehabilitation courses, Non-Specific Complaint	10	1.59
Total Cases			630	100

COMPLAINTS FROM APRIL 2019 TO 31 MARCH 2020: OFFICE OF STATE COMMISSIONER FOR PERSONS WITH DISABILITIES, DELHI

3	Education	1031 Denial/Reservation/Relaxation in admission	44	4.47
		1032 Facilities / Infrastructure for education		
		1033 Others – Education / Scholarship / Termination from school, Re-evaluation / Declaration of result, etc.		
4	Conduct of Examination	1040 Others – Conduct of examination / Discrimination / Misbehaviour / Harassment / Allotment of Examination Centre	8	0.81
		1041 Scribe / Extra time / Relaxation for exam		
5	Property Disputes	1061 Dispute among family members over property	7	0.71
		1062 Other matter of property dispute / Encroachment of land, property / vacating of rented flat, property		
6	Preferential Allotment	1081 Allotment of Land / Flat, Petrol Pump, LPG (Violation of section 37 (a) & (c))	46	4.67
		1082 Cancellation of License / Allotment		
		1083 Other matters of preferential allotment / License for <i>Tehbazari</i> , booth, petty shops / removal of shops / sealing / relocation		
7	Benefit of Schemes	1091 Reservation under section 37 (b)	51	5.18
		1092 Non-receipt of benefits under Central / State Government Scheme		
		1093 Others		
8	Accessibility	1101 Barrier in built and outside environment / others (barrier / accessibility)	471	47.87
		1102 Denial of banking products and facilities, discrimination		
		1103 Misuse of railway coaches / Counters other such facility for persons with disabilities		
		1104 Access in transport		
		1105 Access to Information Communication Technology / Accessible Format / others related to IT		
		1106 Accessibility in voting		
		1107 Universally-designed consumer products and accessories		
		1108 Accessible public facilities and services		
9	Atrocities / Abuse	1111 Major offences / Atrocities, sexual abuse, framing under false charges	66	6.61
10	Prevention of Cruelty	1112 Prevention of cruelty	1	0.10
11	Disability Certificate	1121 Non-issuance of disability certificate / Identification card / Others	50	5.08
		1122 Review of disability percentage		
		1123 Other disability / medical certificate-related issues / Meter		

COMPLAINTS FROM APRIL 2019 TO 31 MARCH 2020: OFFICE OF STATE COMMISSIONER FOR PERSONS WITH DISABILITIES, DELHI

S. No.	Incident Name	Incident Code No.	Total Complaints	%
1	Employment	1011 Reservation in Jobs	47	4.78
		1012 Relaxation in Employment		
		1013 Provide / Recommend for Job		
		1014 Others – Employment		
	Equal Opportunity Policy (EOP)	1015 Equal Opportunity Policy and Discrimination	51	5.18
	Identification of Post	1016 Identification of post	4	0.41
2	Service Matter	Grievance Redressal Officer (GRO)	4	0.41
		1017 Grievance Redressal Officer		
		1021 Promotion / Fixing of seniority	68	6.91
		1022 Transfer / Posting		
		1023 Reinstatement / Department Enquiry/ Harassment in service / Termination from service on the ground of disability		
		1024 Other – Service matters / Pension / Non-payment of arrears / Medical benefits / Allotment of Government accommodation, etc.		

COMPLAINTS FROM APRIL 2019 TO 31 MARCH 2020: OFFICE OF STATE COMMISSIONER FOR PERSONS WITH DISABILITIES, DELHI

12	Loan	1131 Denial of loan	4	0.41
		1132 Others — Matters related to extension of time for repayment /waiving off, etc.		
13	Miscellaneous	1141 Matters not covered above	58	5.89
		1143 Financial assistance / Social security		
		1144 Non-filing of FIR / Non-assistance / Harassment by the police		
		1146 Fraudulent availing of benefits meant for persons with disabilities		
	Rehabilitate Course	1147 Rehabilitation courses	1	0.10
14	Non- Specific	1150 Non-specific Complaint	4	0.41
	Total Cases		985	100

Annex 7

**For the United Nations ESCAP
India Case Study on
Harmonization of Domestic Legislation and Practices:
27 March 2021 Webinar Stakeholder Consultation
Report**

Mode: Webinar
Date: 27 March 2021 10.30 AM to 12.15 PM
Hosted, Supported and Facilitated by the Centre for Accessibility in Built Environment (CABE) Foundation

Methodology

The participants were sent in advance a questionnaire to focus the discussion on the webinar subject “Case Studies for UNESCAP on Harmonization of Domestic Legislation and Practices: Stakeholder Consultation.” They were asked to express their views on the subject. Those who could not speak due to paucity of time or had other reflections after hearing others, were requested to share their feedback via email.²⁰⁸ Indian Sign Language interpretation was provided for the webinar, to ensure an inclusive process. Participants represented a cross-section of disability groups, namely, persons living with vision impairment, physical impairment, hearing impairment, multiple sclerosis, chronic pain, orthopaedic disabilities, psychosocial disabilities, neurological and learning disabilities, persons cured of leprosy, care givers, family members, legal professionals, etc.

Discussion highlights

The stakeholders included senior leaders from the disability sector, such as the founding Secretary of the Department of Empowerment of Persons with Disabilities, Government of India, Ms Stuti Kacker, and Chair of the Committee appointed by the Government of India to suggest changes in disability law to harmonize it with the Convention on the Rights of Persons with Disabilities, Dr Sudha Kaul. The General Secretary of the National Association of the Deaf, and many others also actively participated.

One participant expressed the view that the Rights of Persons Disabilities Act, 2016 was completely harmonious with the Convention on the Rights of Persons with Disabilities. In addition, India also had a Juvenile Justice Act, The Protection of

²⁰⁸ Some invitees who were unable to attend shared their views by email; these have been incorporated in the report.

Children from Sexual Offences (POCSO) Act, 2012 and the Indian Penal Code which created a strong legal mechanism to support children with disabilities.

Another participant stressed that, in India, persons with disabilities were part of the drafting of the Rights of Persons with Disabilities Act, 2016 although the implementation of many provisions of the law was a concern for the sector. She felt that governments were not taking into consideration and not involving the constituents in the implementation of accessibility, awareness and application of the law at the *panchayat* level, district level and State government level. She also expressed that providing equal opportunity to persons with disabilities was an equal responsibility of all. Persons with disabilities should be given equal roles and responsibility in implementing the mandate of the law. For implementation, civil society and care givers should be made partners with the government.

Another participant, a visually-impaired radio jockey who ran an Internet-based radio channel, expressed the view that the nodal department for the implementation of disability legislation, usually the Social Welfare Department, was not allocated competent staff and that jeopardized the implementation of the law. He said that orders were often issued from the Chief Commissioner's Office with inadequate legal analysis and reference to the provisions of the Rights of Persons with Disabilities Act. There was a desperate need for people with passion for justice for disabled persons to be recruited for the important sectoral positions.

One participant also highlighted the need to free the Office of the Commissioner for Persons with Disabilities in the State and at the Centre from political appointments and these posts ought to be filled by persons committed to the rights of persons with disabilities. She was also of the view that Government alone could not implement the many schemes and projects. Civil society entities should also be involved in implementation.

A Blind Principal Consultant with PricewaterhouseCoopers Private Limited shared how daunting it was to live independently during lockdown, with apps for grocery store shopping and for navigating banking services that were not disabled person-friendly. Another participant added that there were accessibility challenges even in the case of the *Sugamya Bharat* app developed by the Government of India. Another participant, a dentist and founder of Chronic Pain India, linked the lack of reliable data on persons with disabilities with the lack of solutions to their problems and to the paucity of media interest.

A participant from the National Association of the Deaf highlighted the need to include Indian Sign Language as a mother language in the Census of India form for 2021; the establishment of a nodal department for providing the services of Indian Sign Language interpreters; the setting up of a Central Committee for Research on Disability and the creation of a post for an Indian Sign language Interpreter in the Office of the State Commissioner in all States and Union Territories.

A participant who had been working as a pro bono professional in the disability field for over 27 years expressed that the implementation of laws was marred by a severe lack of funds. The government agencies working with the disability sector in the interior parts of India lacked connectivity, including transport, road and wifi connectivity.

The Director of the Institute of Human Behaviour and Allied Sciences (IHBAS) highlighted the need for capability building. Citing the present vaccination drive, he shared that there was no provision of vaccination for severely disabled persons in institutions and for immobile older persons and persons with disabilities in their homes. Lack of accessibility in homes, even in urban areas, remained a challenge. For example, getting in and out of lifts was difficult for many. The ground reality was that the judiciary and all other law enforcement agencies needed to be sensitized at the grass root level. The right to health for persons with disabilities was still far from being satisfactorily met. Mental health services were still not available. As homelessness was increasing, there were also more homeless people, including persons with disabilities among them.

It was suggested that job reservations were of no use if the posts remained vacant for long. The abovementioned Principal Consultant recommended that, in mandatory CSR spending, a certain percentage commensurate with the number of persons with disabilities should be allocated for the disability sector to realize the rights enshrined in the Rights of Persons with Disabilities Act, 2016.

A participant who worked with the Leprosy Mission Trust observed that not more than 10 per cent of persons who were cured of leprosy had their disability certified. The majority of leprosy-cured persons remained without disability certificates due to a lack of awareness among the medical fraternity. Many medical doctors had no understanding regarding the need and right of leprosy-cured persons for disability certificates. The common assumption was that persons cured of the disease should not get any certificate. This left many leprosy-cured persons struggling against disabling barriers in the form of leprosy-related stigmatization and discrimination.

Another participant voiced the need for attention to the sexual and reproductive health of persons with disabilities, particularly women and girls with disabilities. An example was cited of how ill-equipped laboratories and clinics were whose toilets were not accessible where patients were required to appear for tests with full bladders.

A former Indian Air Force fighter pilot living with multiple sclerosis highlighted the challenges faced by persons with in getting disability certificates and Unique Disability Identity Cards. Furthermore, although persons living with multiple sclerosis were recognized as a category of disability, they were not included among those who could benefit from job reservations.

A lawyer, as the parent of a child with a learning disability, raised the contradictions in the existing laws regarding the legal capacity of persons with intellectual disabilities: while the Rights of Persons with Disabilities Act, 2016 stressed that each person with disability had legal capacity, the Company Law did not consider them as persons with legal capacity to take binding decisions. She also stressed the need for a study on the implementation of the Rights of Persons with Disabilities Act with regard to education and skill development.

One participant added that there was a need to have a Disability Bench in the Supreme Court of India. The author, Mr. Dhariyal, articulated concern regarding possible misuse of section 3(3) of the Act which was also a concern that had been expressed by the Committee on the Rights of Persons with Disabilities.

A lawyer who was an accessibility expert and a founder of CAFE Foundation informed that thus far there had been no reported litigation citing misuse of section 3(3). He also explained that, due to lack of State awareness and support mechanisms, there were no effective means of protecting persons with disabilities from relatives who prevented them from inheriting family property. He also underscored the fact that the Convention on the Rights of Persons with Disabilities, the General comments of the Committee on the Rights of Persons with Disabilities and the Rights of Persons with Disabilities Act, 2016 were not available in all official or vernacular languages of India. As per his information, the Act itself was available in English, Hindi, Bengali, Tamil and a few other languages. It was clarified that the availability of important laws and documents was a responsibility of the respective States, while the Union of India was only responsible for English and Hindi versions.

Harmonization of National Laws with the Convention on the Rights of Persons with Disabilities

NATIONAL CASE STUDY REPUBLIC OF INDIA

This publication emanates from an ESCAP research project to study the trends of Asian and Pacific countries in harmonizing national laws with the Convention on the Rights of Persons with Disabilities. It examines the extent to which reporting obligations have been fulfilled in a timely and substantive manner and the ways in which the national human rights institution and civil society organizations, in particular organizations of persons with disabilities, have been involved in that process. It further analyses good practices in harmonization, and challenges which have arisen in relation to the implementation of the Convention in India. This analytical country case study was prepared under the above mentioned ESCAP project. It is issued for the attention of members and associate members in the ESCAP region towards further enhancement of the effective harmonization of domestic legislation with the Convention and the implementation of the Convention.